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PHILOLOGICAL AND
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ON AMMIANUS MARCELLINUS
XV, 1-5

BY

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PREFACE

Owing to the difficulties occasioned by the war and post-war circumstances, the publication of this third volume of my commentary on Ammianus has been delayed. A new bibliography has not been added this time, but will find a place in the fourth volume. Much material for following volumes has already been collected. It will depend on the author's time and other circumstances when they will be published.

Here I tender my cordial thanks to Prof. Dr A. G. Roos, who assisted me in correcting and gave constant evidence of his interest, and to Mr J. Reiling, lit. class. cand., who also perused the proofsheets. I am highly obliged to the Governors and Officials of the Buma-library at Leeuwarden and the Universitylibrary at Groningen. But for their unremitting support this work could not be continued.

P. DE JONGE,
Hengelo (O.), Autumn 1947.

PHILOLOGICAL AND HISTORICAL COMMENTARY

XV 1. 1—1. 1 (p. 38. 1—p. 38. 4).

1. 1. *per aetatem sc. meam versatos in medio* = testes, p. 38. 1—2. arbitros, spectatores.

1. 1. *perplexe interrogando*. Cf. 22. 6. 1: *perplexius litigare*; p. 38. 2. 25. 3. 23: *perplexius disputare*; Wagner 2 p. 104: „Ernesti tò *perplexe* exponit diligentius ego malim: non sine ambagibus, et aliud quasi agendo, percontando ex aliis elicui.”

The two above-mentioned places are correctly translated by Liesenb. with: „verwickelt, schwierig und sublim.” The last shade of the meaning is unknown to me from other places; the above 15. 1. 1. is also strange. Yet the meaning *obscurus, difficilis* is always inherent in the word. Cf. et. Krebs *Antib.* 2 p. 285: „*perplexus, verwirrt, unverständlich, zweideutig*, findet sich nicht bei Cicero u. Caesar, wohl aber mehrmals bei Livius, welcher wie Curtius (8. 5. 13) auch das Adv. *perplexe* braucht; ausserdem steht es nur noch im Sp. L., wo auch *perplexio* und *perplexitas* vorkommt (cp. Gölzer St Jérôme p. 74). Fürs A. L. wo sich *perplexus, perplexe* und *perplexim* findet vgl. Langen Beitr. S. 148.” Cf. et Reinhardt p. 48; for *perplexitas* ad 17. 8. 3.

1. 1. *residua, quae secuturus aperiet textus*. Cf. 18. 4. 7: quos p. 38. 3. (sc. motus) docebit orationis progrediens textus; 28. 6. 1: quae textus aperiet absolutus. For this sort of personifications cf. et 14. 6. 20: innumera simulacra, quae finxere fabulae teatrales; Blomgren p. 86 sq.

1. 1. *pro virium captu*. Cf. ad 14. 11. 4. p. 38. 4.

1. 1. *limatius*. Compar. of the Adv., also 15. 13. 2. Non-classic? p. 38. 4. (Cf. Cic. de finib. 5. 12, where *limatius* may be an adv.) The positive does not seem to occur, although the positive of the adj. does (more often the comparative) in Cicero. Also in Horace, Pliny, Mart. Cf. et ad 14. 6. 12 and 14. 10. 9.

1. 1. *absolvemus*. Cf. 17. 7. 1; 21. 5. 2; 23. 6. 10; 26. 2. 5; 29. 1. 24; p. 38. 4. 30. 4. 4; 16. 12. 10: paucis absolvam (Cat. 4. 3: paucis absolvam = Livy 33. 12. 2). Meaning: „erzählend abmachen, abfertigen (Georges), explicare.”

In Plaut., Pac., Rhet. H., Sall., Pliny m., Fronto, Apul., Solin., and more recent authors. Fesser p. 35. Archaism?



p. 38. 4—5. 1. 1. *nihil obtretores longi (ut putant) operis formidantes.* Amm. means, as also appears from the following sentence, that for a certain degree of completeness, some length is necessary. However, the work cannot be called long in the meaning "too long, prolix", ut putant (nonnulli hodierni sc.) He objects to the fashion of brevity in his time, in which there was a tendency to epitomize and people had neither a mind nor an inclination to work their way through lengthy works of history in the spirit of a Livy. Good historians, besides himself, his century does not know. Long and even good works of history are written in the province of Church-history, but the latter are beyond the range of Amm. and his surroundings. Does he perhaps also allude to Eutropius and Tacitus?

p. 38. 7. 1. 2. *Nondum apud Noricum exuto penitus Gallo.* Cf. 14. 11. 19 sq. and ad 14. 11. 19 (p. 34. 16). *Apodemius* Cf. ad 14. 11. 19 (p. 34. 18).

p. 38. 8. 1. 2. *incentor.* Cf. ad 14. 1. 2. (*incentivum*) and ad 14. 7. 17 (*prae-centor*) and J. B. Hofmann Philol. XCIII, 4, 1939 p. 483 sq.: „Incentor . . . musste im Sprachgefühl statt auf das seltene technische *incinere* „ertönenlassen“ vielmehr auf *incendere* im Sinne von „inflammare“ bezogen werden und zog dann die Nebenform *incensor* (18. 6. 18; 31. 9. 4) nach sich. Wenn wir also der Überlieferung trauen dürfen, so hat er sowohl *incentor* als *incensor* gebraucht, jedoch beide auf *incendere* bezogen. Einen Beweis, dass dem so ist, erblicke ich darin, dass er infolge dieser Vermischung soweit ging, einmal auch ein *incendium* im Sinne von „incentio“ zu wagen: 19. 5. 5: *clamos ululabilis incendio tela . . . dispergebant.*“ (and note 23 there). „Auch das Attribut *igneus* deutet vielleicht auf Verknüpfung von *incentor* mit *incendere*. Eine andere, der Etymologie eher entsprechende Umbiegung von *incensio* zu „*incantatio*“ hat wiederum Amm. allein gesagt: 30. 1. 17: *incentiones Circeas in vertendis debilitandisque corporibus . . . eum callere fingentes.*“

p. 38. 8. 1. 2. *raptos ejus calceos vehens.* This refers to the purple shoes that only the members of the imperial house were allowed to wear.

p. 38. 8—9. 1. 2. *equorum permutatione veloci, ut nimietate cogendi quosdam extingueret.* *cogere* = *incitare*, to egg on. *Quosdam* = aliquot, complures, since Livy often occurring in this meaning (cp. Hofmann-Leum. p. 484; ad 14. 5. 6, p. 11. 5).

As a soldier Amm. is vexed at seeing too great a strain being put on the horses, by which the *cursus publicus* is dislocated. Cf. 21. 16. 18: . . . ut catervis antistitum jumentis publicis ultro citroque discurrentibus

per synodos (quas appellant), dum ritum omnem ad suum trahere conatur arbitrium (sc. Constantius), rei vehiculariae succideret (sc. Constantius) nervos. About measures against this etc. cp. ad 14. 6. 16 (p. 15. 21).

1. 2. *praecursorius index Mediolanum advenit.* Cf. 31. 3. 6: p. 38. 9—10. *veriti ne praecursorius index procul agentes absterreat.* For the difference between *praecurrere* and *procurrere* and their derivations cp. Pighi St. Amm. p. 40 sq.

1. 2. *velut spolia regis occisi Parthorum.* The „Parthians“ are p. 38. 11. the greatest and most dangerous enemies of the Romans in these centuries. Without any difference of meaning Amm. also calls them *Persae* (14. 3. 1: *rege Persarum*), which is the proper name. The New-Persian Empire, by which the Parthian was succeeded, under the dynasty of the Sassanids, lasted from 227 till 631. Cp. Nöldeke Tabari and Nöldeke Pers. Gesch. op. cit. (Komm. I p. 32); Christensen op. cit. (Komm. I p. 24); eiusd. op. cit. Komm. II p. 4.

1. 2. *perlato nuntio repentino, docente rem insperatam et arduam, ad sententiam tota facilitate completam.* Cf. 14. 11. 32: *Pompejus . . . ad spadonum libidinem . . . trucidatur*; 16. 10. 3: *alium ad Deciorum exempla vovisse pro re publica spiritum*; 26. 10. 10: *ubi . . . agatur . . . quod agitur, ad voluntatem praetumidae potestatis* (ad exemplum also: 21. 10. 2; 26. 9. 9; 29. 5. 31; 30. 5. 8). *Ad* = *secundum*. Equally 30. 4. 10: *horum obstinatione libertatem temeritas, constantiam audacia praeceps, eloquentiam inanis quaedam imitatur adfluentia loquendi: quarum artium scaevitate, ut Tullius adseverat, nefas est ad religionem decipi judicantis.* (for the hyperbaton, very common in Amm. cp. Blomgren p. 25. note 2). Gelenius, Cl.: *religionem decipi judicantis* (genit. sing.), but Blomgren has rightly interpreted *judicantis* as *accusativus subjecti* and translates: „wie Tullius behauptet, ist es ein Frevel, wenn diejenige, die nach Gewissen richten, durch diese verkehrten Kunstgriffe irre geführt werden.“ (the acc. plur. is either normal or an error of the writer of Cod. V., like 30. 4. 13: *vincientis V* for the nomin. plur. *vincientes*). This modal use of *ad* during the whole Latinity (cf. Hofm.-Leum. p. 497; Thes. I p. 548 sq.). For the use of *ad* in general cf. et Reinhardt p. 49 sq.; Liesenberg III p. 8 sq.; Blomgren p. 167 sq.

1. 2. *tota facilitate.* „Ein anderer besonders spätlat. Gebrauch von p. 38. 12—13. *totus*, der mir zu wenig beachtet scheint, ist derjenige im Sinne von

summus bei abstrakten Begriffen (in solchem Zusammenhang wird ja totus leicht = „aller denkbare“ und so „der grösste“). Löfst. Peregr. p. 69, with examples.

p. 38. 1. 1. 2. **hi qui summam aulam tenebant** = splendidissimi, illustrissimi aulici. Aula here: $\pm$ attendance at court. Cp. 26. 7. 6: *aliique plures ad aulae varios actus et administrandas provincias sunt admissi*.

p. 39. 1. 1. 2. **ex more**. Cf. 15. 3. 9; 15. 6. 1; 15. 8. 2; 17. 4. 12; 17. 5. 14; 17. 10. 8; 19. 8. 7; 20. 4. 12; 20. 7. 3; 21. 4. 3; 21. 5. 7; 21. 12. 11; 22. 7. 2; 22. 11. 7; 24. 3. 13; 25. 2. 2; 25. 10. 11; 26. 5. 7; 27. 2. 2; 27. 10. 9; 31. 7. 10 (31. 16. 6: < ex > more Cl.); 26. 7. 17: *de more*; 31. 5. 8: *de more*; 24. 6. 11: *solito more*; 30. 10. 5: *more sollempni*. All this also classical. Cf. et Fesser p. 6; Hofmann-Leum. p. 529; ad 14. 10. 3 p. 28. 13—14.

p. 39. 2. 1. 2. **gregariorum militum**. The name of the common soldier is: *miles gregarius*, *munifex* (16. 5. 3; 25. 2. 2: *munifici gregario*), *manipularius* (not in Amm.), *inferior* (20. 5. 8), $\epsilon\nu$ καταλόγω τεταγμένος. Cf. Grosse. Rangordn. p. 123. Title: *vir devotus, devotissimus, καθωσιωμένος* (Koch, Titel, p. 78 sq).

p. 39. 3. 1. 2. **duo exauctorati sunt principes**. *Exauctorare* is to dismiss a man from service irrespective of his term of service; consequently it has mostly an unfavourable meaning just as it has here. That the word is used for the “dismissal” of Caesares and Augusti is, for the rest, unknown to me. The punishment of *exauctoratio* (= *exauctoritas* = *rejectio*) is further defined in the Cod. Theod. by the formulae: *cingulo solvi, matricula eximi, sacramento militari absolvi* (= *sacramento exui*). Cf. Cod. Theod. Gothofred.-Ritter 2 p. 263.

p. 39. 3. 1. 2. **Veteranio**. After the usurpation of Magnus Magnentius at Augustodunum (18th January 350) the troops in Illyricum had proclaimed the old Veteranio Augustus at Sirmium (1st March 350). That Magnentius, who had been recognized as emperor in the whole West, had no success in Illyricum was almost certainly owing to Constantia, the widow of the murdered king Hannibalianus, who, in the interest of her brother Constantius, egged on the magister peditum V. to have himself proclaimed Augustus, by which fact the provinces of the Danube and the Illyrian army did not fall into the hands of Magnentius. Consequently it was highly probably a sham usurpation. Magnentius tried, after hearing the news, to enter into an agreement with Constantius, which the latter declined. Then he concluded a treaty with Veteranio,

who, as long as Constantius was in the East, was certainly not able to deal firmly with M. alone. This treaty, too, will undoubtedly have been camouflage from the side of V. After the second of September 350 C. crosses over to Thrace and at Heraclea receives envoys of peace from V. and M. He does not go any further into the matter. When C. is marching on, V. comes to meet him at Serdica. V.'s troops go over to C., whom they acknowledge as the only emperor; 25th December 350 V. lays down the insignia of his imperial dignity at Naissus. C. pardons him and allows him to live quietly at Prusa (Bithynia), where he lives for another six years. Cf. Niese-Hohl p. 401; Stein, Spätr. Gesch. p. 215 sq. (with lit.); Komm. I 39 up to and including 43 passim. It is likely that V.'s history has been treated in the lost books.

1. 3. **confestim**. Cf. 14. 1. 4; 15. 3. 9; 15. 5. 6; 16. 12. 17; 16. 12. 59; p. 39. 6. 17. 1. 5; 17. 4. 15; 18. 10. 2; 19. 2. 6; 19. 11. 5; 21. 4. 4; 24. 4. 30; 25. 1. 4; 25. 2. 7; 25. 5. 5; 25. 9. 13; 25. 10. 9; 26. 2. 3; 26. 7. 4; 26. 9. 10; 28. 1. 22; 28. 6. 18; 29. 1. 5; 29. 2. 3; 29. 6. 10; 29. 4. 17; 31. 7. 1; 31. 8. 10; 31. 10. 13; 31. 13. 14; 31. 15. 4. Cf. Fesser p. 44: „Ein Terminus der Amts- und Militärsprache. Es fehlt bei den Autoren des 1. Jahrh. p. Chr. bis auf Hadrian, lebt dann unter archaisierenden Tendenzen wieder auf.“ Cf. et Hoffm. Lat. Umg. Spr. p. 83.

1. 3. **Aeternitatem meam**. Cf. Cod. Theod. 10. 22. 3 (a^o 390): *ad-* p. 39. 6—7. *oraturus aeternitatem nostram*; *ibid.* 12. 1. 160 (a^o 398): *Honorii Augusti fratris aeternitatis meae*; *Thes.* I p. 1141; with examples. Amm. is vexed at this use of *aeternitas*, but *aeternus* is found in imperial titles on inscriptions to begin with Constantine; further the name *aeternitas* on coins as early as the first emperors, her image appears already on coins of Vespasianus. In Christianity *aeternus* is a very common adjective, but in the pagan cult it seems to occur very rarely as an epitheton of gods (unless of Syrian deities and their Roman substitutes and of the emperors). „Überhaupt werden also die Götter auf den Inschriften merkwürdig selten ewig genannt und dieser Begriff scheint sich erst mit den orientalischen Kulturen in den niedrigen Schichten der Bevölkerung verbreitet zu haben.“ (Cumont, R. E. 1. p. 697) Cf. et Cumont, *Revue arch.* 1888, 1, p. 184 sq. (*aeternus*); *Aust. R. E.* 1. p. 694 (*aeternitas*); Tölken: *Über die Darstellung der Providentia und Aeternitas auf römischen Münzen*; Roscher 1, p. 87; and ad 14. 6. 1. (hist.); Mattingly—Sydenham, *Roman imperial coinage*, vol. I and II; Bernhart, *Handb. z. Münzkunde der röm. Kaiserzeit* (passim).

p. 39. 7. 1. 3. *subsereret*. Cf. ad 14. 11. 3 and Georges ad h.v., who gives the following correct translations: „darunterstecken, daruntertun (20. 3. 8); neue Nahrung geben (14. 11. 3); noch Einiges weiter erwähnen (16. 7. 4); zu verstehen geben, c. acc. c. in f. (16. 2. 4).“ The word is non-classic. Not in Liesenberg and Du Cange.

p. 39. 7. 1. 3. *scribendoque propria manu*. Letters, constitutions, etc., emanating from the emperor, were drawn up by the Chancery. The signature with salutation, etc. serving as a hall-mark of authenticity, was written *propria manu*. This same custom is found in the correspondence of high officials, who have an officium of their own and with important private people that employ a secretary. The autographic words in acts, etc. are generally introduced by: *et manu divina, et manu imperatoris, et alia manu (principis)*, etc. Cf. Nov. Valent. III (450) I 3: .. *et manu divina: optamus vos felicissimos ac florentissimos nostrique amantissimos per multos annos bene valere, sanctissimi ordinis p(atres) c(onscripti)*; Coll. Avell. epist. 41 (Papae Innocentii): *et alia manu: deus vos incolumes custodiat, fratres carissimi*; *ibid.* epist. 3: *et alia manu principis: divinitas te servet per multos annos, parens karissime atque amantissime*; Nov. Valent. 16: *et manu divina: proponatur (let it be put up) amantissimo nostri populo Romano*. From the last example we can conclude that the formulation under discussion also (often) serves as an introduction of the so-called *propositum* (the last phase of the publication). Cf. *et Seeck Regesten*. p. 2. sq.; F. von Schwind, *Zur Frage der Publikation im römischen Recht* (1940) p. 177 sq.

Note. The circumstance that the signature had been written in Silvanus' own hand was made use of in his overthrow. Cf. 15. 5. 4: *et peniculo serie litterarum abstersa, solaque incolumi relicta subscriptione, alter multum a vero illo dissonans superscribitur textus*, etc.

p. 39. 9. 1. 3. *civilium principum*. Cf. 28. 1. 44: Ursicinus . . . qui quoniam *cautus esse voluit et civilis*. *Civilis* = „qui boni civis mores habet, maxime modestiam et humanitatem“ (cf. *Thes.* III p. 1217). Cf. Ovid. *Tristia* 4. 4. 13 sq.:

Ipsa pater patriae — quid enim est civilis illo? —

Sustinet in nostro carmine saepe legi.

Tac. Ann. 1. 54: *indulserat ei ludicro Augustus . . . neque ipse abhorrebat talibus studiis, et civile rebatur misceri voluptatibus vulgi*; *Pliny nat.* 18. 320; *Pliny paneg.* 83. 7: (*uxor*) *eadem quam modica cultu quam parca comitatu quam civilis incessu*; *Suet. Quint. Script. H. A.*, *Eutrop.*

1. 3. *diligentia enixa*. The adv. *enixe* also classic. (*Cicero Sest.* 38, p. 39. 10. *Caes. b. civ.* 3. 35. 2, only these two places). Often in *Livy*, not before *Seneca phil.* connected with *verba* expressing a request. In Church-latin *enixe orare* very common. The adj. *enixus* not earlier than *Livy*, especially in expressions as *enixo studio* (*f. i. Val. Max.* 8. 15 extr. 1). Cf. *Krebs Antib. ad h. v.*

1. 4. *si mundorum infinitates Democriti regeret, quos Anaxarcho incitante, Magnus somniabat Alexander*. *Democritus* of Abdera from ± 460 until Socrates' time, the well-known philosopher of atomism. *Anaxarchos*, adherent of *Democritus* and companion of *Alexander the Great*. According to the legend the king of Cyprian *Salamis*, *Nicocreon*, had him crushed to pieces in a mortar. His steadfastness was a much-praised example for philosophers and Christian authors. For *Dem.* cf. *Diels Vorsokr.* 2³, 10—140; *Gomperz, Gr. Denker*⁴, 1 p. 261 sq. (with lit.); cf. *et.* 16. 5. 1: *reputans ex praedictis Democriti, quod ambitiosam mentem fortuna, parcam virtus adponit*; 22. 8. 3: *Abdera visitur, Protogorae domicilium et Democriti*; *annot. Lindbrog.* (in edit. *Wagner II* p. 106) ad h.l.; (on the: *mundorum infinitates*) cf. *Cic. Acad. pr. II* 55. 125; *Hippol. ref. haer.* I 13; *Arist. phys.* VIII 1. 250b 18. For *Anaxarchus* cf. *Diels Vorsokr.* 2³, 144—148; *Kaerst, R. E.* 1, 2080; *Windelband-Goedeckemeyer* (1923) p. 87 *annot.* 9, 90, 214, 216; *Ritter-Preller Hist. phil. graecae* 444a; *A. Goedeckemeyer, Die Geschichte des gr. Skeptizismus* (1905) p. 3, 6, 7, 10. An unfavourable opinion on *Anaxarchus* is also found in *Arr. Exped. Alex.* 4. 9. 7. sq. *Amm.* probably derives his information on *Democr.* from *Cicero* and (or) from sources dependent on the latter. In *Cic. Dem.* is very often mentioned.

1. 4. *mathematici*. This word, which has generally an unfavourable meaning (astrologer) in *Tac. Suet.* etc. (for the history of the word cf. *et. Gellius I.* 9.); here = astronomer. The *mathematici* (= astrologi) were severely persecuted in the late empire and put on a level with: *haruspices, incantatores, harioli, magi, malefici* (magicians, conjurers) etc. This persecution did not only take place by authority of the government, but also by the Church. On various councils resolutions were taken against them, Church-authors fulminate against them. The various kinds of sooth-sayers are often summarized in the word *mathematici*. (cf. *Cod. Theod.* 9. 16. 12). Both pagans and Christians believe in them. The latter, however, consider all these tricks ungodly and diabolical and at variance with the Christian faith. Only few people take them for

vain errors cf. Burckhardt Kröner Verlag ed. p. 227 sq.: die Dämonisierung des Heidentums, die Astrologie, etc. and F. Boll, Stern glaube und Stern deutung, die Geschichte u. das Werden der Astrologie, 4e Aufl. 1931. H. Gressmann, die hellenistische Gestirnsreligion, Beihefte zum Alten Orient. 5. 1925. J. van Wageningen, Astrologie en haar invloed op de Rom. literatuur. Rectorale oratie. Gron. 1916.

Cf. et. Cod. Theod. 9. 16. (c. comm. Gothofredi).

p. 39. 13—15.

1. 4. quod . . . ambitus terrae totius, quae nobis videtur immensa, ad magnitudinem universitatis instar brevis optinet puncti. Cf. 20. 3. 12: rerumque magnitudini instar exigui subditum (Gutschm., Cl.; V: subditum; subdita?) puncti; Cicero Tusc. 1. 17. 40: persuadent enim mathematici terram in medio mundi sitam ad universi caeli complexum quasi puncti instar obtinere, quod *κέντρον* illi vocant (cf. M. Pohlenz ad h. l. in edit. sua); Enßlin, Zur Gesch. Schr. Amm. p. 56 sq. (Zur Himmelsvorstellung); instar habere, obtinere is an expression, which occurs frequently. Instar also late-latin; especially with jurists. Cf. Kalb. Roms Juristen p. 25; Krebs Antib. I p. 756. For *optinet* cf. ad 7. 7. (p. 57. 17).

Note. G interpolates ad, probably correctly.

p. 39. 16.

2. 1. *deleti* Caesaris, sc. Galli. Cf. Komm. I p. 40. *Delere* is very rarely used in classical latin for the annihilation, destruction of one person.

p. 39. 17.

2. 1. *in crimen laesae maiestatis arcessebatur*. Cf. 19. 12. 17: Et inquisitum in haec negotia fortius, nemo qui quidem recte sapiat reprehendet. Nec enim abnuimus salutem legitimi principis, propug-natoris bonorum et defensoris, unde salus quaeritur aliis, consociato studio muniri debere cunctorum; cuius retinendae causa validius, ubi majestas pulsata (= laesa) defenditur, a quaestionibus vel cruentis, nullam Corneliae leges (= lex Julia maiestatis) exemere fortunam (= nullum cujuscunque ordinis); 28. 1. 11: his ille (sc. Valentinianus) cognitis efferatus, ut erat vitiorum inimicus acer magis quam severus, uno proloquio (= disceptatione) in hujus modi causas (with causas hujus modi are meant: veneficia, stupra, adulteria) quas adroganter (= er suppl. Vales.) proposito (= $\pm$ legi) maiestatis imminutae miscebat, omnes quos juris prisci justitia divorumque arbitria (= imperialia constituta) quaestionibus exemere cruentis, si postulasset negotium,

statuit tormentis adfligi (28. 1 treats the cruel proceedings of the praef. annonae Maximinus in Rome a^u 368 sqq. against members of the senatorial order). Likewise it appears from Cod. Theod. 9. 5. 6 (ad legem Juliam maiestatis, etc.); 9. 16 (de maleficiis et mathematicis etc.) 6; 9. 35 (de quaestionibus) 1, 2, that with the crimen laesae maiestatis the position of every defendant is alike and anybody may be subjected to torture. It is the only crime in which the evidence of libertus or servus is accepted (Cod. Theod. 9. 6. 1, 2, 3). But Constantinus Magnus forbids in Cod. Theod. 9. 5. 1 (314) even in this case this sort of evidence. For the rest, this act strikes one by its clemency and by its severe provisions against calumniators. As in Tacitus numerous examples are found in Amm. of majestas-lawsuits. Most emperors were naturally very credulous and very rigorous in this respect and the court-clique had mostly a fatal influence. Cf. et. Mommsen, Röm. Strafrecht p. 583 sq.; p. 588.

2. 1. *Ursicinus*. Cf. ad 14. 9. 1 (p. 25. 26). This trial is enacted at Milan before the end of the year 354, after the death of Gallus (as Amm. has it), which also takes place towards the end of that year. Cf. Goyau op. cit. p. 459 sq.; Seeck Regesten p. 200.

2. 1. *aduliscente*. *Adulisco* late orthography for *adolesco*. Cf. Thes. 1. p. 39. 18. p. 800; ad 14. 2. 9 (p. 6. 3).

2. 1. *livore*. Poetical and non-classical for *invidia*. Also in Tac. from whom Amm. may have borrowed it. Cf. Krebs. Antib. I p. 30; Liesenberg (1888) p. 24: „Mit großer Vorliebe gebraucht A. ferner die einen Zustand, Klang oder eine Gemütsstimmung bezeichnenden Verbalia auf -or, jedoch ohne wesentliche Abweichung von dem Gebrauche der Dichter und Autoren der silbernen Latinität.”

2. 2. *aures occlusae*. Cf. 29. 2. 14: . . . ut videretur aures occlusisse ceris. Rare. Frequent in Plautus (cf. Lodge ad h. v.), Cato agr. (once), Terentius, Cicero (several times; cf. Merguet ad h. v.), Varro de l. lat., Apul. met. Probably an archaism.

2. 2. *imperatoris aures . . . clandestinis*. As for the suspicious character of Constantius cf. et. 14. 11. 4: cum haec taliaque sollicitas ejus aures everberarent, expositas semper ejusmodi rumoribus et patentes; 15. 3. 9: . . . ad comitatum principis advolavit, eumque ad suspiciones hujus modi mollem et penetrabilem, ita acriter inflammavit . . .

p. 39. 21. 2. 2. **susurrus insidiantium clandestinis.** For **clandestinus** cf. ad 14. 11. 1. (p. 31. 7). For the use of the part. praes. as a substantive in the casus obliqui (**insidiantium** h. l.) cf. Hofm.-Leum. p. 457 (66a). Also classical. **Susurrus**, the gentle murmuring of waters, sources, bees, etc., generally poetical, rare in classical prose. Cf. Cic. Tusc. disput. 5. 36 (103): **leviculus sane noster Demosthenes**, qui illo susurro delectari se dicebat aquam ferentis mulierculae, ut mos in Graecia est, insur-rantisque alteri „hic est ille Demosthenes.” As for the meaning of: calumnia, delatio arcana cf. Plin. Paneg. 62: Ne respexeris clandestinas existimationes nullisque magis quam audientibus insidiosos susurros; 14. 11. 3: regii . . . spadones . . . per arcanos susurros nutrimenta fictis criminibus subserentes; 20. 2. 1.: obrectatores . . . primo disseminantes mordaces susurros, dein propalam ficta crimina subnectentes.

p. 39. 21—22. 2. 2. **Constantii nomine per orientis tractus omnes abolito.** Part of the oratio obliqua!

p. 39. 23. 2. 3. **accidentia.** Cf. 26. 2. 8: mutationes varias accidentium; ad 14. 11. 26 (p. 36. 5).

p. 39. 24. 2. 3. **ne se proiiceret abiectius cavens** = ne se projiceret in turpes adulationes timide cavens. Cf. 31. 14. 8: processu vero luctuum maximorum abjecte etiam timidus; 30. 8. 11: ipse ad pavores inritos aliquotiens abjectius pallens; 24. 5. 10: et imperator . . . reliquos ex ea cohorte, qui abjecte sustinuerant impetum grassatorum, ad pedestrem conpegit militiam; 21. 5. 2 (reading ambiguous): ut igitur quae proposui abjectis (abjectius conj. Vales!) absolvam . . . [abjectius = simplicius according to Vales. He does not give examples. Cf. Wagner Amm. II p. 401: abjectius placebat etiam Ernestio. Fortasse tamen subst. aliquod excidit, ambagibus, lenociniis vel simile (ambagibus supp. Cl.)] Cf. et Cic. Tusc. II 32 (54): ut enim fit in proelio, ut ignavus miles ac timidus, simul ac viderit hostem, abjecto scuto fugiat quantum possit ob eamque causam pereat non numquam etiam integro corpore, cum ei, qui steterit, nihil tale evenerit, sic qui doloris speciem ferre non possunt abjiciunt se atque ita adflicti et exanimati jacent; . . . sed hoc quidem in dolore maxime est providendum ne quid abjecte, ne quid timide, ne quid ignave, ne quid serviliter muliebriterve faciamus . . . (It often appears that Amm. is well acquainted with the Tusc. Disputationes); Tac. Dial. 8: nam quo sordidius et abjectius nati sunt (cf. Gudeman in edit. sua ad h. l.); Gellius 2. 6: reprehendunt (sc. Vergilius) quasi incuriose et abjecte verbum positum

in his versibus (with altered meaning). As for the compar. of the adv. cf. ad 14. 6. 12 (p. 14. 20) and especially Hagend. St. Amm. p. 135 sq. (and note 4 p. 135 sq.), from the ex. of which appears distinctly the influence of the clausula on this partiality for the comp., which better than the positive fits in this rhythmical prose.

2. 3. **ne se proiiceret abiectius cavens, parum tuto loco innocentiam stare medullitus gemens.** Homoiot. in two equal clausulae. (I). Cf. 15. 2. 4: Arbetio, ad innectendas letales insidias vitae simplici perquam callens (dialysis!) et ea tempestate nimium potens (twice cl. II); 15. 11. 16: a Poeninis Alpibus effusio copiae fontium Rhodanus fluens et proclivi impetu ad planiora degrading, proprio agmine ripas occultat et paludi sese ingurgitat (cl. I, cl. II, cl. I, cl. II); 14. 2. 6: etiam si lapsantibus plantis fruticeta prensando vel dumos, ad vertices venerint summos (twice cl. I); 15. 5. 23: mirabamur illam sententiam Tullianam, ex internis veritatis ipsius promulgatam (twice cl. III; as for ipsius cf. Harmon p. 211); Blomgren p. 126 sq. for similar ex.; and ad 15. 9. 7, 15. 5. 28, 15. 10. 4, 15. 4. 3.

2. 3. **parum tuto loco innocentiam stare medullitus gemens.** p. 39. 24—25. Cf. Sall. Jug. 14. 4: sed quoniam parum tuta per se ipsa probitas est; 31. 1: innocentiae plus periculi quam honoris est; Fesser p. 13. For medullitus gemens cf. ad 14. 1. 9 (p. 3. 18).

2. 3. **ut ad successores officiorum, . . .** $\sim \sim \sim \sim \sim \sim /$ p. 39. 26—
more poscente, $\sim \sim \sim \sim \sim /$ p. 40. 1.
solum transire lictores. $\sim \sim \sim \sim \sim \sim //$

Cf. 14. 6. 17: velut tessera data castrensi . . . $\sim \sim \sim \sim \sim \sim /$
iuxta vehiculi frontem $\sim \sim \sim \sim \sim \sim /$
omne textrinum incedit $\sim \sim \sim \sim \sim \sim //$

and 28. 6. 6: diebus ibi quadraginta consumptis, . . . $\sim \sim \sim \sim \sim \sim \sim \sim /$
nullo temptato, $\sim \sim \sim \sim \sim /$
idem discesserat comes. $\sim \sim \sim \sim \sim \sim \sim //$

and perhaps 16. 2. 12:

elique jam adventanti $\sim \sim \sim \sim \sim \sim /$
<acies> Germanorum $\sim \sim \sim \sim \sim \sim /$
pugnam intentans occurrat. $\sim \sim \sim \sim \sim \sim //$

(acies suppl. Pighi). Cf. Pighi St. Amm. p. 36 sq.

- p. 40. 1—6. **2, 3, 4 transire . . . transitores.** Cf. 14. 8. 13: *cautos . . . cautissimas*; 31. 2. 14—22: *qui detractis peremptorum hostium cutibus, indumenta sibi equisque tegmina conficiunt bellatorius . . . detractas pelles pro faleris jumentis accomodant bellatoriis*; 16. 12. 42: *pulsis disiectisque equitibus nostris, primam aciem peditum incesse, eam abjecta resistendi animositate pulsuri*; Schneider Q. Amm. p. 31.
- p. 40. 3. **2. 4. Arbetio.** Cf. ad 14. 11. 2 (p. 31. 12).
- p. 40. 3—4. **2. 4. ad innectendas letales insidias vitae simplici perquam callens.** Wagner explains: *vitae simplici: quam vivit, qui, altiora non appetens, facit, quod suum est*; in my opinion Troß translates better: „zu verderblicher Umstrickung eines mit Ränken nicht vertrauten Mannes äußerst geschickt.“
- p. 40. 4. **2. 4. perquam callens.** Cf. 18. 3. 8: *perquam notum*; 18. 9. 1: *perquam brevem*; 19. 9. 4: *perquam fidum*; *perquam gnarus*: 18. 2. 2; 27. 5. 3; 28. 1. 7; *perquam opportunus*: 25. 7. 9; 26. 7. 10; 30. 5. 2; with superlative: 21. 16. 7 and 24. 1. 3 (*perquam scientissimus*). Cf. Hofmann-Leum. p. 462: „altlat . . . Archaisten“. A variation on this 28. 1. 7: *adprime callentis* (also archaism; cf. Hoffm. Lat. Umg. spr. p. 77). And 15. 7. 8: *scientissime callens*. Cf. et Fesser p. 42.
- p. 40. 4—5. **2. 4. subterraneus serpens.** The adj. *subt.*, somewhat rare, among others in Cic., Colum., Plin. N. H., Tac., Seneca, Juven., Pallad. Cf. ad 14. 1. 8. (p. 3. 6—8). As for the alliteration cf. Hagendahl abund. p. 163 sq.; Petschenig Phil. 56 p. 556 sq.; Blomgren p. 130. note 1.
- p. 40. 5. **2. 4. foramen subsidens occultum.** Cf. 23. 6. 23: *milites fanum scrutantes invenere foramen angustum*; also classical. *Subsidens* can be part. of *subsideo* and *subsido*. The two verbs are occasionally mixed up in manuscriptis. Here probably from *subsido* with acc. of direction, unknown to me in class. lit. Cf. 24. 4. 29: *exin profect <ur>o imperatori, index nuntiaverat certus, circa muros subversi oppidi fallaces foveas et obscuras, quales in tractibus illis sunt plurimae, subsidisse manum insidiatricem latenter, ut etc.*
- p. 40. 5. **2. 4. aduultu subito.** Cf. Hagendahl St. A. p. 37: „Voce a Verg. ficta: Aen. 5. 442 *variis aduultibus inritus arguet, mirum in modum Amm. delectatus est. Nam cum secundum Verg. abl. plur. singulis locis Tac. Cypr. Gall. Mart. Cap. alium casum Prud. semel et Greg. Tur. bis exhibent,*

multo plura exempla ipse praebet. Atque plerumque (6^{tes}) abl. sing. legitur, velut 27. 10. 6 ne repentino invaderentur aduultu, quater abl. plur., velut 20. 11. 15 ferire muros aduultibus densis (de ariete), semel acc. plur. 24. 8. 5.“ Cf. 29. 3. 3; 20. 8. 10; 21. 12. 13; 21. 12. 21; 31. 6. 3; 22. 8. 14; 23. 1. 3; Thes. II p. 913.

2. 4. aduultu subito. Amm. uses *subitus* and *repentinus* without p. 40. 5. any difference of meaning. According to Blomgren p. 118 (annot. 2): „*saepius repentinus quam subitus scripsit, siquidem illud fere 45^{ies}, hoc autem fere 30^{ies} inveni. Contra adv. subito magis in deliciis habuisse videtur quam repente, siquidem 31 repente, 47 subito numeravi.*“ According to Löfst. Peregr. p. 168 *subito* belongs to colloquial speech, *repente* to distinguished and rhetorical style. Cf. 21. 12. 21: *repentino aduultu*; 21. 12. 13: *repentinis aduultibus*; 27. 10. 6: *repentino aduultu*. But always *malum repentinum* and *impetum repentinum* (cf. for the other ex. Blomgren *ibid.*) From all these ex. appears anew Amm.'s leaning, in spite of his studied efforts at variation, towards repeating the same or almost the same expressions, an inclination which seems to be in contrast to his love of variation.

2. 4. ita ille odio alienae sortis etiam post . . . militiae munus. p. 40. 6. Cf. Petsch. Phil. 50 p. 340: *ita ille odio alienae sortis (addiemae sortes V) etiam post summum (Bentley) militiae munus. Palaeogr. in my opinion the best conjecture. Post summum militiae munus must mean then: post summum adeptum mil. munus, which is rather strange. Cf. et 16. 6. 1: in comitatu vero Augusti, circumlatrabat Arbetionem invidia . . . instabatque ei strepens immania comes Verissimus nomine, arguens coram, quod a gregario ad magnum militiae culmen evectus, hoc quoque non contentus (ut parvo), locum adpeteret principalem; 22. 3. 12: Eusebium super his, cui erat Constantiani thalami cura commissa, alte spirantem . . . quem ab ima sorte ad usque iubendum imperatoria paene elatum, ideoque intolerabilem . . . ; annot. Vales. Gronov. ad h. l. (in edit. Wagn. II p. 107 sq.). Summum militiae munus. Arb. was magister equitum.*

2. 4. nec laesus aliquando nec lacessitus. Cf. Liv. 5. 27. 7: *nec laesi nec lacessiti a nobis. Alliterating synonyms. Cf. Hagendahl Abund. p. 163 sq. and E. Wölfflin, Über die alliterierenden Verbindungen der lat. Sprache (Sitz. Ber. d. bayr. Akad. d. Wiss. 1881 Bnd. II p. 1—94) p. 63.*

- p. 40. 7. 8. 2. 4. *inexplebili proposito conscientiam polluebat*. Cf. Tusc. 4. 9; 5. 6; Liv. 28. 17. 2; Seneca ad Helv. 15. 1: ubi colloquia quorum inexplebilis eram?; Liesenberg (1888) p. 24 sq. A variation on this is 21. 16. 17: augebat etiam amaritudinem temporum flagitatorum rapacitas inexpleta (the latter a poetical word, not in classical prose; cf. Hagendahl St. A. p. 48). *conscientiam polluebat*. Wagner annot.: „Christianum magis loqui quam gentilem putes; sed Tac. Ann. 3. 50 itidem: polluere mentem.” (Clutorius Priscus mentem suam et aures hominum polluerit).
- p. 40. 8—10. 2. 5. *igitur paucis arcanorum praesentibus consciis, latenter cum imperatore sententia . . . id sederat*. Praesentibus is a reading of Heraeus for the textual word: praefectibus. In my opinion there is no reason to alter this. Which praefecti are meant cannot be decided with certainty. As the trial is held at Milan, the capital of the praefectura Italia, they may have been the praef. praet. of Italia, Gallia and Illyricum and the praef. urbi of Rome, (cf. ad 14. 6. 1, p. 12. 8 and ad 14. 7. 9, p. 20. 14—15), because these praef., as extraordinary members, often took part in the sessions of the consistorium sacrum (cf. Stein, Spätr. Gesch. I p. 170; Hermesdorf p. 297 and p. 299; both w. lit.).
- p. 40. 10—12. 2. 5. *id sederat ut . . . Ursicinus indemnatu occideretur, ut quondam Domitius Corbulo dicitur caesus* (z ~ ~, z ~) Cf. 25. 4. 24: unde caesi ad indignationem exercitus nostri, capti militares aliquoties numeri, urbes excisae (z ~, ~ z ~); 26. 7. 1: qui intra regiam apparebant (z ~ ~, ~ ~ z ~) aut parere desierant (Gardth. apparere). Cf. Hagend. St. Amm. p. 110; Pighi St. Amm. p. 62 (with ex. from other late authors).
- p. 40. 10. 2. 5. *nocte ventura*. = proxima nocte. Venturus used attrib. once in Cic. (Tusc. 4. 7); nowhere else in class. prose. Then Verg. Ovid. Prop. and post-class. writers. Cf. Hofm.-Leum. p. 606 sq.
- p. 40. 11. 2. 5. *Domitius Corbulo*. The person referred to is Cn. Domitius Corbulo, the famous general of Claudius (41—54) and Nero (54—68), well-known for his victories on the Frisians and Chauci (A. D. 47) and the Armenians and Parthians (A. D. 55—66). When Nero made his tour of Greece, he became suspicious of Corbulo and sent for him, upon which he committed suicide (A. D. 67). Cf. Niese-Hohl p. 277, 319, 321 sq. (w. lit.); Prosopogr. Imp. Rom. III² (1943), p. 45, n. 142 (Groag).

2. 5. *in conluvione illa Neroniani saeculi*. Cf. Cic. in Vatin. 9: p. 40. 12. quae in Gracchorum ferocitate et in audacia Saturnini et in colluvione Drusi (= in the confusion Drusus had caused), et in contentione Sulpicii vixerunt; Amm. 27. 4. 14: conluvione ciborum; 31. 9. 5: porro siqui (sc. Taifalus) jam adultus aprum exceperit solus vel interemerit ursum immanem, conluvione liberatur incesti. In the latter meaning also e. g. Hieron. Ep. 69. 3. 5: omnia scorta, publicae conluvionis sordes, impietas in deum, parricidium et incestum in parentes atque in extraordinarias voluptates utriusque sexus mutata natura Christi fonte purgantur.

2. 6. *differri praeceptum est*. For this unclass. constr. cf. ad 14. 5. 7 p. 40. 15. (p. 11. 15) and Hofm.-Leum. p. 584 sq. and p. 589; and: 15. 3. 9; 15. 7. 2; 20. 4. 6; 29. 3. 5.

2. 7. *Iulianum*. Cf. Komm. I p. 39 and p. 43 sq. (Stammtafeln). p. 40. 16. And ad 15. 2. 8. (p. 40. 23) and 15. 2. 7. (p. 40. 18).

2. 7. *perductum*. „Tamquam reum” (Wagner); cf. 15. 2. 10: perductus est . . . Gorgonius; Dig. 19. 1. 43: cum . . . heredem ad praetorem perduxissent; 27. 2. 4. ibid: is a cognatis . . . perductus ad magistratum.

2. 7. *Iulianum . . . gemino crimine . . . implicitum: quod a Macelli fundo in Cappadocia posito ad Asiam demigrarat liberalium desiderio doctrinarum, et per Constantinopolim trans-euntem viderat fratrem*. Cf. Blomgren op. cit. p. 45: „et ante per jam inde a Gelenio addunt editores, asyndeton recte, opinor, Heilmann defendit (Wochenschr. f. Kl. Phil. 27 p. 1062).” The asyndeton is frequently not recognized in Amm. and then corrected. For more examples cf. Blomgren ibid. and the preceding pages. O. Guenther, Quaest. Ammianaeae crit. p. 12 sq. accuses Amm., with regard to the contents of this information, of inaccuracy or gross carelessness. His information does not tally with that of other writers: 1^o Julianus leaves his country-seat Macellum and first goes to Constantinople; 2^o Julianus and Gallus meet again at Nicomedia, not in Constantinople; 3^o ad Asiam in stead of ad Bithyniam (where Nicomedia is situated, to which place J. went after his sojourn in Constantinople) is surprising. (Cf. et. Valesius in Edit. Wagner II. p. 108 sq.). He then proposes to read: quod a Macelli fundo in Cappadocia posito Constantinopolim demigrarat liberalium desiderio doctrinarum ac

per Asiam transeuntem viderat fratrem. This seems to me inadmissible. Undoubtedly Amm.' information is not correct (or careless), but it may be defended. 1^o: the first part omits his stay in Constantinople because it was shorter and less interesting than that at Nicomedia; 2^o transeuntem is used as a participium perfecti (aoristi); cf. Hofmann p. 604 sq.: „Das Spätlat. findet z. T. unter dem Einflusz des Griechischen in der Übersetzungslit. in dem Part. Praes. ein bequemes Mittel, das fehlende Part. Perf. Akt. zu ersetzen . . . manchmal ist dabei das Part. Praes. zur Fixierung der Vorzeitigkeit durch ante verstärkt . . . Das Gleiche gilt für spätlat. Dichter wie Sedul., Coripp., Drac., die oft, z. T. aus metrischer Bequemlichkeit, intr. Part. wie fugiens, moriens, periens, nascens, vincens, mit Vergangenheitsbedeutung gebrauchen." (with Lit.). Cf. et. Draeger über Synt. Tac. p. 84 (must be used with great caution!); 3^o Asia does not refer to the diocese of Asia (dioecesis Asiana), for Cappadocia I and II besides Bithynia belong to the dioecesis Pontica. Neither Asia proconsularis of this time, nor Asia, the ancient Roman province. The latter, arising from the empire of Attalus III, has never included Bithynia, though it has Mysia with Aeolis, Lydia with Ionia, Caria with Doris, then Phrygia (116 B.C.) and under Vespasianus even Lycia and Rhodus. Asia proconsularis of the late-Roman Empire was much smaller: it included the West-coast from about Adramyttium as far as the Maeander. The only thing left is to take Asia as Western Asia Minor; so that Bithynia also comes under it. This meaning is unknown to me. But it is not improbable that, coming from the interior (of Cappadocia) the so important Westcoast with its big towns and ports with the extension of the old idea (provincia) Asia, was called in short Asia.

Cf. et.: Not. Dign. Böcking 1. p. 276; Ptolem. ed. C. Müller p. 806 sq.; Goyau op. cit. p. 453; Bidez p. 38 sq., 50, 65 sq. (with lit.).

Note. W. Koch, Kaiser Julian der Abtrünnige (Jahrb. f. Class. Phil. 1899, Suppl. Bnd. 25, p. 365 sq. says: „Der zweite Anklagepunkt ist schwer mit Julians Widerlegung in der Epistula ad Athenienses in Einklang zu bringen. Julian schreibt: „Jedoch war mir, (das schwöre ich) bei den Göttern, mein Bruder selbst nicht im Traume begegnet, und er hatte mich nicht gesehen. Denn ich verkehrte nicht mit ihm, ich besuchte ihn nicht, ich ging nicht zu ihm und schrieb ihm nur selten und über geringfügige Sachen." Wie reimt sich das nun mit dem Zugeständnis Julians er habe seinen Bruder — d. h. mit Erlaubnis des Kaisers — wirklich gesprochen? Denn das bedeuten doch wohl die Worte: neutrum sine jussu fecisse = er habe beides gethan, aber mit

Genehmigung des Kaisers? Die Zusammenkunft im Jahre 351 zu Nicomedia ist hier natürlich nicht gemeint; damals war Gallus noch nicht staatsfeindlich oder gefährlich. Hat er in den später geschriebenen Commentaren nur deshalb zugegeben, dass er seinen Bruder besucht habe, weil das Leugnen dieser Tatsache jetzt nicht mehr nützte? etc." In my opinion is indeed meant the visit of the year 351, as for the other visit (when Gallus was called away, never to return) the emperor would never have given his assent. Secondly any meeting between Julianus and Gallus, after the latter's dismissal, might be looked upon and explained as dangerous by the court-clique. With the rest of the argumentation of Koch and J. G. Sievers (Studien zur Geschichte der römischen Kaiser, Berlin 1870. Über die Jugendzeit des Julian p. 228) on this point in question I can only partly agree.

2. 7. ut iniquitas aestimabat. Tross translates excellently: „... den die Bosheit in doppeltem Vergehen befangen glaubte . . ." Cf. p. 40. 17—18. 14. 9. 6.; temporum iniquitati insultans. The meaning: wickedness, sin, badness is more often the interpretation in Amm. than: hardness, injustice, iniquity, etc. For the subst. abstr. in -tas cf. Liesenberg 1888 p. 18 sq.

2. 7. Macelli fundo. „Au fond de l'Anatolie, sous les cimes neigeuses du mont Argée, d'où les anciens prétendaient découvrir un horizon presque infini, s'étend une région de contreforts boisés qui est une des plus sauvages de l'âpre Cappadoce. On y trouvait jadis, du côté de la plaine de Césarée, une délicieuse et paisible résidence: le domaine imperial de Macellum. Entouré de pâturages et de forêts, et comme perdu loin des cités affairées de la cote, ce palais convenait bien pour tenir en reclusion des princes que l'on voulait rendre inaccessibles à l'esprit de révolte." (Bidez p. 22 and for detailed lit. p. 360 sq.).

Julianus stayed here from 342 (?), [at any rate after the death of Constantinus II in 340, and the decease of his tutor Eusebius of Nicomedia in 341 (342?); cf. Goyau p. 439 and Bidez p. 22] until 348(?) [cf. Goyau p. 452 and Bidez p. 38].

Not mentioned in Not. Dign. (Böcking) and Synekdemus Hieroclis etc. (ed. Honigmann). Cf. et. W. Koch, Kaiser Julian der Abtrünnige Jahrb. f. class. Phil. 1899 Suppl. 25, p. 356 sq.

Note. For the reader's convenience follows a short chronological summary (but the chronology is uncertain!)



- a. 331 (year of birth) — 337 (murder of his father) at Constantinople.
 - b. 337/338—342: residence at Nicomedia (till 339/340 with bishop Eusebius of Nicomedia), Mardonius.
 - c. 342—348. Banishment to Macellum. Georgius.
 - d. 348—349. Constantinople. Nicocles. Ecebolius.
 - e. 349—351. Second stay at Nicomedia (banishment). Acquaintance with the works of Libanius and his circle.
 - f. 15th March 351. Gallus becomes Caesar.
 - g. [The latter had stayed at Tralles or Ephesus after 337, when he was banished from Const. together with Julianus, and from 342 till 348 at Macellum. From there he was summoned to court, at Constantinople or elsewhere, where Constantius was staying and lived there in a kind of captivity].
 - h. April/May 351. Gallus meets his brother at Nicomedia on his journey from the court of Constantius to his future residence Antiochia.
 - i. after April—May 351. Julianus is allowed to leave Nicomedia. Aedesius at Pergamum; Chrysantius and Eusebius, pupils of Aedesius. Maximus and Chrysantius at Ephesus. Conversion to paganism (351).
 - j. 352—354. Third residence at Nicomedia (mainly). Second meeting with Gallus, when the latter travels from Antiochia to Constantinople.
 - k. End of 354. Execution of Gallus.
- After this until 355 Jul. at Milan and Comum. On the journey out he visits Ilium and has a look at the temples there.
- l. With the aid of Eusebia Julianus is allowed to travel to Greece, the false accusation of laesa majestas being disproved in a personal interview between Const. and Jul.
 - m. Action against Marinus and Africanus for high-treason.
 - n. Julianus is stopped on his journey to Greece in consequence of suspicions (cf. m.).
 - o. in the middle of the year 355 Julianus arrives in Greece, after having been allowed to continue his journey.

p. 40. 18—
p. 41. 2.

2. 7—8. quod . . . ad Asiam demigrarat liberalium desiderio doctrinarum . . . procudendi ingenii causa ad Graeciam ire permissus est. Cf. Enßlin. Zur Geschichtsschr. Amm. p. 36: „Zu dem Ideal eines gebildeten Mannes gehörte für Amm. sicherlich, dasz er beide Sprachen beherrschte. Wie er sich aber im einzelnen dies Ideal weiter ausgestaltet dachte, daß er in seiner Person zu verkörpern versucht haben dürfte, dafür kann uns die Lieblingsgestalt unseres Historikers, sein Julian, einen Fingerzeig geben. In der Art, wie er von dessen Geistes-

bildung redet, dürfen wir die Richtlinien sehen für sein eigenes Bildungsziel. Es ist das Verlangen nach rhetorisch-philosophischer Ausbildung, das den jungen Julian beherrscht." Cf. 14. 6. 1: Orfitus . . . vir quidem prudens et forensium negotiorum oppido gnarus, sed splendore liberalium doctrinarum minus quam nobilem decuerat institutus; 16. 7. 5: (Euthierus, praepositus cubiculi) litteris quantum tali fortunae satis esse poterat eruditus; 16. 5. 7: sed tamen cum haec effecte pleneque colligeret (sc. philosophiam) nec humiliora despexit, poeticam mediocriter et rhetoricam † . . . et nostrarum externarumque rerum historiam multiformem. Super his aderat latine quoque disserendi sufficiens sermo; ad 15. 13. 1 (p. 69. 10—11).

2. 8. qui (sc. Julianus) cum objecta dilueret, ostenderetque neutrum sine jussu fecisse, nefando adsentatorum coetu perisset, ni adspiratione superni numinis Eusebia suffraganta regina, ductus ad Comum oppidum . . . ad Graeciam ire permissus est. In this „sententiarum periodis condicionalibus apodosis praecedit, protasis ni particula inducta subsequitur, in hac vero protasi verbum finitum proprium participio commutatur, quod alii cuidam notioni verballi subjungitur, quae ita condicionalis illius periodi fit particeps, cum re vera extra eam adjungi debuerit." (Blomgren p. 79 sq.). Cf. 16. 11. 4: . . . Laeti barbari . . . invasere Lugdunum incautam, eamque populatam vi su<bi>ta concremassent, ni clausis aditibus repercussi, quicquid extra oppidum potuit inveniri, vastassent (= Lugdunum concremassent, ni . . . repercussi essent. Quo facto . . . vastaverunt); 26. 7. 13; 28. 4. 3; 31. 9. 4. (For the indicat. irrealis in 2. 8. cf. ad 14. 3. 2 (p. 7. 17—18)).

p. 40. 20—
p. 41. 2.

2. 8. adspiratione superni numinis. As most educated pagans of these times Ammianus, too, is in many respects a monotheist. The supreme idea of God he renders by numen, sometimes deus, without any different meaning. The numen which rules everything, is magnum, superum, supernum, summum, caeleste, divinum, sempiternum, perpetuum, once efficax (14. 11. 25). For Amm.' religious ideas cf. Enßlin, Zur Gesch. schr. Amm. p. 48 sq.; Witte op. cit. I p. 36.

p. 40. 22.

2. 8. adspiratione superni numinis Eusebia suffragante regina. Cf. 26. 1. 5: Valentinianus, nulla discordante sententia, numinis adspiratione caelestis electus est . . . Adspiratio metaphorical = inspiratio is non-classical, especially Christian and late-Lat. (Cf. Thes. II p. 835).

Cf. et. Aug. civ. 13. 24 I p. 595 (Dombart): Quod itaque Graece πνοή dicitur, nostri aliquando flatum, aliquando spiritum, aliquando inspirationem vel aspirationem, quando etiam Dei dicitur, interpretati sunt; πνεῦμα vero numquam nisi spiritum, sive hominis . . . sive pecoris . . . sive istum corporeum, qui etiam ventus dicitur, . . . sive jam non creatum, sed creatorem . . . (cf. anima I, 14. 19).

Note. Adspirare (= afflare) Amm. uses 19. 6. 1: adspiravit auram quandam salutis fortuna and in the meaning adnitor 24. 3. 8: cunctorum adspirante consensu, auctoritatem ejus . . . extollebat in caelum.

p. 40. 22. 2. 8. Eusebia. Cf. Stammtafeln Komm. I. p. 48 VI (a) and Bidez, La vie de l'Empereur Julien, p. 108 sq. (c. annot.). To Eusebia's protection Julianus owes much, perhaps even his life. Cf. et. ad 14. 10. 5 (p. 28. 21) Eusebius.

p. 40. 23. 2. 8. Comum oppidum. „Die Stelle des Ammian bietet noch eine Schwierigkeit. Amm. sagt ganz kurz, Julian sei durch Eusebia gerettet und dann nach Comum in der Nähe von Mailand geführt worden, von wo er nach kurzer Frist die Erlaubnis erhielt, nach Griechenland zu reisen, um sich weiter aus zu bilden. Der Aufenthalt in Comum wird sonst aber nirgends erwähnt; in der Epistula ad Athenienses (274A) sagt Julian, daß er sechs Monate mit dem Kaiser dieselbe Stadt (Mailand) bewohnt habe; in dem Briefe an Themistius (259D) daß er damals am Hofe lebte. Die Zeit in Comum verbracht, musz also sehr kurz gewesen sein; [da Julian in der Epistula ad Ath. 272D schreibt: „... mich aber ließ er nur mit genauer Not wieder los, nachdem er mich während sieben ganzer Monate hin und her gezerrt und eingesperrt gehalten hatte.“] von da ist er dann, anstatt nach Hause, nach Griechenland gegangen.“ (W. Koch op. cit. p. 366 sq.). Cf. ad 15. 2. 7. (p. 40. 18) sub k. The town belongs ± 390 to the Provincia Liguria, just as Mediolanum, (provincia annonaria of the dioec. Italiciana), is the see of a bishop (Pieper Tab. 10) and is mentioned Not. Dignit. Böcking p. 118 as the seat of a praefectus classis Comensis cum Curis ejusdem civitatis Como (Curae = ± cursus publicus) Cf. et. Böcking annot. ad h. l. p. 1009 sq. (with lit.); Ptolem. Müller I. 1. p. 341; Wesseling p. 278 (Itin.).

p. 41. 1. 2. 8. procudendi ingenii causa. Cf. 16. 5. 6: ad procudendum ingenium vertebatur; 31. 16. 9: scribant reliqua potiores aetate <et?> doctrinis florentes. quos id [si libuerit] adgressuros, procudere linguas ad majores moneo stilos; Cic. de Orat. 3. 121: . . . procudenda lingua est.

2. 9. Nec defuere deinceps ex his emergentia casibus, quae p. 41. 2—4. dispice secundis auribus contigisse tum punirentur ex jure vel tamquam inrita diffleebant et vana. Heraeus, Cl.: quae diceret secundis avibus contigisse, dum punirentur etc. Thörnell rightly objects to the changing of dispice (ad script. Hist. Aug. etc. p. 8 sq.); cf. ad 14. 9. 1 (with ex.). Gardth. therefore: quae dispice<res> secundis avibus contigisse, dum punirentur. This reading seems to me less suitable for palaeographical reasons. Thörnell's difficulty: „dispiciendi verbum servatur . . . quidem, sed significatione non judiciali“, I cannot share (cf. ad 14. 9. 1). Besides in my opinion his conjecture is preferable: quae, dispici <si> secundis avibus contigisset, <t>um punirentur ex jure vel tamquam inrita diffleebant et vana („Und auch nachher fehlte es nicht an Anklagen, die jenen Unfällen entsprangen und, wenn es sich unter günstigen Umständen so fügte, daß sie näher untersucht wurden, dann gerechte Strafe herbei führten, oder aber als unbegründet zu nichte wurden. His opponuntur sequentia, ubi dicitur quosdam mercede (h. e. non ex jure) absolutos esse, alios abrupte (h. e. parum dispecta causa) damnatos“). There need not be any objection to tum: punirentur is conjunctivus consecutivus and is on a level with the imperf. diffleebant. This variation does not present more difficulties than one dependant on dum, as variation of modus is very frequent in Amm.

2. 9. tamquam inrita diffleebant et vana. Cf. 19. 11. 6: vana p. 41. 3—4. quaedam causantes et inrita; Suet. Cal. 38. 2; Hagend. abund. p. 182. The verb stands between the two synonymous adjectives. Likewise e. g. 15. 11. 16 (p. 67. 11—12; cf. ad h. l.); 21. 1. 12: fixa sunt et stabilia; 31. 5. 14: ad portum aliquem tranquillum properabant et placidum; etc. In the same way we find the noun between two synonymous adj., f. i.: 30. 10. 3: quietum quidem virum et placidum; 31. 6. 4: opimas regiones et uberes; 25. 10. 14: vasta proceritate et ardua (cf. Gell. N. A. 9. 11. 5: dux . . . Gallorum vasta et ardua proceritate; Amm. has changed the place of the words!); etc. That Amm. applies this hyperbaton for the sake of the clausula Hagendahl and Blomgren have clearly proved. These cl., however, are also metrically correct in far more cases than W. Meyer, C. M. Clark and A. M. Harmon would accept. Cf. (cl. I = cursus planus): 30. 5. 6: cum vitae jam taederet et lucis (creticus + trochaeus); 24. 5. 11: operam convertit et curam (cr. + tr.); 23. 6. 3: temperator oboedientium fuit et arbiter lenis (cr. + tr.); 30. 1. 12: maeandros faciebat et gyros (cr. + tr.); and (cl. II = cursus tardus): 28. 1. 34: lites minabatur et jurgia (2 cretici); 17. 12. 10: concessionem

ejusdem fere temporis rebus novi quid aggressurus est." (with the numerous instances, e. g. of: dum haec aguntur, quae dum aguntur, dum haec agitantur, dum haec struunt, etc.).

p. 41. 14. 3. 1. **militarium**. For militares cf. ad 14. 5. 3 (p. 10. 15). It forms a contrast here with aulicis, just as 15. 5. 12 (dispicientibus consistorianis et militaribus universis) with consistoriani and also 15. 6. 1 (et inquirentibus in negotium consistorianis atque militaribus).

p. 41. 15. 3. 1. **Aquileiam**. The town is more than once mentioned by Amm. in 21. 11—12 and 22. 8. 49, with reference to the fact, that in the rebellion of Julianus against Constantius, it takes side with the latter (Autumn/Winter 361). For these events etc. cf. *ibid.* In $\pm$ 390 it is the capital of the provincia annonaria: Venetia et Histria, situated in the dioecesis Italiciana (Praefectura Illyricum Italia et Africa). Ecclesiastical metropolis (Pieper 10). Cf. Strabo 4. 6. 9—5. 1. 9 (passim); Mela 2. 4. 61; Ptolemaeus 3. 1. 25; in the N. D. (Böcking II p. 46 sq.) are sub dispositione v. ill. comitis sacrarum largitionum (cf. ad 14. 7. 9 p. 20. 14): 1. Praepositus thesaurorum per Italiam Aquileiae; 2. Procurator Gynaecii Aquileiensis Venetiae inferioris (weaving-mill and spinning-mill). 3. Procurator Monetariae Aquileiensis; and according to N. D. *ibid.* p. 118: In provincia Venetia inferiore, is a: Praefectus classis Venetum Aquileiae (cf. et. annotat. *ibid.* p. 347, 350, 354, 445, 587, 995, 1119 sq.); Tab. Peut. IV. 5; Wesseling Itin. p. 124, 126, 128, 559.

p. 41. 15. 3. 1. **aulicis**. Cf. Krebs Antib. I p. 223: „Klassisch ist aula aber schon bei Cicero (fam. 15. 4. 6) in der Bedeutung Hof eines Fürsten, fürstliche Macht, vgl. Saalfeld thesaurus italo-graecus s.v.; und so heissen auch schon bei Nep. (Dat. 5. 2) die Hofleute im allgemeinen aulici, sowie die höhern purpurati genannt wurden. Beide sind also für diese Begriffe die echten Wörter." Cf. Suet. Cal. 19; Aur. Vict. Caes. 5. 14; *ibid.* Epit. 41. 10; Mamert. grat. actio Jul. 11; 19; according to Heumann-Seckel the word does not seem to occur in the Cod. Theod. or the Corpus juris, it does occur in the post-Theodos. Novellae.

p. 41. 15—16. 3. 1. **membris . . fluentibus**. Wagner: = tabescentibus. For this meaning (flee away, melt away, perish) cf. Cic. Tusc. 2. 22: . . nec in dolore magis quam eadem in voluptate, qua cum liquescimus fluimusque mollitia, apud aculeum sine clamore ferre non possumus; Tib. 2. 3. 51: Ut mea luxuria Nemesis fluat utque per urbem // Incedat donis conspi-

cienda meis; Curtius Rufus 10. 3. 9: Luxu omnia fluere credideram et nimia felicitate mergi in voluptates; etc. Fluere is here identical with diffluere, in which meaning the adj. fluens is also much used. Without a subst., put in the abl., which defines the fluere, the verb seems to me to occur little in this meaning; probably late-Latin. Cf. et. Krebs Antib. I p. 600.

3. 1. **spiritum trahentes**. Cf. Curtius Rufus 3. 6. 10: „Rex", inquit, p. 41. 16. „semper quidem spiritus meus ex te pependit, sed nunc vere, arbitror, sacro et venerabili ore tuo trahitur"; Liv. 3. 6. 8: „ . . . Servilius exigua in spe trahebat animam (probably with the secondary meaning drag out = ducebat, as in Amm. above); Plin. N. H. 11. 3: nec video cur magis possint non trahere animam talia (sc. the insects) et vivere, quam spirare sine visceribus (trahere animam = spirare); Phaedrus 3. 1. 4: Hunc (sc. odorem) postquam totis avida traxit naribus; Ovid Met. 2. 229—230: ferventesque auras velut e fornace profunda // ore trahit (sc. Phaethon); Seneca de ira 2. 10: Numquid ille cujus navigium multam, undique laxatis compagibus, aquam trahit, nautis ipsique navigio irascitur? The expression is not class.

3. 1. **arcessebantur enim ministri fuisse**. With nom. c. inf.; cf. p. 41. 17. 15. 5. 28: aegre ferebat Silvanus . . . se <et> Ursicinum . . . ita fuisse despectos, ut ipse . . . commisisse in majestatem arcesceretur etc. Arcesso = to summon to appear in court, to accuse, also class. and often among other things in Cic. With this construction, however, very rare and late-Lat.. Cf. et. Tac. Ann. 4. 22: Mox Numantina, prior uxor ejus, accusata injecisse carminibus et veneficiis vecordiam marito, insons judicatur; *ibid.* 2. 27: Sub idem tempus e familia Scriboniorum Libo Drusus defertur moliri res novas; *ibid.* 13. 23: Deferuntur dehinc consensisse Pallas ac Burrus, ut Cornelius Sulla, claritudine generis et affinitate Claudii, cui per nuptias Antoniae gener erat, ad imperium vocaretur; under the influence of which constructions, the former has probably arisen.

3. 1. **Domitianus . . Montius**. For Domit. cf. ad 14. 7. 9. (p. 20. 14 sq.) p. 41. 18. and for Montius ad 14. 7. 12 (p. 21. 1).

3. 1. **et alii post eos acti in exitium praeceptis**. sc. esse credebantur. p. 41. 18—19.

3. 2 **Arbetio**. Cf. ad 14. 11. 2 (p. 31. 12).

p. 41. 19.

- p. 40. 20. 3. 2. Eusebius, *cubiculi tunc praepositus*. For Eusebius cf. ad 14. 10. 5 (p. 28. 21) and for *cubiculi praepositus* ad 15. 2. 10 (p. 41. 10—11).
- p. 41. 20—21. 3. 2. *inconsideratae iactantiae*. For *iactantia* (post-class.), among others occurring in Plin. epp. and Quint. (= *iactatio*, ostentatio) cf. Krebs. Antib. I p. 668; and for the class. *inconsideratus* cf. ibid. p. 715 sq.
- p. 41. 21. 3. 2. *nullo perspicaciter (inquisito)*. Cf. 26. 6. 1: (Procopius) *notarius diu perspicaciter militans et tribunus* (= „with distinction”); 29. 1. 38: *Quis omnibus perspicaciter inquisitis* (= exact, precise). The version is, however, uncertain and codd. min. have: *perspicacitate*. (Cf. Krebs Antib II p. 288). Hadr. Vales. add: *inquisito*. One could hesitate between: *nulla perspicacitate* or: *nullo perspicaciter* (without addition). In the latter case *nullo* neutrum seems preferable to me (*nullo* = *nulla* re, in prose post-classical and much in late-Latin; cf. Hofm.-Leumann p. 489). It is an incomplete, or perhaps rather careless *ablativus absolutus*, which can be supplemented by a participium as e.g. *inquisito*, which is taken from its context (viz. from the words: *sine innocentium sonitumque differentia* = *innocentibus sonitibusque indifferenter interrogatis*) Cf. et. Hofmann, Lat. Umgangssprache: Der triviale und sparsame Zug d. Umg. spr. (c. 157) p. 170 sq.
- p. 41. 24. 3. 2. *impletisque funerum bustis*. For *implere* c. gen. (also classical) cf. Krebs Antib I p. 694 sq. *Funus* = *corpus*, *mortuus* (corpse), very well-known poetism.
- p. 41. 25. 3. 2. *velut ovantes*. As will be known no more private triumphs are held in the time of the emperors. They are the privilege of the emperor. (Exactly since 19 B. C.). Ovationes of an emperor are not known (and not probable either). The word is synonymous here with: *triumphantes*, as it occurs more, and is literary reminiscense.
- p. 41. 25—26. 3. 2. *gesta retulerunt ad principem, erga haec et similia palam obstinatum et gravem*. Cf. ad 4. 13 (p. 46, 20—21) and 11. 16 (p. 67. 11—12); Hagend. abund. p. 179.
- p. 41. 25—26. 3. 2. *erga haec et similia . . obstinatum*. Cf. 17. 9. 3: *haec et similia multa*; 17. 12. 9: *erga haec <et> similia lenioris*; 15. 5. 5: *scrutari haec et similia*; 14. 1. 8: *adulescebat autem obstinatum propositum erga haec et similia multa scrutandi* (for the *trajectio* and the ex-

planation of this place cf. Blomgren p. 26: The heavy-typed words, which serve as attribute to *propositum multa scrutandi*, belong together; cf. et. ad h. l. Komm. I).

3. 3. *vehementius hinc et deinde . . . insidiantibus multis*. p. 41. 26—p. 42. 2.
Very rightly and elegantly Wagner annotates in edit. sua. 2 p. 111: „Haec verba primo intuitu de insidiis ipsi Constantio ex illo tempore structis videri possunt intelligenda; nexus tamen cum antecedentibus et sequentibus hoc voluisse Ammianum docet: Ita crevit ex eo Constantii immanitas, ut quasi terminum vitae civibus a natura constitutum praeventurus, aures animumque praeberet insidiosis delatoribus. Locus fere geminus est 29. 1. 20: erat expositus accessu insidiantium et reclusus.”

hinc et deinde. Literally: owing to this and afterwards?; or abundance? (Then perhaps et not understood by the copyist and the correct version *hinc deinde*) Cf. *ibi tum, ibi tunc, tandem denique, denique tandem, tandem sero, inde post etc.* and Hagendahl, Abund. p. 213 sq.

3. 3. *quasi praescriptum factorum ordinem convulsurus*. Cf. p. 42. 1. ad 15. 5. 1 (p. 46. 23—p. 47. 1).

3. 3. *rumorum aucupes*. Cf. Plautus Mil. Glor. 4. 1. 9: (Palaestrio) p. 42. 2. *circumspicedum ne quis nostro hic auceps sermoni siet* and Stichus 1. 2. 45: (Antipho) *num quis hic est alienus nostris dictis auceps auribus?*; Cic. de orat. 1. 55: *Ita est tibi iuris consultus ipse per se nihil nisi leguleius quidam cautus et acutus, praeco actionum, cantor formularum, auceps syllabarum* (wordsplitter, *éplucheur de syllabes*); [cf. et. Cic. pro Caec. 23. 65: *aucupia verborum et litterarum tendiculos*; Plaut. Mil. Glor. 4. 1. 43: (Palaestrio) *viden tu illam oculis venaturam facere atque aucupium auribus?*]. Plaut. Asin. 5. 2. 31: *aucupemus ex insidiis clanculum quam rem gerant*; Plato Gorgias p. 489b: *ἐπὶ μοι, ὦ Σώκρατες, οὐκ αἰσχύνηι, τηλικούτος ὢν, ὀνόματα θηρεύων, καὶ ἐάν τις ῥήματι ἀμάρτη, ἐρμαιον τοῦτο ποιούμενος*; etc.

3. 3. *honorum vertices*. Cf. ad 14. 7. 2 (p. 18. 16—17). p. 42. 3.

3. 3. *Cibyrae illi Verrini*. For the sleuthhounds from Cibra (town p. 42. 4. in Phrygia) of Verres (the notorious praet. urbanus of 74, who during his administration as propraetor of Sicilia, 73—71, plundered that district), by whom are meant the brothers Tlepolemus and Hiero from the above town, whom Verres brought with him to Sicilia, owing to

their talents as sleuths, cf. Cic. In Verrem Ac. II 4. 13. 30. 31 and 3. 11. 28: „quid? cohors ista quorum hominum est? Volusii haruspices et Cornelli medici et horum canum, quos tribunal meum vides lambere.”

p. 42. 5—6. 3. 3. per incidentia mala vexantes. Curiously expressed. Troß: „sämtliche Glieder des Staates durch die ihnen bereiteten Leiden beunruhigend,” who avoids the singular combination incidentia (intrans.) and vexantes (trans.) in his translation.

p. 42. 6—7. 3. 4. Paulus . . notarius. Cf. ad 14. 5. 6 (p. 11. 5) for Paulus and notarius; cf. et. Boak, The master of the offices p. 65; Hermesdorf op. cit. p. 296.

p. 42. 6—8. 3. 4. Mercurius . . ex ministro triclinii rationalis. Cf. Valesius ined. Wagner II p. 111 sq.: „Restituimus hic lectionem Editionis Romanae, cui codex Vaticanus et Valentinus Colbertinusque subscribunt: ea est huiusmodi: Notarius ille, hic a ministro triclinii Rationalis. Ait enim Marcellinus Mercurium hunc Rationalem fuisse, cum primus minister fuisset sacri triclinii: idque sibi volunt haec verba, a ministro triclinii: ut apud Tac. in lib. 2 Hist. c. 92 de Vitellio: Praeposuerat Praetorianis P. Sabinum a Praefectura cohortis. Malim tamen scribi: ex ministro triclinii: neque aliter a Marcellino scriptum fuisse existimo. Sed corruptioni causam dedit a et ex litterarum quaedam inter se affinitas. Eodem enim errore in lib. 14 c. 11 § 25, ubi de Adrastia sermo est, in codice Regio et Editione Rom. scriptum offendi, ultra facinorum impiorum, pro ultrix et disceptratrix pro disceptratrix: et initio huius libri, perpleae pro perplexe.” [The best survey of manuscripts and editions is found in Pighi Stud. Amm. p. 3 sq.]. In my opinion it is, however, doubtful, whether the version, suggested by Vales. is the correct one and if it should not be read according to B: a ministerio triclinii rationalis. A ministerio is used then as scrinium ab actis (Cod. Just. 1. 27. 1. 26), sollicitudo ab actis (= the care of arranging etc. the acta; Cod. Just. 2. 7. 26. 3) etc. In that case Mercurius is a rationalis (bookkeeper etc.) in the ministerium triclinii.

In the version which Vales. gives (and in which most others evidently follow him), we meet with the difficulty which rationalis is meant. There are rationales in many officia. To Valesius it is, as appears from his words, a matter of course, that is meant: rationalis triclinii, which he includes again from the context.

Minister triclinii. According to N. D. Dec. 15 sub dispositione viri spectabilis castrensis (Boak-Dunlop: The Steward of the Household) are: Paedagogia (= paedagogiani, pages), Ministeriales dominici (Boak-Dunlop: the Servants of Special Function) and the Curae palatiorum (the Caretakers of the Palace; cf. ad 14. 7. 19, p. 22. 7—8). Further we are informed: Officium autem suprascripti viri spectabilis castrensis habet: Tabularium dominicum („accountant” to the emperor), tabularium dominarum Augustarum, Adiutorem, Chartularium (secretary) et scrinium (bureau) ipsius et ceteros palatinos officii suprascripti (so there is a special tabularius for the emperor and one for the empress). From the Not. Dign. it cannot be understood, that the castrensis sacri palatii is: sub dispositione praepositi sacri cubiculi (cf. ad 15. 2. 10), as the folia in question are nearly entirely mutilated. But this is in itself probable and is also stated by the Cod. Theod. 11. 18. 1: Tirones quorum pretia exhausti aerarii necessitas flagitavit praebere noluimus inlustri viros praefectos . . . non praepositum vel primicerium sacri cubiculi, non castrensem, non comitem sacrae vestis, non ceteros cubicularios; etc. (cf. Gothofr. annot. ad. h. l.; Boak-Dunlop op. cit. p. 208 for different opinions, with. lit.). So the ministeriales dominici are lower officials, servants etc. under the v. sp. castr. s. pal., who himself is subordinated again to the v. ill. praep. sacri cubiculi.

These ministeriales dominici are synonymous with the ministeriani and castriciani or castrensiarii. With regard to the difference between the paedagogiani and ministeriales cf. Boak-Dunlop p. 211: „The terms paedagogiani and ministeriales are rarely found in the accounts of the system after Diocletian, except in the codes, which give no indication of the duties and privileges of such unimportant servants. It seems quite apparent, moreover, that the ordinary writer made no attempt to distinguish between the two kinds of service, but spoke indifferently of ministri (Corippus in laudem Justini 2, 86), pueri (C. I. L. VI 8977), παιδάρια (Jul. Misop. 350 D), and so on. Amm. Marc. offers one illuminating remark when he says that Procopius, because of the lack of imperial robes, on his assumption of imperial rank, wore a „tunic spangled with gold, as would a regius minister, and was clad from heel to waist after the fashion of a paedagogianus puer.” (26. 6. 15: Stetit . . . nusquam reperto paludamento, tunica auro distincta, ut regius minister, indutus, a calce in pubem, in paedagogiani pueri speciem etc.). This seems to be the sole passage in general literature in which these two corps of servants are clearly distinguished.” Dunlop then justly observes, that for lack of information, we are allowed to draw conclusions

from the period of the Principate, as the higher ranks have been quite different in importance and influence in the successive periods, but surely this will not hold good for the same rather insignificant offices as are held by pages and servants. What task do these ministri accomplish? All duties that could not be performed by the curae palatii (see above) and the paedagogiani, the pages, whose function probably is: „to lend color and charm to an already gorgeous scene.” (Dunlap). So these ministri comprise, besides the fullones et vestitores et pistores et pincernae (Lampridius, Alex. Sev. 41. 3), also cooks, bakers, cellarmen, butlers, tasters, decorators, lackeys, etc. etc., enumerated by Dunlap p. 213. The ministri were divided into two large groups viz. the statuti, in permanent employ, and the supernumerarii, the supernumeraries, who were admitted by promotion to the corps statuti through vacancies in the latter's ranks. Each group was subdivided into 3 formae (sections). On this way of promotion cf. Cod. Theod. 6. 32. 2 c. annot. Gothofr. According to Dunlap it is probable that there were two castrenses, one for the emperor and one for the empress. To prove this he points to the existence of a tabularius dominicus and a tab. dom. Aug. (see above) and quotes Marcus Diaconus, Vita Porphyrii (ed. Haupt) 189. 12: τὸν εὐνοῦχον Ἀμάντιον, καστρήσιον ὄντα τῆς βασιλείας (contemporary of Arcadius 395—408). Cf. et. (in general): Cod. Theod. c. annot. Gothofr. 6. 32. 1 & 2 (De Castrensiensis) and 6. 30. 12; Not. Dign. Böcking Or. p. 266 sq. and ibid. Occ. p. 401 sq.; Boak-Dunlap p. 207 sq.; Corippus, in laudem Justini 2.84 sq.; 2. 137 sq.; 2. 213 sq.:

Iam laetus princeps divalia tecta subibat
 Amplaue gaudentes implebant atria turbae.
 Accelerant fidi, cura est ut cuique, ministri
 Obsequiis praeberere manus, promuntque feruntque
 Augustas vestes pretiosaque cingula gemmis
 Et capitis diadema sacri. cultu ipse priore
 Exuitur, tantumque uno vestitus amictu
 Constitit

Quattuor ingentem clipei sublimius orbem
 Attollunt lecti juvenes, manibusque levatus
 Ipse ministrorum supra stetit
 Egreditur princeps magno comitante senatu.
 Aduit obsequio castrorum turba virorum:

Illis summa fides et plena licentia sacris
 Deservire locis atque aurea fulcra parare,
 Regales mensas epulis onerare superbis,
 Conservare domum sanctumque intrare cubile,
 Internas munire fores vestesque parare.

Obs. 1. *Obsequium*. The typical word for obedience towards the emperor, subordination etc.; also: attendance at court, service, military retinue, orderlies. Cf. Georges (sub voce); Heumann-Seckel p. 382; Krebs Antib. p. 188 sq.

Obs. 2. *Castorum*. The adj. *castrensis* occurs in Amm. 26. 8. 5 (version further uncertain), in the same meaning as here: castra and above: castriciani etc. Castra does not mean here: court (in general). Cf. Goth. ad Cod. Theod. 6. 32. 1: „Vera quippe ratio nominis istius (sc. castrensis) est, quod in castris tantum ministrarent: Castra videl. Principis sunt, ubi privatae vitae agenda stat et subsistit Princeps et inter alia ubi epulas adcurat: ac proinde Castrenses et Castrensiarii, qui in Castris ministrant: privatae et interioris Principis vitae, et Domestici velut Ministri, eiusque familia privata. Nempe eo Castorum appellatio hoc aevo deducta, ut quod privatis domus est, id Principi Augustiori nomine Castra: Proinde extra castra, comitatus reliquus Palatinorum (= court personnel) privatis ministeriis non obsequentium: Et sic Castra non Comitatus universus sed pars eius. (Alioquin Castra Principis seu Imperatoris pro Comitatu apud A.M. 14. 5. 9; 18. 5. 6; 26. 7. 1, quomodo Graecis στρατόπεδον pro Comitatu passim: apud Athan., Julianum, Synesium). Atque adeo Castra etiam in Aula, etiam in Urbe fuere: neque Castra Aulæ aut Urbi recte opposita: Denique Castra haec et Castrensiaria a Palatio vel Comitatu velut pars a toto separanda sunt: Non ilico scilicet qui in Palatio servit aut Comitatu etiam in Castris ministrat: at qui in castris his militat etiam in Palatio militat seu ministrat: et sic Castrensiarii inter Palatinos.” (Cf. ad 14. 5. 8 p. 11, 22: comitatus and palatium; 15. 3. 1 p. 41. 14: militarium; 15. 3. 1 p. 14. 15: aulicis; 14. 11. 15 p. 33. 26: comitatenses).

Rationalis. Cf. 15. 5. 8: (Apodemius has been sent to Gallia to summon Silvanus to the court. He does not surrender the letter to S. but:) remansit adscitoque rationali, quasi proscripsi iamque necandi magistri peditum clientes et servos hostili tumore vexabat (mag. ped. = Silvanus); 22. 4. 9: Evenerat iisdem diebus, ut ad demendum imperatoris capillum, tonsor venire praeceptus, introiret quidam ambitiose vestitus.

Quo viso Iulianus obstipuit, <et> „ego” inquit „<non> rationalem iussi, sed tonsorem acciri;” 28. 2. 13: (here the tale is told of the Maratocupreni grassatores . . . in Syria prope Apamiam, who often acted in disguise) quaesitus in unum impiorum hominum globus imi<ta>tus rationalis officium, ipsumque iudicem, vespertinis tenebris lugubre clamante praecone, civitatem ingressi, ambitiosam domum cuiusdam primatis, ut proscripti iussique interfici, cum gladiis obsederunt etc. In Not. Dign. Occ. X sub dispositione v. ill. comitis sacrarum largitionum are various *rationales summarum* (cf. ad 14. 7. 9, p. 20. 14), e. g. *rationalis summarum Italiae*, — *urbis Romae*, — *Galliarum* etc.; ibid XI sub dispositione v. ill. com. rerum privatarum (cf. ad 15. 5. 4) various *rationales rei privatae*, e. g. *rationalis rerum privatarum per Illyricum*, *rationalis rerum privatarum per Italiam*, *rationalis rei privatae per Siciliam* etc.; ibid. cap. IV sub dispositione v. ill. praefecti urbis Romae: *rationalis vinorum* (cf. ad 14. 6. 1, p. 12. 8); Not. Dign. Or. XII sub disp. v. ill. com. sacr. larg.: comes et *rationalis summarum Aegypti*; ibid. XIII sub disp. v. ill. com. rer. priv.: *rationales rerum privatarum*. On *summa res* cf. Gothofred. ad Cod. Theod. 11. 9. 2 (de distrahendis pignoribus): „Eusebius (H. E. 7. 13 in Gallieni edicto) infeliciter voces summae rei expressit per haec τοῦ μεγίστου πράγματος (προστατεύων); *summa* enim rei est *summa pecunia*, καθόλου λόγος, *ratiocinium omnium pecuniarum*, quo modo et Dioni in Exc. Vales. p. 769 Aur. Eubulus dicitur τοὺς καθόλου λόγους ἐπιτετραμμένος, et in commune *Rationales Graecis καθολικοὶ dicti* apud Auct. vitae Constantini 4. 36, Athanas ep. ad solit. vit. ag. p. 847 et 849 edit. Col. s. Lips. et in Glossar. Philoxeni; et *Officiales eorum Catholiciani*. v. Gloss. Basil. v. Ῥατιοναλίους. Denique *summa* hic non adjectivo significato quasi μεγίστη, sed substantivo significato, ποσότης, κεφάλαιον καθ’ ὅλον *summa* rei ut *summa curae*, rei publicae naturae, voti, miraculi, imperii, rerum et similia . . . ceterum quia duo substantiva duriuscule coniunguntur, officium vel *rationalis summae rei*, ideo alibi *Rationalis summarum* dicitur. Errant enim qui haec duo distinguunt, quasi *rationalis summae rei* fuerit generalis, *summarum* vero particularis, ille καθολικός, hic κεφαλικός; ubi et alter error est, idem quippe sunt in Basilicis κεφάλαιον et καθόλου, nempe ratio *summa*. Tandem hic *summae rei*, Res pro facultatibus seu opibus” (cf. et. Lyd. de mag. 3. 7; N. D. Böcking Occid. p. 340 sq.) „*Rationales in provinciis bona caduca et vacantia fisco vindicabant . . . damnatorum bona et sententia iudicis proscriptorum occupabant.*” (Vales; cf. eiusd. annot. ad Amm. M. 15. 5. 8 = edit. Wagner I p. 128; and ad 22. 4. 9 = edit. Wagner I p. 440;

and ad 28. 2. 13 = edit. Wagner II p. 235 sq.). From what is told it is indeed clear, in general, what officers *rationales* are. Cf. et. Gothofred. ad Cod. Theod. 6. 22. 3; 10. 1. 7; 11. 9. 2 and ad A. M. 14. 7. 9 (p. 20. 14). For the *rationalis rei privatae* cf. ad 15. 5. 4, p. 47. 15—16 (comes rei privatae). The *rationalis vinorum* is probably the same as the *tribunus vinarii fori* mentioned by Symmachus in his Ep. X (= Relationes) 22 (= ed. Seeck p. 296) [Seeck reads here: de tribunatu suarii fori, probably under the influence of Not. Dign. Occid. cap. IV, where the *rationalis vinorum* is immediately followed by: *tribunus fori suarii*; Γ has: *vinarii*]. Cf. N. D. Böcking Occ. p. 195 sq.; Gothofred. ad Cod. Theod. 12. 6. 26; and 14. 6. 3.

Which *rationalis* is meant here by Amm.? This depends on the version. Compare the beginning of this note.

Observation. The *rationalis* should not be confused with the *ratiarius*. (Cf. ad A. M. 15. 5. 36, p. 54. 22—p. 55. 1).

Mercurius. Further unknown to me.

3. 4. *origine Persa*. So *Mercurius*, whose romanized name does not betray his origin, had become a servant of the aula interior, though he was a Persian (or Parth) and had even been promoted to *rationalis*. Orientals, mostly speaking Greek, were always in great numbers at the court; whether there were among them many „*origine Persae*” (the greatest and most powerful enemies of the Romans) seems doubtful to me. The *Persae* (Parthi) are of course very often mentioned in Amm. (cf. Indic. ed. Wagner III p. 435). A rather detailed description of the empire, the provinces, cities, peoples etc. is found in the 6th chapter of L. 23. Cf. et. ad 14. 3. 1. p. 8. 8 and the opera citata of Christensen in Komm. I and II (L'Iran sous les Sassanides, 2^{me} édit., 1944).

3. 4. *Dacia*. The country, which had been subjugated by Trajanus (98—117), was abandoned again in 270 by Aurelianus (270—275). The Goths took possession of it. The inhabitants were transferred to the South bank of the Danube, where a new province was formed from a part of Moesia: *Dacia Aureliani*. Later it was divided into *Dacia ripensis* (capital, also eccless. *Ratiaria*) and *Dacia mediterranea* (capital, also eccless. *Sardica*). ± 390 A. D. they belong to the dioecesis *Daciae*, which formed a part of the praefectura praetorio *Illyrici, Italiae et Africae*. According to N. D. Or. 3 belong to the dioecesis *Daciae*: the two above-mentioned *Daciae*, *Moesia prima* (3), *Dardania* (4) and (5) *Praevalitana* et pars *Macedoniae salutaris*. (According to N. D. Or. I

a praeses was at the head of D. rip., a consularis at the head of D. med.). The dioecesis Dacia was immediately under the praef. praet. per Illyricum and so it had no vicarius. Cf. N. D. Böcking Or. p. 124 sq.; p. 135 sq.; Wesseling Itin. p. 654 sq.; Pieper Tab. 14; Honigmann Hierocles p. 20 (with lit.). Now what is meant here? The provinciae Daciae, the dioecesis Dacia (or the former Dacia North of the Danube?).

p. 42. 9—10.

3. 4. quod in complicandis calumniarum nexibus erat indissolubilis. Cf. 14. 5. 8: Paulus, ut erat in complicandis negotiis artifex durus, unde ei Catenae indutum est cognomentum; 14. 11. 26: eademque (sc. Nemesis) necessitatis insolubili retinaculo mortalitatis vinciens fastus; 30. 4. 13: qui (sc. patroni, advocati) inter sollicitudines iudicum per multa distentas, inresolubili nexu vincientes negotia, laborant, ut omnis quies litibus implicetur et nodosis quaestionibus de industria iudicia circumscribunt (= ensnare, hamper). The same metaphor throughout. [Cf. Wagner ad 30. 4. 13 (edit. suae III p. 329): Inter „sollicitudines” curas „iudicum” per multa et varia causarum genera „distentas”, „inresolubili” Gordio quasi „nexu” (sc. „vincientes negotia”) (paulo post „nodosae quaestiones”, omninoque totus locus tautologiae vitio laborat) ut „omnis quies” quietis quisque amans et omni lite abhorrens, tamen „implicetur”]. For the numerous adjectiva in -ibilis, -ilis, especially composed with -in-, cf. Liesenberg (1888) p. 24 sq.; Hagendahl Stud. Amm. p. 46 sq. (with lit.). Especially late-Latin phenomenon. Indissolubilis, inresolubilis, insolubilis (mind the variation!), post-class., especially late-Lat. Cf. Georges Lexicon sub. vv.; Krebs Antib. I p. 755.

Indissolubilis. in the meaning insoluble only in class. lat. in Cic. De universo 2: Quoniam orti estis mortales, vos quidem indissolubiles esse non potestis.

p. 42. 10.

3. 4. mira inventorum sese varietate dispensans. The version is uncertain. V: indissolubili intra invenerum. Vales. conj. in edit. Wagner II p. 112: taetra inventorum sese varietate distendens; Salmasius: miram in nodorum varietatem sese dispensans. Vales'. and Clark's versions (above) only moderately appeal to me. Salmasius' conjecture, palaeographically less acceptable, goes better with the metaphor (cf. ad 15. 3. 4, p. 42. 10—11). Cf. et annot. Gronov. Wagner ad h. l. (Wagner II p. 112).

p. 42. 10—11.

3. 4. ut in conluctationibus callere nimis quidam solent artifices palaestritae. V: calce renem is. BG: calce tenere. Salm.'s conj. callere

nimis, borrowed by Vales. Clark and others, is rather weak (see also preceding note). Cf. Vales. ad l.: „Comparat . . hic Marc. nodosos calumniarum nexum cum palaestricis nexibus luctatorum, quae Graece ἀμματα dicuntur, Apollodorus in Bibliotheca II, 5. p. 137 Heyne, de lucta Herculis cum Antaeo: τούτῳ δὲ παλαίειν ἀναγκαζόμενος Ἡρακλῆς, ἀράμενος ἀμμασι μετέωρον κλάσας ἀπέκτεινε. Libanius in eiusdem luctae descriptione δεσμούς et συμπλοκάς vocat (cf. ἐκφράσεις γ': Ἡρακλέους καὶ Ἀνταίου = edit. Foerster 8 p. 492 sq. This entire description is very instructive indeed for the art of wrestling). Latini nodos (or nexum) vocant. Sic enim Aur. Vict. in Commodio (Caes. 17. 9): Ibi per ministrum ungendi faucibus, quasi arte exercitii, brachiorum nodo validius pressis, expiravit (cf. annotat. in edit. S. Aur. Vict. Arntzenii a^o. 1733, p. 361 with lit.), et Statius in lib. 6 Thebaidos de Tydeo 884—887:

„Mox latus et firmo celer implicat ilia nexu.
Poplitibus genua inde premens, evadere nodos
Nequidquam, et lateri dextram insertare parantem
Sustulit” etc.

Cf. et Luc. Anacharsis 1 (and passim); Ovid. Metam. 9. 31 sq.; Lucanus, Phars. 4. 617 sq.; etc. and ad 15. 3. 4, p. 42. 11 (conluctatio).

3. 4. conluctationibus. Cf. 28. 5. 3: barbaros ante conluct <at>i- p. 42. 11. onem adeo terruit et turbavit etc. Just as collectari and collectator the word is not class., post-class. and late-Latin. Meaning: wrestling, strife, death-struggle. Cf. Georges and Thes. sub v. For the meaning of coll. cf. et. Dig. 9. 2. 7. 4 (Ulpianus): Si quis in colluctatione vel in pancratio, vel pugiles dum inter se exercentur alius alium occiderit, si quidem in publico certamine alius alium occiderit, cessat Aquilia, quia gloriae causa et virtutis, non iniuriae gratia videtur damnum datum. Hoc autem in servo non procedit, quoniam ingenui solent certare: in filio familias vulnerato procedit (for the lex Aquilia cf. Sohm, Institutionen¹⁶ p. 572 sq.). The colluctatio is wrestling, subject to severe rules (πάλαισμα), the pancration is a mixed system of wrestling and boxing, rougher and less regulated (παγκράτιον), the pugiles practise boxing (pugilatio, pugilatus = πυκτοσύνη, πυγμή), also severely regulated (cf. ad 14. 7. 3, p. 19. 2). On these 3 kinds of games cf. B. Schröder, Der Sport im Altertum p. 121—129, p. 144—155 (with lit. and pictures), especially p. 125: „Es waren offenbar, wie im modernen Ringen, nur Griffe oberhalb des Gürtels erlaubt, im Gegensatz zum Pankration, bei dem auch die Beine mit Stoßen und Treten kräftig mitarbeiteten

und in der Abwehr erfaßt werden durften; doch war das Einhaken mit den Beinen gestattet. Schlagen mit der Faust war verboten, dagegen Stoßen, um dem griff mehr Wirkung zu geben, Glieder verdrehen und Würgen zulässig." It seems probable to me, that Amm. does not use *conluct.* here in a technical sense: he thinks of wrestling in general. But if he should use the *terminus technicus*, there need not be any real objection against the version of B, G: *calce tenere*. At any rate there was a very great deal of hand- and footwork in the pancration. A few beautiful pictures, which may serve as a further illustration of the *σφυρῶ προσπαλαίειν* (Philostratus *Imagines* 2. 6), the *ὑποσκαλίζειν* („trip a person up" Luc. *Anacharsis* 1) and for the nexus we find in: *Sport und Spiel bei Griechen und Römern*, Ausstellung im Kaiser Friedrich Museum zu Berlin (ill. catalogue), 1934, ill. 8 (vase) and 39 (most beautiful coin).

- p. 42. 11. 3. 4. *artifices palaestritae*. Cf. Vales. annot. (= edit. Wagner II p. 113): „*Palaestritas dixit improprie pro luctatoribus, quos Graeci παλαιστὰς dicunt. Palaestritae vero ministri sunt palaestrae, qui athletas curabant et ungebant.*" Cf. Cic. in *Verrem* 2. 54: *Numquam vos praetorem tam palaesticum vidistis. Verum ita palaestritas defendebat, ut ab illis ipse unctor discederet (= luctatores).* Persius 4. 39 sq.: (= ministri palaestrae)

Quinque palaestritae licet haec plantaria vellant
Elixasque notes labefactent forcipe adunca,
Non tamen ista felix ullo mansuescit aratro.
(with comm. v. Wageningen II p. 66).

Likewise Aur. Victor in the *Epitome* 17. 6. calls the same man *palaestrita*, whom he calls *Caes.* 17. 9.: *minister ungendi* (cf. ad 3. 4., p. 42. 10—11).

Observ. V: *palestritae*. Though this spelling may be due to the copyist, it seems very well possible to me, that Amm. wrote: *palestritae*. The spelling *e* for *ae* was usual in unaccented syllables before the 3rd century A. D., in accented ones from the 4th century; regularly *e* for *ae* from the 5th century. Cf. Hofmann-Leum. p. 75; Grandgent p. 88.

Artifices Ia. Used absolutely. 23. 4. 2: *et ballistae figura docebitur prima . . . eique cochleae (= screws) duo lignae coniunguntur apertissime, quarum prope unam adsistit artifex contemplabilis (active!) et subtiliter adponit in temonis (= barrel) cavamine sagittam ligneam etc.*; 24. 4. 12: *hinc enim ardui suggestus erigebantur, inde fossarum altitudines alii conplanabant, terrarum latibula concava (= cuniculos),*

oblongis tramitibus alibi struebantur, locabant etiam artifices tormenta muralia, in funestos sonitus proruptura; 24. 4. 28: *Inter haec certamina nostrae partis architectus (= builder of machinery of war), cuius nomen non suppetit, post machinam scorpionis forte adstans, reverberato lapide quem artifex titubanter aptaverat fundae, obliquo pectore supinatus, profudit animam.* From these 3 places the meaning: „fire" unit commander, „Geschützmeister" is clear.

b. with attrib. Subst. or Adject. 15. 3. 4 (see above); 28. 2. 2: *meatum ipsum (fluminis sc.) aliorum vertere cogitavit, et quaesitis artificibus peritis aquariae rei (= hydraulic engineer)*; 28. 4. 32: *artifices scaenarii (= actors).*

c. with genit. Substant. 17. 5. 7: *medellarum artifices (= medical men)*; [a, b, c of the expert, technician, artist etc., as in many other class. and post-class. authors].

II. A. with Gerund. 14. 5. 8: *in complicandis negotiis artifex dirus*; 27. 9. 2: *Transferendaeque in alios invidiae artifex* (cf. Tac. *Hist.* 2. 86: *serendae in alios invidiae artifex*); 28. 1. 10: *artificibus laedendi.*

B. with Genit. 30. 3. 6: *discessit turbarum rex artifex (= instigator).* [A, B in wider sense: master (in), virtuoso etc., class. and post-class.].

III. 17. 4. 7: *(obeliscus) . . manu levigatus artifice (= skilful).* [Not of persons: skilful, artistic, etc. class. and post-class.].

Cf. et. Georges s.v.; and Thes. Lat. s.v.

Obs. *Artifices* in the meaning of *gladiatores* in *Incerti paneg. Constantino Augusto* (Baehrens, p. 208) IX. 19: *gaudere cuncti spectaculorum mora et familiaribus sibi artificibus ob hoc solum favere quod te praesente certarent.* Hinting at the constitutio of Const., in which gladiator games are prohibited (15. 12. 1 Cod. Theod. a^o 325) the auctor *Chronici Alexandrini* says: *καὶ τῶν τεχνιτῶν καὶ συντελεστῶν τὰ ἐπιτάγματα περιεἶλεν τοῦ ἐνιαυτοῦ τῆς αὐτῆς εἰκοσαετηρίδος*, where with *τεχνιτῶν* are at any rate meant artifices = *gladiatores*. Cf. Gothofr. annot. ad h. l. (15. 12. 1).

3. 5. *Somniorum . . comes*. Vales. ad h. l. very justly remarks, p. 42. 12. that comes is used here in a witty way, as: *Comes rerum privatarum, comes sacrarum largitionum, comites thesaurorum, comites sacri patrimonii*, etc. (Cf. ad 14. 5. 1, p. 10. 11; ad 14. 7. 9, p. 20. 14; ad 15. 5. 4, p. 47. 15—16) „Praeterea lusisse in nomine Mercurii mihi videtur populus, Comitem somniorum seu Praefectum appellando, quod Mercurium credere veteres virgae suae tactu somnos et somnia mortalibus immittere consuevisse."

p. 42. 12-13. 3. 5 ut clam mordax canis interna <sae>vitia summissius agitans caudam. Vales.: „Graeci dicerent eleganter: καθάπερ οἱ λαθροδῆκται τῶν κυνῶν (cf. Liddell-Scott s.v. λαθροδῆκτης, λαθροδάνης, λά[η]θαργος).

V: interna vitia summissus (b: summissus, G.: summissus, interno vitio G.). I cannot share the objection against summissus. The relation between adj. and adv. in various times and styles has not yet been completely examined. But enough material has been collected to conclude, that the poetical and poetic-rhetorical authors used the adj. instead of the adv. much more than class. prose, some of them even conspicuously frequently, especially late-Lat. authors. That this use is also often found in Plautus is well-known. On the colloquial use Löfstedt Peregrinatio p. 213 sq. gives a more positive opinion than he does in Syntactica II p. 368 sq. Grevander p. 93 sq. op. cit. comes to different results than Saloniū Vitae Patr. p. 163 sq. [It is curious, for instance, that Vegetius mulomed. „not seldom” changes an adjective of the vulgar Chiron mulomed. into an adverbium, but seldom does the reverse; while in the Vitae patrum „das prädikative Adjektiv dem Adverb gegenüber äusserst selten vorkommt, ein Umstand, der mit dem Stil unserer Schriftsteller im schönsten Einklang steht. Sie schreiben ja in dem schlichten Gesprächston des Alltags und ihre Sprache ist von jeder rhetorisierenden oder poetisierenden Tendenz frei.” (Saloniū); to which it should be observed that the Vitae P. are translations from the Greek, which notoriously has a great predilection for the adverbial use of the adjective].

In Ammianus Greek influence should of course always be taken into account (but with the restrictions indicated ad 14. 11. 28, p. 36. 21!). Cf. et. Hofmann-Leum. p. 467 sq. (with lit.); Draeger Hist. Synt. p. 352 sq.; Koziol op. cit. p. 259; Hassenstein p. 28; Riemann Tite Live p. 106 sq.

Also for metrical reasons summissus seems more acceptable to me (clausula III).

interna <sae>vitia. Cf. annot. Vales. Wagn. in edit. Wagn. II p. 114 et annot. app. crit. in edit. Clark. It seems to me that the correct version is implied in interna vitia. (V). None of the conjectures, not either the beautiful: <sae>vitia are satisfactory to me. I am as yet unable, however to suggest a better solution.

p. 42. 14. 3. 5. si per quietem quisquam, ubi fusius natura vagatur. Cf. 14. 11. 18: solutus enim corporeis nexibus, animus semper vigens motibus indefessis ex cogitationibus subiectis et curis, quae mortalium sollicitant mentes, colligit visa nocturna quas φαντασας nos appellamus.

3. 5. fusius. This comparat. of fuse also class. (Cic. nat. deor. 2. 20). p. 42. 14. Cf. Krebs Antib. I p. 617.

3. 5. venenatis artibus. In this figurative meaning also: Cic. Phil. p. 42. 15. 13. 17: quoniam vos assentationibus et venenatis muneribus venistis; Ovid. Tristia 2. 566: nulla venenato littera mixta ioco est.

3. 5. in peius. Cf. ad 14. 1. 6 (p. 2. 24).

p. 42. 15.

3. 5. patulis . . . auribus. Cf. ad 14. 9. 2 (p. 26. 9-10). Cf. Horat. p. 42. 15-16. Epist. 1. 18. 69-70: nam garrulus idemst //, nec retinent patulae commissa fideliter aures. (Comm. Cruq.: semper patentes ad audiendum, curiosae) and Kiessling-Heinze ad h. l.; Servius: Patulum dicitur quod patet naturaliter, ut nares, arbor, crux, Patens vero est quod clauditur et aperitur ut ostium et oculi. Cf. et. 18. 4. 4.: apud principis aures nimium patulas.

3. 5. inexplicabili obnoxius culpa. Cf. 30. 1. 18: Hinc in illum p. 42. 16-17. inexplicabile auctum principis odium (Liesenberg: unüberwindlich). In the first place: heavy. This fig. meaning: attended with unsurpassable difficulties etc. also class. [Valesius, who does not seem to know this meaning very well unnecessarily proposes in both places inexplicabilis, which also occurs in Amm.].

In combination with culpa and odium unknown to me. Probably Amm. goes here further again in using a different meaning than other authors, as he often does.

3. 5. gravi mole criminis pulsabatur. Cf. 18. 4. 4.: ut . . . apud p. 42. 17. principis aures nimium patulas existimationem viri fortis invidia gravi pulsarent; 15. 5. 5.: hunc fascem ad arbitrium figmenti compositum vitam pulsaturum insontis.

The fig. meaning: worry, make a person waver, accuse, not in class. prose. Pulsare = ± accusare especially in jurists and eccles. Cf. Krebs Antib. II p. 426; Kalb, Roms Juristen p. 128.

3. 6. tantum aberat ut proderet quisquam visa nocturna, cum p. 42. 18-19. aegre homines dormisse sese praesentibus faterentur externis. Instead of the ordinary construction: tantum (ab eo) abest ut . . . ut, Amm. uses here instead of the second ut: cum. Other instances of this are not known to me. (cf. Hofm.-Leum. p. 761). In my opinion the

explanation is this: ut proderet . . nocturna has a negative meaning, the sentence with cum is causal-explanatory. Translation: it was so far away from it, that not anybody at all (= nobody) even dreamt of giving up his nocturnal apparitions, because people etc. The conj. imperf. with cum explicat. in Amm. need not be an objection.

visa nocturna. Cf. ad 14. 11. 18. (p. 34. 13).

p. 42. 20—21. 3. 6. quod apud Atlanteos nati non essent, ubi memorantur somnia non videri. Cf. Solin. Mommsen p. 137. 1; adfirmant eos (Atlantes sc.) somnia non videre; and ad 14. 8. 1 (p. 23. 4—5).

p. 42. 21. 3. 6. rerum scientissimis. Though the Superl. scientissimus occurs much in class. Lat., also with the gen., (cf. Krebs Antib. 2 p. 541), this combination (instead of rerum peritissimis) is unknown to me, at least in class. Lat.

p. 43. 1. 3. 7. Africani, Pannoniae secundae rectoris. Also mentioned 16. 8. 3., where the same as here is told in a shorter way. The story is also found in Juliani Epist. ad Athen. 273 C—D: πορευομένου δὲ λοιπὸν ἐπὶ τὴν ἐστίαν (sc. Juliano) ἀγαπητῶς τε καὶ μόγισ ἀποσωζομένου, συκοφάντης τις ἀνεφάνη περὶ τὸ Σίρμιον, ὃς τοῖς ἐκεῖ πράγματα ἔρραψεν ὡς νεώτερα διανοομένοις (sc. Gaudentius). Ἰστε δὴ ποῦθεν ἀκοῇ τὸν Ἀφρικανὸν καὶ τὸν Μαρίνον οὐκ οὐκ ὡς οὐδὲ δὲ Φηλῖξ ἔλαθεν οὐδὲ δὲ ἐπράχθη περὶ τοῦς ἀνθρώπους. Felix is not mentioned in Amm. (cf. Seeck B. L. Z. G. p. 155). This Africanus does not occur in Libanius, but a homonym does.

Pannonia secunda. P. imperial province, was divided between 102 and 107 into P. superior and inferior, respect. W. and E. For its size and its towns cf. Ptolem. II 14 and 15, sub voc. In N. D. Occ. II the following provinces belong to the dioecesis Illyricum of the Praefectura Italiae: Pannonia Secunda, Savia, Dalmatiae, Pannonia Prima, Noricum mediterraneum, Noricum ripense. Savia is not mentioned here as belonging to P., though it belongs to P., as we read in N. D. Occ. I: Per Pannoniam unum (sc. correctorem); Saviae. Further we miss here Valeria, of which Amm. 19. 11. 4 says: imperator (ut dictum est) Valeriam venit, partem quondam Pannoniae, sed ad honorem Valeriae Diocletiani filiae et institutam et ita cognominatam. (cf. Komm. I. Stammtafeln VIII). On the strength of the N. D. we come then to the following division of Illyrium:

a. Pannonia I, under a praeses and a dux (cf. ad 14. 7. 7 c. p. 19. 23) for the military government, together with Noricum ripense.

b. Savia = Pannonia ripariensis, under a corrector.

c. Valeria ripensis, under a dux.

d. Pannonia secunda, under a consularis and dux.

e. Noricum mediterraneum, under a praeses.

f. Noricum ripense, under a praeses and dux, together with Pannonia I [for praeses, corrector, consularis, cf. ad 14. 10. 8, p. 29. 14].

a and b comprise approximately the territory of P. superior, c and d of P. inferior. All 4 have arisen under Diocl., when the Pannonian territory was somewhat reduced.

The capitals are: of a: Savaria, b: Siscia, c: Sopiana and Aquincum, d: Sirmium. Ecclesiastically Siscia, Savaria and Sopiana were sees of a bishop, Sirmium metropolis. (cf. Pieper Tab. 14). The Itinerarium Burdigalense (Geyer p. 9) confuses P. inferior and P. superior (cf. Wesseling p. 561 ad h. l.). On the vicissitudes of Illyricum, which P. experienced, cf. ad 14. 7. 9, p. 20. 16 Anm.; Böcking N. D. Occid. p. 145; Novell. Just 11. (a^o 535). By the Ἐπαρχία Παννονίας, ὑπὸ ἡγεμόνα in Synecd. Hieroclis Honigsmann p. 21 is meant P. inferior, as P. I then lay beyond the frontiers (of the Byz. Empire). This province was then the remotest borderprovince in the N. W.

Cf. et. Strabo 7. 5. 2 sq.; Tab. Peut. V 3. 4. 5; Pichler, Austria Romana II/III p. 172 sq.

During a great part of the 4th century the P. provinces and surrounding districts have been united in one dioec. Pannoniarum.

3. 7. Sirmium. Cf. 21. 10. 6: ubi (sc. Naesso) Victorem apud Sirmium visum, scriptorem historicum (sc. Sextum Aurelium Victorem), exindeque venire praeceptum, Pannoniae secundae consularem praefecit (cf. ad 15. 3. 7, p. 43. 1) et honoravit aenea statua virum sobrietatis gratia aemulandum, multo post urbi praefectum (389); 17. 12. 1; 17. 13. 33. S. was the capital of Pannonia secunda. As appears from N. D. Occid. 31 sub dispositione viri spectabilis ducis provinciae Pannoniae II et ripariensis sive Saviae are: a Praefectus militum Calcarensium Sirmi; a praefectus Classis Primae Flaviae Augustae Sirmi; an ala Sirmiensis Sirmi; further sub disp. v. ill. mag. officiorum: In Illyrico: Fabrica Sirmiensis scutorum, scordiscorum (leather saddles) et armorum (N. D. Occ. 8) Cf. et. Strabo 7. 5. 2; Ptolem. 2. 15. 4 (with annot. I p. 302 in edit. C. Müller); Tab. Peut. VI. 4; Itin. Burdig. ed. Geyer p. 10 (cf. Wesseling p. 563 c. annot.);

Hierocles Synecd. ed. Honigmann p. 21. (c. annot.); Böcking N. D. Occid. p. 310 sq. To-day: Dmitrova.

apud. *Apud* in names of towns and countries etc. not-class., first in Plautus, then frequently in Tac. Suet., and others. Later mainly in vulgar authors, in the Itala and inscriptions etc.

According to Hofm.-Leum. p. 499 „ist *apud* mehr in der Volkssprache als in der Schriftsprache zuhause und begegnet daher vor allem im Altlat. und bei volkstümlichen Schriftstellern . . Eine vulgäre Gebrauchserweiterung stellt ferner die Verwendung von *apud* = in c. abl. dar . .” Cf. Amm. 14. 7. 20: *indicatum est apud Tyrum indumentum regale textum occulte*; 25. 3. 23: *natus apud Constantinopolin*; 15. 1. 2: *nondum apud Noricum exuto penitus Gallo*; 18. 1. 1: *Julianus . . apud hiberna . . haut minore cura provinciarum fortunis multa conducentia disponebat*; Reinhardt p. 51 (with examples).

p. 43. 2. 3. 7. *madefacti*. Cf. Luc. Dial. Deorum 23. 2: *ἐπειδὴ ἀνεπαυσάμεθα ἐν τῷ συμποσίῳ ἱκανῶς ὑποβεβρέγμενοι*; eiusd. Gallus 8; Epigr. adesp. 448 (XI, 3): *κοτύλαις ὑποβρέξας* (quoted by Pape); Plaut. Aul. 3. 6. 37: *ego te hodie reddam madidum, si vivo, probe*; Amphitruo 3. 4. 18: *faciam ut sit madidus sobrius*; Asinaria 5. 2. 9: *madidum (= tippler)*; Martialis 6. 89. 1—2: *Cum peteret seram media iam nocte matellam // Arguto madidus pollice Panaretus*; eiusd. 9. 22. 11: *Aestuet ut nostro madidus conviva ministro*; 14. 1. 9 eiusd.: *Sed quid agam potius madidis, Saturne, diebus*; Plaut. Pseud. 1. 2. 51: *eo vos vestros panticesque adeo madafactatis, quom ego sim hic siccus*; etc.

p. 43. 2—3. 3. 7. *arbitrum adesse nullum existimantes*. Cf. 23. 3. 2: *nullo arbitrorum admisso*; 24. 6. 15: *quos . . clarum fecisse ipse arbiter perspexit*; 29. 2. 20: *Iustitiae oculus, arbiter et vindex perpetuus rerum (here throughout: eye-witness)*; 28. 6. 20: *qua gratia flagitiorum arbitra conscientia cum Romano deinde Palladius concordabat (= witness, having cognizance of it; cf. Horat. epod. 5. 50: o rebus meis // non infideles arbitrae // Nox et Diana)*. Cf. et. Fesser p. 50: „In der Bedeutung von testis, spectator scheint es archaisch zu sein.”

p. 43. 3. 3. 7. *licenter imperium praesens ut molestissimum incusabant* etc. This was not without danger; cf. Cod. Theod. 9. 4. 1. (unic. 1.): *Imppp. Theod. Arcad. & Honor. AAA Rufino PP.: Siquis modestiae nescius et pudoris ignarus, improbo petulantique maledicto, Nomina Nostra crediderit lacessenda, ac temulentia turbulentus obtrektor*

temporum fuerit, eum poenae nolumus subiugari, neque durum aliquid nec asperum sustinere: quoniam, si id ex levitate processerit, contemnendum est: si ex insania, miseratione dignissimum: si ab iniuria, remittendum. Unde integris omnibus, ad Nostram Scientiam referatur, ut ex personis hominum dicta pensemus et utrum praetermitti an exquiri debeat, censeamus (393); c. comm. Gothofr.: „Maledicta, in se Principem, inve Tempora sua, in sui notitiam perlata, Iudices seu Rectores provinciarum non vindicare ipsi seu punire, verum integris omnibus de iis ad se Principem referre ab Imperatore iubentur hac constitutione: ut ita ipse iudicii arbitrii sui faciat, num contemni ea an exquiri vindicare adeo debeant; habita sc. personarum ratione. Praemissa egregia clementiaeque et indulgentiae plenissima sententia, qua veniam seu gratiam maledicti ferme pollicetur, si aut levitate aut infamia aut iniuria convitium Principi, vel temporibus eius, seu saeculo, factum fuerit.”

3. 7. *non nulli maiorum augurio sibi portendi incogitabili dementia promittebant*. V: *avirio, maiora Momms; augurio EW m 2 N Momms; auguria G. Troß translates: „Andere versprochen sich sogar in unbedachtsamer Verblendung zufolge gewisser Vorzeichen eine Standeserhöhung.”* So he reads *maiora* and connects *sibi* with *portendi* and *promittebant*. It is possible to translate the passage, as Clark has it, without change: *Some people assured (predicted) in inconceivable blindness that to them predictions were made by dint of an augury which indicated greater things (genit. explic).* For the meaning: *assure, predict*, cf. *Georges sub v. prom. (in fine).*

The best version seems to me G.'s: *auguria. maiorum auguria* then meaning: *auguries of greater things. Promittebant* then retains the meaning of *assure or predict*.

3. 7. *incogitabili dementia*. Used in Plaut. Mil. 544 in the meaning of: *without sense*. Similarly in Lact. 1. 8. 3. In passive meaning here in Amm. (= *inconceivable, unintelligible*), Mart. Cap. 9 § 922 and c. acc. c. inf. (*est incogitabile*).

Fragm. jur. rom. vat. 75 (Huschke p. 626): *etenim esse incogitabile eandem esse causam cuique et amittendi et recipiendi*.

3. 8. *Gaudentius agens in rebus*. Cf. 16. 8. 3: *quo (sc. Rufino) indicante quaedam cognita per Gaudentium, agentem in rebus, consularem Pannoniae tunc Africanum, cum convivis retulimus inter-*

fectum; 17. 9. 7: cum idem Caesar (sc. Julianus) petenti ex usu gregario cuidam, ut barbas detonderet, dedisset aliquid vile, contumeliosus calumniis appetitus est a Gaudentio tunc notario (cf. ad 14. 5. 6, p. 11. 5.), ad explorandos eius actus diu morato per Gallias, quem postea ipse interfici iusserat, ut loco monstrabitur competenti; 21. 7. 2: tamen ne intepesceret (sc. Constantius) aut omisisse belli videretur aliud latus (sc. bellum quod Constantio gerendum erat contra Julianum), adventus sui terrorem ubique dispergens, veritusque ne Africa absente eo perrumperetur, ad omnes casus principibus oportuna, velut finibus orientis egressus, per mare notarium misit Gaudentium, quem exploratorem actuum Juliani per Gallias aliquamdiu fuisse praestrinximus (a^o 361); 22. 11. 1: Isdem diebus notarius ille Gaudentius, quem opponendum per Africam missum supra diximus a Constantio, Julianus quin etiam ex vicario, earundem partium (sc. Constantii) nimius fautor, retracti sub vinculis, morte periere poenali. Not in Seeck, B. L. Z. G.

agens in rebus. Cf. Willems p. 556: „Sous les ordres (sub dispositione) du maître des offices (v. inlustris magister officiorum) se trouvent: 2^o La scola des agentes in rebus, au nombre de plus de 1100, exécutant, comme courriers du cabinet ou messagers, les missions du prince dans les provinces. Parmi les agentes sont choisis les curiosi ou curagendarii, inspecteurs délégués par l'administration centrale dans les provinces pour surveiller la police, les postes publiques etc., ainsi que les interprètes des différentes langues (interpretes diversarum gentium). C'est encore parmi eux que le magister officiorum choisit les employés de son officium propre." (with lit.; for scholae cf. ad 14. 7. 9, p. 20. 13—14).

This as a supplement to the note ad 14. 11. 19, p. 34. 18. Cf. et. Vales. ad h. l. (= edit. Wagner II p. 115) with lit. quoted. (most excellent).

p. 43. 7—8. **3. 8. Rufinum, apparitionis praefecturae praetorianae tunc principem.** Cf. 16. 8. 3—8, where the story is told, how this Rufinus, after having framed a false charge of majestas laesa, in which he availed himself of a married woman, whom he, „post nefandum concubitum in periculosam fraudem inlexit," is exposed and executed, to the great distress and vexation of Constantius „tamquam vindicem salutis suae lugens extinctum." Cf. et. Seeck, B. L. Z. G. p. 253 sq., for the homonyms, many of which in Amm.

apparitio praefecturae praetorianae. For apparitio cf. ad 15. 5. 36 (p. 54. 22—p. 55. 1). For the apparitores (= officiales) in general cf. Willems p. 549 (with lit.); Grosse, Rangordnung p. 127 sq. (with lit.). For the apparitores of the praef. praetorio (= praefectiani) cf. Cod.

Theod. 12. 10. 1 (c. comm. Gothofr.). A praefectianus is mentioned in Amm. 17. 3. 6. With the well-known variatio, but entirely identically in meaning apparitores and officiales are mentioned in 27. 7. 5. For princeps cf. Willems p. 550: „L'officium de chaque fonctionnaire est généralement dirigé par trois directeurs généraux (tres primates), dont le premier en rang est le princeps ou le chef de l'office, le second, le cornicularius, le troisième, l'adjutor ou le primiscrinus" (with lit.).

Every officium consists of various scrinia according to the various branches of the administration. Every functionary, who is considered for it, has in his service a certain number of officiales, „in permanent employ" (statuti); but moreover he may have supernumerarii or vacantes.

3. 8. ultimorum semper avidum hominem. „Id est sanguinis ac suppliciorum. Quo sensu dixit in lib. 14. 11. 8: Eo necessitatis adductus, ultimaeque ni vigilasset opperiens, principem locum, si patuisset copia, affectabat." Cf. et ad 14. 11. 8 (p. 32. 19).

3. 9. comitatum. Cf. ad 14. 5. 8. (p. 11. 22).

p. 43. 10.

3. 9. ad suspiciones huiusmodi mollem et penetrabilem. Cf. 14. 9. 2 and 16. 8. 2. p. 43. 10—11.

3. 9. ut . . juberentur rapi sublimes. Cf. 28. 1. 56: Aginatus . . sublimis raptus occiditur. Archaism. In Plautus we always find sublimem (n) in connection with rapere etc.; in later authors, who use the word as archaism: sublimem, e.g. Liv. 1. 16. 2; Verg. Aen. 1. 259; 5. 255; Ovid. metam. 4. 363. Only in Ovid. met. 7. 222 we also find: sublimis raptus. Probably (according to Fesser and Jacobsohn) artificially formed archaic reminiscence; and then also in Amm. Cf. Fesser p. 39 sq. (with the lit. quoted there); Heraeus, Philol. 55 (1896) p. 197 sq.

3. 8. delator funestus. Sc. Rufinus (cf. 16. 8. 3). In the same meaning (= fatal, bloodthirsty), as attribute to persons, very rare, also: Eutr. 7. 12: Caligula . . sceleratissimus ac funestissimus.

3. 10. Teutomeres protector domesticus. Cf. Seeck B. L. Z. G. p. 43. 15—16. p. 288: „... befindet sich 355 im Gefolge des Kaisers Constantius (15. 3. 10), kommt 363 mit Kaiser Jovian nach Antiochia: add. 5 (1288). [The explanation of this letter with its vague contents, is very difficult, as is often the case in Libanius; the following opinions differ from Seeck's:

III.

4

Valesius' = Edit. Wagner II p. 116; Sievers' Lib. p. 125, note 1]. Wahrscheinlich identisch mit dem Tautomedes, Dux Daciae ripensis, an den unter Valentinian und Valens ein unsicher datiertes Gesetz gerichtet wurde: Cod. Theod. 15. 1. 13. Nach dem Orte des Datum dürfte es in den December 364 zu setzen sein. [In the Regesten Seeck dates this law, however, on June 19 365, p. 224 and p. 71]. An ihn gerichtet add. 5 (1288)." [= Foerster Lib. Ep. 11 p. 222 sq.]. As to the name cf. Schönfeld p. 223: „Da ich Teutoni als keltisch betrachte, so liegt es nahe, auch diese Personennamen so aufzufassen, um so mehr, als die germanischen, mit Theuda zusammengesetzten Namen niemals in der Form Teuto-(Teutu) erscheinen" and ibid. p. 224 s.v. Teutoni, Teutones (with lit.); Holder Altcelt. Sprachschatz s.v. Teutomerer, Teutumerus. Tautomedes not in Schönfeld.

Protector domesticus. Cf. ad 14. 11. 19 (p. 34. 17).

p. 43. 17. 3. 10. Aquileiam. Cf. ad. 15. 3. 1 (p. 41. 15).

p. 43. 17—18. 3. 10. Marinus <tribunus> ex campidoctore eo tempore vacans. Cf. Grosse Rangordn. p. 137: „Der campidoctor war in Bezug auf Ansehen und militärische Wirksamkeit wohl der eigentliche Nachfolger des alten centurio. Er bildete die Rekruten aus, leitete die Lagerarbeiten und hatte einen wichtigen Platz in der Schlachtreihe. . . Also waren sie die vornehmsten der Unteroftiziere, bei jedem Truppenteil war wohl nur einer." They are only found in the infantry. When in the siege of Amida the two legions of the Magnentiaci and Decentiaci distinguished themselves by valour, the emperor let: „horum campiductoribus, ut fortium factorum antesignanis, post civitatis (sc. Amidae) excidium, armatas statuas apud Edessam in regione celebri locari . . . , quae ad praesens servantur intactae" (19. 6. 12).

<tribunus> vacans. Tribunus conj. Val. For tribunus in general cf. ad 14. 5. 8 (p. 11. 22). For tribunus vacans Grosse Rangordn. p. 150 sq.: „Er war ein aktiver, an Kampf und Besoldung teilnehmender Tribun, der aber nicht das Kommando eines Truppenteils erhalten hatte. Er nahm eine bevorzugte Stellung ein, die nächste nach dem tribunus scholae, war also eine Zwischenstufe zwischen Tribun und höherer Charge." This tr. vacans should not be confused with the tr. honorarius, who had only the title and rank of a tr., not his military position. This honorary tribunate could be combined with all kinds of offices, which were not military at all. (cf. ad 14. 5. 6, p. 11. 5; ad 14. 10. 8, p. 29. 13). That Marinus obtained a great promotion and also an unusual one for

that time, may be taken for granted. Cf. Amm. 16. 12. 63: Et vacans quidem tribunus, cuius non suppetit nomen; 18. 2. 2: Hariobaudem vacantem tribunum; 31. 13. 18: Traiani mors eminuit et Sebastiani cum quibus triginta quinque oppetivere, tribuni vacantes et numerorum rectores (where the tr. vac., who have no permanent command and the num. rect., who have one, are contrasted).

Marinus. Also called Julianus ad Athen. 273 d. Further not known. For homonyms cf. Seeck, B. L. Z. G. p. 204.

3. 10. lateri . . . cultrum casu repertum inpegit. Of the conjectures proposed Heraeus's seems the best to me: lateri proprio. Cf. 14. 5. 8: jam destructum mucronem in proprium latus inpegit. Cf. et. annot. ibid. (p. 11. 25).

3. 10. extractis vitalibus. Cf. 16. 12. 52: miles, cum . . . feriendi non suppetent instrumenta, <erepta> ipsis barbaris tela eorum vitalibus immergebat; 22. 15. 19: <en>hydrus, ichneumonis genus, oris aditum (sc. crocodili) penetrat . . et populo ventre, vitalibus dilancinatis erumpit; (enemies have hidden themselves in caves and are smoked out) 24. 4. 30: unde fumus angustius penetrans, ideoque spissior, quosdam vitalibus obstructis necavit . . In the first two places vit. means: intestina, in the last place: viae respirationis vitae necessariae. For the adj. vitalis cf. Krebs Antib. II p. 747. Vitalia (n. pl. subst.) not in class. prose. Senec. Plin. N. H. Lucret. Luc. Mela. Prudent. Macrob.

3. 11. residui. Does not differ much in meaning here from ceteri, as also e.g. 16. 12. 35, where residui is entirely synonymous with ceteri. Not-class.

3. 11. jussi sunt attineri poenalibus claustris. Cf. 14. 5. 9: non nullos gladii consumpsere poenales; 14. 9. 6: poenali est morte multatus; 19. 12. 7: quorum aliquos vinculorum adflixerant nexus, alios claustra poenalia consumpsere. Poenalis post-class., late-Lat., especially Eccl. and Jur. P. cl. = (in ordinary prose) carceribus.

jussi sunt attineri. Cf. Symm. Rel. 23. 8 (Seeck p. 297): Felix qui in communi iudicio jussus est attineri. Aliquem custodia, castris etc. attinere, in the meaning of detain, have in custody (= class. tenere, retinere) is old-Lat., post-class. (especially Tacitus) and late-Lat. Cf. Krebs Antib. p. 215 sq.; Thes. l. lat. s.v.

p. 43. 22—
p. 44. 1. 3. 11. sub absolutionis aliqua spe. Cf. Hofmann-Leum. p. 539: „Temporal-instrumentales sub = (simul) cum begegnet bereits bei Lucr., dann Prop., in Prosa seit Celsus, ganz geläufig im Spätlat.“; Draeger hist. Synt. 1. p. 661 sq.; Hassenstein p. 62 (with numerous examples).

p. 44. 1—3. 3. 11. protectores vero pronuntiati vertere solum exilio, ut Marino isdem consciis mori permissis, veniam Arbetrone meruere precante. (for isdem referring to protectores cf. ad 5. 19, 20 p. 51.16—19). Similarly in abl. abs. 20. 2. 5: nec discusso negotio nec patefieri quae scientiam ejus latebant permissis; 28. 5. 7: ne uno quidem caedibus concorporalium superesse permissis; 30. 2. 4: ad arbitrium suum vivere cultoribus eius permissis; 30. 7. 9: nullo paene redire permissis grassatorum ad sua. Combined with the verbs of going: 17. 10. 9: ad propria remeare permissus est; 19. 12. 12: Alexandriam (unde oriebatur) innoxius abire permissus est; 20. 7. 7: acceptaque fide, quod redire permetteretur incolumis; 24. 2. 21: redire permissus est; 31. 10. 17: ad genitales terras innoxii ire permissi sunt; 29. 3. 4: Epiroten aliquem ritus Christiani presbyterum acceptum Octaviano . . ex proconsule . . offensarum auctore licet tardius redire ad sua permissis (Heraeus Cl. wrongly: ad sua remisso; cf. Blomgren p. 162). Cf. et. Kallenberg p. 33; Schickinger p. 26; Hofm.-Leum. p. 589, p. 377; Blomgren ibid. Post-classical and especially late-Latin.

pronuntiati. Cf. Heumann-Seckel p. 469: „insbes. als Richter einen Ausspruch tun, ein Urteil fällen, erkennen; der Ausdruck wird technisch gebraucht einmal für den Ausspruch des Geschworenen im ordentlichen Verfahren über die intentio des Vindikanten, sodann für das Urteil des Magistrats oder seines Hilfsrichters im Kognitionsverfahren.“ Like many verba of legal terminology we often find pr. constructed, used personally, with nom. c. infin., especially in the meaning of: to pronounce by legal judgement. Here it has the meaning of condemnare (which is, however not constructed with inf.) This increase of the construction of the Nom. c. inf. in the Passive of the verba sentiendi et declarandi, especially post-class. and late-Latin. Cf. Hoffmann-Leum. p. 589 sq.

solum vertere exilio. Cf. Cic. pro Balbo 11: ut earum civitatum fierent cives, hanc ante amittere non potuissent, quam huius solum civitatis mutatione vertissent; Philipp. 5. 5: Habent enim legitimam excusationem, exilii causa solum vertisse, nec esse postea restitutos; Parad. 7. 31: Omnes scelerati atque impii . . quos leges exilio affici volunt, exsules sunt, etiam si solum non mutarent; pro Domo 30:

Qui erant rerum capitalium condemnati, non prius hanc civitatem amittebant, quam erant in eam recepti, quo vertendi, hoc est, mutandi soli causa venerant; Caec. § 100: exilium non supplicium est sed perfugium portusque supplicii, nam quia volunt poenam aliquam subterfugere aut calamitatem, eo solum vertunt; Liv. 3. 13. 9: iudicii die cum excusaretur solum vertisse exilii causa; 3. 58. 9: collegae eorum exilii causa solum verterunt. Here again one of the numerous flowers of speech, with which Amm. embellishes his Byzantine mosaic of style, while he slightly changes it.

ut Marino . . mori permissis. Translation: as they had allowed Marinus to die (= to commit suicide), as it was said. Graecism.

4. 1. Lentiensibus, Alamannicis pagis. On L. and Al. cf. ad 14. 10. 1 p. 44. 4—5. (p. 28. 3). Cf. 31. 10. 2: et iam Lentienses Alamannicus populus tractibus Raetiarum confinis . . conlimitia nostra temptabat . . ; with repetition of the word conlimitia in the same connection.

4. 1. conli<m>itia. Cf. ad 14. 3. 1 (p. 8. 9).

p. 44. 5.

4. 1. latius inrumpentibus. For the use of the comp. cf. ad 14. 6. 12 p. 44. 5—6. p. 14. 20. This use often promoted for metrical reasons. Here claus. IV.

4. 1. procinctum. Campaign: 17. 9. 1: procinctu paulisper omisso; p. 44. 6. 18. 3. 3: reversis omnibus e procinctu; 19. 11. 2: adulto vere ad procinctum egressus est; 20. 8. 1: statariae pugnae per orientales saepius eminere procinctus; 22. 4. 6: quod procinctus tempore ausus sit videri sub tecto; 23. 1. 7: exordia procinctus Parthici; 23. 5. 10: illis procinctum hunc saepe arcantibus; 25. 8. 12: procinctum Parthicum exitu prospero terminatum; 27. 4. 11: post procinctus ancipites; 29. 5. 9: ad procinctus ire ocius festinabat; 29. 6. 1: et cruenta conplura per celeris acta procinctus; 30. 5. 17: tenderet ad procinctum; 30. 10. 1: suspensio instante procinctu; 31. 7. 3: quem . . Gratianus ire disposuit in procinctum; struggle, battle: 19. 2. 6: in procinctum alacritate omni tendentium; 24. 2. 5: milites in procinctum impetu veloci tendentes; army: 18. 2. 17: mirabatur quidem apparatus ambitiosi procinctus; 27. 8. 10: desertores ad procinctum vocabat; 16. 11. 6 (? Liesenberg). Cf. Krebs Antib. 2. p. 387: „Procinctus, das Gürten, Rüsten kommt Kl. nur in der Phrase in procinctu testamentum facere von Soldaten vor, welche vor einer Schlacht ihr Testament machen. Erst nachkl. heisst in procinctu ganz allgemein bildlich in Bereitschaft, aber meistens mit dem Vorgesetzten velut oder tamquam.“

The above meanings are late-Latin, at least in prose. Cf. Dig. 37. 13: (Ulp.) qui in procinctu versantur (milites sc.) = campaign. Similarly: Cod. Just. 12. 40. 7: Devotissimos milites ex procinctu redeuntes vel proficiscentes ad bella muri novi sacratissimae urbis singulae turrets in pedeplanis suis suscipiant (a. 422).

p. 44. 6—7. 4. 1. *Raetias camposque . . . Caninos*. The dioecesis Italiciensis is divided between 2 vicarii: the vicarius Italiae and the vicarius urbis Romae. The former resides at Milan. N. D. 18 states: Sub dispositione viri spectabilis vicarii Italiae Provinciae infrascriptae: (A) Consulares (1) Venetiae et Histriae (2) Aemiliae (3) Liguria (4) Flaminiae et Piceni Annonarii (B) Praesides (1) Alpium Cottiarum (2) Raetiae Primae (3) Raetiae Secundae. These are the so-called provinciae annonariae. (The vic. u. R. governs the prov. suburbicariae). R. I comprises the Alpine country as far as the Lake of Constance, with the capital Curia (Chur); R. II the Swabian-Bavarian Plateau, formerly called Vindelicia (capital: Augusta Vindelicorum = Augsburg).

For the geogr. character of this district cf. Ptol. 2. 12 (= edit. C. Müller I. 1. p. 277 c. comm.) Cf. et. N. D. Or. Böcking p. 443 sq. and p. 753 sq.; Tab. Peut. IV. 1; Pieper 13; Peaks, General civil and military administration of Noricum and Raetia (Studies in class. phil., Chicago 4, 1907); v. Harnack, Mission II⁴ p. 883 sq. (c. annot.), p. 939, p. 952. A dux Raetiae is mentioned in N. D. Or. 34. [for vicarius, praeses, consularis and dux cf. ad 14. 5. 7; 14. 10. 8; 14. 7. 7]. Bishop's see in this time Curia in R. I.

For campi Canini cf. Lindenbrog. (= ed. Wagner II p. 118); Sidon. Apoll. Carm. 5. 377; Greg. Turon. 10. 3.

p. 44. 7. 4. 1. *digestis diu consiliis*. Digerere occurs in Amm. in the following meanings: 1. to discuss orally, to explain: 17. 8. 3: hos legatos negotio plene digesto . . . muneratos absolvit; 21. 11. 2: reque digesta per secreta colloquia et alto roborata silentio; 2. to describe in writing, to tell etc.: 14. 7. 21: absque Mesopotamia, iam digesta cum bella Parthica narrentur; 22. 9. 6: cuius super adventu . . . in actibus Commodi principis digessimus per excessum; 28. 1. 4: hoc argumentum paulo postea digestum . . . Frynichus in theatrum induxerat Athenarum; 3. to achieve, to construct: 24. 2. 8: hanc peditatus omnis pontibus caute digestis transivit; 4. here: to consider, think it over. For the meanings under 2 and 3 cf. Plinius N. H. 29, 37; Vop. Aurel. 1. 6; and for the development of the above post-classical meanings in Amm.: Verg. Aen. 2. 182; Liv.

2. 21. 4; Ovid. fasti 2. 625; Val. Max. 1. 8. 5. Cf. et. Cod. Just. 10. 48. 12: patrimoniis dignitatum superius digestarum (= to sum up; a. 382); Cod. Theod. 11. 22. 4: Exceptis his quos Eminentissimae Tuae Sedis (of the praef. praet.) specialiter consideratio digessit (Gothofr.: id est quos relatione sua ad Imp. censuerat iusta ratione excipiendos; = to inform); Cod. Theod. 12. 6. 14: ut earum quoque singularum centesimarum ratio semper evidens scientiae tuae digesta referatur.

4. 1. *ut eo cum militis parte . . . Arbetio mag. eq. . . pergeret*. p. 44. 8—9. Cf. Pighi Nuovi Studi Amm. p. 53 annot. 1: „Credo che sia caduta una riga intiera, che cominciava con qualcosa di simile ad *Arbitio*, iniziale della riga seguente: per es. parte, <sub>> / *Barbatione recens promoto, ibidem opperiente* > / *Arbitio*, oppure <sub> *Barbatione recens ad magisterium promoto, opperiente* > *Arbitio*”; Schneider Quaest. Amm. p. 4. [for Barbatio cf. ad 14. 11. 19].

Obs. This entire caput has several gaps, of which it is very difficult or impossible to find again the correct version.

4. 1. *Arbetio*. Cf. ad 14. 11. 2 (p. 31. 12).

p. 44. 8.

4. 1. *cum validiore exercitus manu*. Cf. 15. 10. 10; 17. 6. 2; p. 44. 8—9. 17. 12. 4; 21. 2. 1 (here in the meaning: „hand”, otherwise: „host”); 20. 11. 22; 26. 6. 2; 26. 8. 7; 27. 12. 7; 29. 6. 13; Tac. ann. 1.48; 2.62; 4. 47; hist. 3. 40; 4. 59 etc.; Liv. 33. 15. 3; Fesser p. 24 sq.

4. 1. *lacus Brigantiae*. The lake of the city of Brigantia (Bregenz), p. 44. 9. i. e. the lake of Constance. In 15. 4. 3 the lake is called only: Brigantia; elsewhere Brigantinus lacus (e. g. Plinius 9. 29: lacus Rhaetiae Brigantinus). Ammianus reckons it as belonging to Raetia: accola Raetus. Cf. et. Ptolem. 2. 12. 2 (c. annot. Müller I. 1. p. 280 sq.); Strabo 4. 6. 8; Wesseling Itin. p. 237; N. D. Böcking 2 p. 800 sq.; Tab. Peut. III. 5. Not to be confused with Brigantia in Spain (la Coruña) = Brigantium. Cf. N. D. Böcking 2 p. 1038 sq.

4. 2. *immani pulsu Rhenus*. Cf. 28. 2. 2: subverti posse undarum p. 44. 12. pulsu immani, and 31. 8. 5: ut amnis in<mani> impulsu undarum (Clark; Blomgren: ut immani<amni>s pulsu undarum). Cf. et. Blomgren, De Serm. A. M. quaestiones p. 15 sq.; Novák Cur. A. p. 22.

4. 2. *et navigari . . . poterat . . . ni curreret*. Cf. 25. 8. 15: in corpora p. 44. 14—15. sua necessitas erat humana vertenda, ni iumentorum caro caesorum aliquatenus perdurasset. Cf. ad 14. 3. 2 (p. 8. 17—18); Hassenstein p. 39.

p. 44. 14—15. 4. 2. **ab ortu poterat primigenio.** Cf. Hagendahl abund. p. 206: „In iis vocabulis quibus notio incipiendi vel oriendi inest, abundantia saepissime occurrit atque varia quidem ratione efficitur.” (with ex.). Cf. 15. 9. 2: origine prima Gallorum; 14. 8. 8: (urbes) iam inde a primis auspiciis florentissimae; 14. 6. 3: primis auspiciis; 29. 1. 16: a primigenio ortu; 30. 7. 1: ab ortu primigenio; 14. 4. 3: apud has gentes quarum exordiens initium ab Assyriis ad Nili cataractas porrigitur.

p. 44. 14—16. 4. 2. **Rhenus . . . <navi> gari ab ortu poterat primigenio copiis exuberans propriis, ni ruenti curreret si<millis potius> quam fluenti.** Cf. 22. 15. 9: Nilus . . . ad cataractas, id est praeruptos scopulos venit, e quibus praecipitans ruit potius quam fluit (id est praeruptos scopulos is no glossema, as Cl. Reines. think; cf. 16. 5. 1, 23. 6. 14, 27. 7. 6, 30. 4. 3, 26. 8. 5, 22. 16. 16 and Blomgren p. 129 annot. 1); Plin. nat. hist. 5, 54: vectus aquis properantibus ad locum Aethiopum, qui Catadupi vocantur, novissimo catarracte inter occursantes scopulos non fluere immenso fragore creditur, sed ruere; Solin. 32. 7: ut ruere potius quam manare credatur; Mommsen, Amm. Geogr. Ges. Schr. 7 p. 417 adn. 3; Blomgren p. 129. Play of words in sound or meaning (or both together) is much found in Amm. Cf. 14. 7. 21: nullo inpositorum vel compositorum fidem sollemniter inquirente (also homoiot.); 14. 11. 26: incrementorum detrimentorumque (also in other authors; cf. Thes. 5. p. 837); 22. 15. 14: aliaeque (sc. pecudes) humi et in humoribus vivunt, unde ἀμφιβίοι nominantur; 19. 12. 16: immunem eum fore malorum communium; 14. 8. 10: Orontes ambiens amnis (17. 13. 4: amnis potior ambiens); 17. 5. 12: opinatus adgredi negotium publicae utilitati conducens cum duce tuo . . . sermones conseruit super pace; 17. 13. 26: . . . quam ut . . . ductor prudenter consultis exultet? persultabat Illyricum furor hostilis . . . etc.

p. 44. 16—17. 4. 3. **altaque divortia riparum adradens,** poetical and in a way abundant = alluens altas ripas. For this literal meaning of *divortium*, rather rare, cf. Verg. Aen. 9. 379 sq.: obiciunt equites sese ad divortia nota // hinc atque hinc (= „deverticula, semitae transversae a latere viae militaris”, Forbiger); Cic. ad Att. 5. 20. 3: inde ad Amanum contendit, qui Syriam a Cilicia in aquarum divortio dividit; Cic. De orat. 3. 19: Haec autem, ut ex Apennino, fluminum, sic ex communi sapientium iugo, sunt doctrinarum facta divortia . . .; Cic. ad fam. 2. 10. 2: cum venissem ad Amanum, qui mons mihi cum Bibulo communis est, divisus aquarum divortis; Liv. 38. 45: prope in ipsis jugis ad divortia aquarum;

Curt. 5. 1. 13: Ipsi amnes ex Armeniae montibus profluunt ac magno deinde aquarum divortio iter quod coeperunt percurrunt; Tac. Ann. 12. 63. 3: namque artissimo inter Europam Asiamque divortio Byzantium in extremo Europae posuere Graeci.

For *adradens* cf. Varro L. L. 7. 68: (Plautus) in <Nervolaria>: „scobina[m] ego illum actutum adradi <senem>; Plautus Captivi 2. 268: Sed utrum strictimne attonsurum dicam esse an per pectinem nescio; Horat. Ep. 1. 7. 50: conspexit, ut aiunt // Adrasum quendam vacua tonsoris in umbra (c. comment. Orelli); Columella de Arbor. 8: ne medullam laedas, adradito; ibid. Eatenus, qua adradi sunt surculi; de re rustica 5. 11: qua adraseris; Plin. Ep. 2. 12. 1: λειτούργιον . . . circumcisis et adrasum. Adrado × abrado, in mscr. often confused. It lit. means: to plane, to scrape, to shear, to trim. × (abrado) — to plane off, to scrape off, to abrade etc. So they are no synonyms at all.

4. 3. . . lacum . . Brigantiam . . per . . quadringenta et sexaginta stádio longum | parique paene spatio late diffusum, | horrore silvarum squalentium inaccessum, | nisi qua vetus illa Romana virtus et sobria iter conposuit latum, . . . Cf. 14. 11. 21: terrore propinquantis exitii iam praesepultus, | accurrat Eusebius, | cubiculi tunc praepositus, | Pentadiusque notarius, | et Mallobaudes armaturarum tribunus . . .; Homoiot. in longer rhythmical periods, in which the parts are distinguished by one homonymous syllable. Probably by chance, but at any rate not avoided. That it is not always chance appears from 23. 6. 60: His contigui sunt Sacae natio fera, | squalentia incolens loca, | solum pecori fructuosa, | ideo nec civitatibus culta (3 times cl. I and once cl. III, where e.g. it could also be read while retaining the cl. (sc. cl. II): loca squalentia incolens). For other instances cf. Blomgren p. 125 sq. Cf. et. ad 9. 7 (p. 62. 25—27), 15. 5. 28 (p. 53. 15—17), 15. 10. 4 (p. 64. 2).

4. 3. **horrore silvarum squalentium inaccessum.** Tross-Büchle: „unzugänglich durch den Schauer finsterner Wälder; Wagner: „paludibus distinctarum”, Better: (uncultivated), neglected, inhospitable. Cf. Verg. Georg. 1. 508: squalent abductis arva colonis; (perhaps also in this meaning Sil. Ital. 3. 655 and 4. 376?); Tac. Ann. 15. 42: squalenti litore; Ovid. Fasti 1. 557: Ora super postes affixaque brachia pendent, // Squalidaque humanis ossibus albet humus; Curt. Ruf. 7. 4. 27: squalida siccitate regio non hominem, non frugem alit (where sq. is connected with siccus, as often happens); Cod. Theod. 11. 28. 2: . . iugera quae

Campania provincia iuxta Inspectorum relationem et veterum monumenta chartarum in desertis et squalidis locis habere dignoscitur, hisdem provincialibus concessimus et chartas superfluae descriptionis (= assessment) cremari censemus; Cod. Theod. 13. 11. 3: ut scilicet omne territorium censeatur, quotiens defectorum levamen exposcitur, ut squalidiora atque ieiuna, culta adque opima compensent (Cod. Just. 11. 58. 4: sterilia atque ieiuna his quae culta vel opima sunt, compensentur); Gellius N. A. 2. 6: Quicquid igitur nimis inculcatum obsitumque aliqua re erat, ut incuteret visentibus facie nova horrorem, id squallere dicebatur.

- p. 45. 1. 4. 3. **vetus illa Romana virtus et sobria.** For the personification cf. ad 14. 8. 13 β and Blomgren p. 83 sq. (with note p. 83) Cf. 31. 10. 6: Nannieno negotium dedit, virtutis sobriae duci; 31. 10. 19: eo tempore quo etiam si imperium Marcus regeret Antoninus, aegre sine collegis similibus et magna sobrietate consiliorum etc.; annot. Vales. in edit. Wagner II p. 120 sq. (for sobrius).
- p. 45. 2. 4. 3. **natura locorum.** Cf. 23. 6. 65: et dispar est tractuum diversorum ingenium (= natura). Ingenium used thus: Naevius, Sall., Verg., Tac., (cf. Heraeus ad Hist. I 51), Jul. Val. Cf. et. Fesser p. 53.
- p. 45. 2. 4. 3. **caeli inclementia refragante.** Cf. Justin. H. Ph. 9. 2. 7: Atheas inclementiam coeli et terrae sterilitatem causatus. Caeli incl. = rough climate. Inclementia is non-class. „Inclementia . . ist abgesehen von Tac. Just. Paneg. Amm. u. Ennodius nur Poet.-Lat. und = inhumanitas, crudelitas, immanitas, severitas, saevitia. Diese und ähnliche Wörter braucht Seneca (in seinem Buche de clementia) als Gegensatz von clem., nie aber incl., wiewohl inclemens und inclementius schon bei Livius vorkommen.“ (Krebs Antib. I p. 711). Refragari in this connection and meaning also entirely unclassical. Heumann-Seckel states, that of the 19 places in the Digests, where refr. is found, one third is interpolated and that it does not occur before Papinianus († 212).
- p. 45. 4. 4. 4. **undarum quietem . . . pigram.** A supplement to the ex., which Hassenst. p. 16—21 gives, is found in Blomgren p. 83. Very curious is 22. 8. 14: per has saxorum dehiscentium concursantiumque crebritates si etiam ales intervallasset (= per haec saxa crebro dehiscentia et concursantia), where „per abstractum significatur notio adverbii, quod ad attributum pertinet“ (Blomgren ibid.). Cf. et. ad 14. 6. 23 (p. 17. 17) and ad 14. 8. 13 (p. 25. 3).

4. 4. **finali intersecat libramento.** Cf. annot. Vales. ad h. l.: „Antonius p. 45. 4. Loisellus ad oram codicis sui adnotarat legendum videri funali: ut funale libramentum sit quod libella, quae Graece σταθμή. Potest tamen vulgata lectio defendi“; Et. Wagner ibid.: „Finali libramento. Est punctum, quo motus sit in libra; finali, quod fines praescribit, ultra quos progredi non liceat, si aequilibrium servandum sit. Melius tamen videtur funali libramento.“ Btl.: lineali, wrong in my opinion.

4. 4. **elementum — intimatur.** Cf. Wagner edit. Amm. II p. 121: p. 45. 5—7. „Elementum eo sensu quo philosophi principia rerum στοιχεία adpellare solent, ergo h. l. aqua perenni discordia separata, quae aliis nunquam se miscet elementis, vocabulo et viribus absolvitur integris, nec nomen amittit nec vim aquarum, nec contagia (metaphora prope poetica) patiens, i. q. paullo superius: nullis aquis externis adoptatis — intimatur. .“

4. 4. **oceani gurgitibus intimatur.** Cf. ad 14. 2. 10 (p. 6. 6) for p. 45. 7. gurgues. Cf. Krebs Antib. II⁷ p. 775 sq.: „Intimare ist, wie Wölfflin sagt, weitaus das gebräuchlichste unter den Verba desuperlativa. Es kommt zuerst bei Apul., dann bei Tertull., Cypr., Arnob., Commodian vor. Seine Bedeutung ist „zu Gemüte führen, zur Beherzigung mitteilen“; dann aber wird es einfaches Verbum dicendi. Ausserdem ist das Wort bei den script. hist. Aug., bei Amm., Symm. und andern Sp. L. zu finden.“ Cf. Arch. L. L. G. II p. 359 sq.; III p. 108 sq.; XIII p. 177 (Wölfflin, with numerous instances); Roensch It. p. 173; Heumann-Seckel p. 285; A. Marc. 22. 8. 40: dein Borysthenes a montibus oriens Nerviorum, primigeniis fontibus copiosus, concursuque multorum amnium adolescens, mari praeruptis undarum verticibus intimatur; 21. 11. 1: haec et talia cogitanti, sollicitoque super maximis rebus et seriis, nuntius metuendus intimatur et insperatus, ausa indicans quorundam immania. For desuperl. in late-Lat. cf. Roensch ibid. p. 172 sq.

4. 5. **limosa subluvie.** Subl. very rare word, non-class. = mud, dirt etc. p. 45. 9. Cf. Apul. Met. 9. 9: viam subluvie coenosa lubricam; Colum. 7. 5 (a sort of foot-and-mouth disease); Plin. N. H. 30. 9 (sores on nails of people); Marc. Emp. 18: subluvium digitorum. Cf. et. ed. Franzius Plin. 8 p. 512 sq.; Liesenberg (1888) p. 23.

limosus. (Not in Liesenberg). Cf. Verg. Aen. 2. 135; Ecl. 1. 49; Cels. 2. 21; Front. aquaed. 15; Ovid. Met. 1. 634; Tristia 4. 1. 7; Am. 3. 6. 1; Rem. am. 142; Colum. 8. 16; Plin. N. H. 9. 42 (limosa n. pl.); ad 14. 2. 9 (p. 6. 2).

p. 45. 10—11. 4. 5. quod nī ita agi ipse doceret aspectus, nulla vi credebatur posse discerni. Cf. 30. 5. 10: quam (praefecturam) si adeptus rexisset (Leo), prae his, quae erat ausurus, administratio Probi ferebatur in caelum; ad 14. 3. 2 (p. 8. 17—18).

p. 45. 11—12. 4. 6. sic Alfeus oriens in Arcadia . . Ionium mare. Cf. Verg. Aen. 3. 694 sq.: Alpheum fama est huc Elidis amnem // occultas egisse vias subter mare, qui nunc // ore, Arethusa, tuo Siculis confunditur undis; Stat. Silv. I. 2. 203 sq.: nitidae sic transfuga Pisae // amnis in externos longe flammatus amores // flumina demerso trahit intemerata canali // donec Sicanios tandem prolatus anhelo // ore bibat fontes. For this very well-known fable, very much loved by poets and rhetoricians, till in the late time (Claud. R. Proserp. 2. 60; Sidon. C. IX 102 sq.) cf. Vollmer in his edit. of Statius ad I. 2. 203 (p. 255).

p. 45. 12—14. 4. 6—7 ad usque amatae confinia †progrontusque barbaros . . . barbaros dum adessent, licet sciret †orta bellorum, (cf. ad p. 45. 14—17). Valesius reads: adusque amatae confinia progreditur. Arbetio, qui adventus barbarorum nuntiarent, non exspectans dum adessent, licet sciret aspera orsa bellorum, etc. (Bentley: furta bellorum; Novák: opera jam orta). „Profecto maior huius loci lacuna est quam ut coniectura cuiusquam suppleri possit. Ceterum tō progreditur est ab emendatione Sig. Gelenii profectum, quem tamen proprietas Latini sermonis refutat” (Val.) I do not understand the objection to progreditur; because it is a praesens?

ad usque. „Statt usque ad, ab findet sich bei Dichtern seit Catull aus metrischen Gründen die Umstellung ad bzw. ab usque, in Prosa seit Tac.” (Hofm.-Leum. p. 498). Ad usque often in Amm.; cf. 15. 8. 18; 15. 10. 6; 16. 1. 4; 16. 2. 8; 17. 2. 2; 21. 10. 8; 22. 8. 27; 22. 9. 8 etc. Ad is often separated from usque: 18. 6. 21: ad quinquagesimum usque lapidem; 18. 7. 9: unde ad Constantinam usque oppidum; 19. 2. 10: et ad extremum usque diei productas; 22. 13. 2: ad id usque imperatorem ira provexit (a very strange placing indeed!); etc. The metrical reasons also hold good for Amm., of course in the clauses, in which the dialysis should be thought of (cf. Harmon p. 226). Cf. 22. 9. 8: ad usque rabiem (cl. II); 18. 6. 21 (cl. II); 18. 7. 9 (cl. II).

p. 45. 14—17. 4. 7—8. in occultas delatus insidias, stetit immobilis, malo repentino percussus visi e latebris hostes exiliunt et sine parsimonia quicquid offendi poterat, telorum genere multiplici

configebant. The gap behind percussus Langen Emend. Amm. supplements with <namque impro>-visi, O. Guenther, Quaest. Amm. crit. p. 15 with <impro>-visi (cf. 17. 10. 3) or: <subito> visi (cf. 28. 5. 6; 31. 9. 4; 31. 11. 4).

4. 8. dispalantes. Very rare word. Cf. Sisenn. hist. fr. inc. 134 (= p. 45. 20. Non. 101. 7); eiusd. hist. 3 fr. 35 (= Non. 101. 6); Nep. Hann. 5. 2; Nep. Lys. 1. 2; Ps. Sall. de rep. 2. 5. 6; Amm. 16. 12. 1: quo dispalato foedo terrore (or from dispalare? Cf. Non. 101. 5); 20. 4. 21; 24. 7. 2; 31. 2. 10 (palari e.g.: 27. 9. 7; 30. 5. 14); Fesser p. 36; Krebs Antib.⁷ 1. p. 456 sq. Also in Gellius (1. 11. 4) and Dictys. Prob. archaism.

4. 8. revoluta iam luce. Cf. Verg. Aen. 10. 256: Et interea revoluta p. 45. 22. ruebat // matura iam luce dies.. Probably poetical reminiscence. Revolve(i) is generally very much found in Verg.

4. 8. armatorum . . . tribuni. Cf. ad 14. 5. 8 (p. 11. 22) for tribunus. p. 45. 23—p. 46. 1. From the context it appears clearly that armati forms a contrast here with tribuni. Meant is the ordinary miles gregarius (Cf. A. Müller Mil. p. 591 sq.) This use of armati, not signalized by Grosse op. cit., also in Vegetius Epit. 1. m. 2. 2: ut in una phalange armatorum VIII milia censerentur; ibid. Galli . . catervis utebantur in proelio in quibus erant sena milia armatorum; 2. 6: minor itaque numerus armatorum in una legione esse non debet; 3. 3: ad castella idonea et armatorum firmata praesidiis; 3. 6: a lateribus quoque pari armatorum manu impedimenta claudenda sunt; 3. 21: si adversarios aut locorum angustiis aut armatorum multitudine circumdederint; 3. 24: circumfusus undique armatorum globis cum magistris (sc. elephantarum) absque vulneribus capiebantur (sc. elefanti) [A close mass of infantry was called globus then; cf. Amm. 21. 5. 1: armatarum cohortium globis]; 4. 18: eruptione facta globus egreditur armatorum. In all cases here it can appositely be replaced by milites etc.

4. 9. strictis mucronibus discurrebant, frendendo minas p. 46. 3—4. tumidas intentantes. Tross-Bücheler: „schwärmten (um die römischen Verschanzungen) herum, mit gezückten Schwertern grinsend und dummdreiste Drohungen ausstoßend.” For intentare cf. 15. 5. 37: intentasse poetae Filoxeno mortem; 16. 2. 12: eique iam adventanti (globus?) Germanorum pugnam intentans occurrit; 17. 5. 14: formidines, quae nobis intentantur ex more; 18. 6. 16: adigente metu qui intentabatur; 31. 12. 9: et timore imperatorii nominis intentato; 24. 6. 8: propinquan-

tibus exitium intentabant; 30. 1. 20: gladium destitutum intentans; 21. 12. 8: nec ad intentandas machinas . . inveniebatur locus . . ; 20. 9. 5: utque id facile formido intentatorum efficeret. For the frequent intensiva cf. Liesenberg (1889) p. 1 sq.

strictis mucronibus. For this poetical expression borrowed from Vergil cf. ad 14. 5. 8 (p. 11. 24—25).

frendendo. Frendere archaical and poetical, very rare in class. prose. Cf. 16. 12. 36: frendentes immania (for immania cf. ad 14. 9. 6, p. 27. 7—8).

minas tumidas. The author means „prosaically” speaking: frendentes tumida ira minas intendentes. Tac. Ann. 3. 36 has: minas intendere. Cf. et. Hagendahl St. Amm. p. 10 and p. 25.

p. 46. 4. 4. 9. Scutarii. Cf. ad 14. 10. 8 (p. 29. 14) and Grosse Mil. p. 94 sq.

p. 46. 4. 4. 9. obiectu. Cf. 27. 1. 5: obiectu corporis; 31. 8. 1: aggerum obiectu celsorum; 31. 13. 2: obiectu pulveris. Also Caes. Verg. Lucret. Tac. Plin. N. H. Gellius. For the numerous subst. in -us cf. Liesenberg (1888) p. 14 sq.

p. 46. 4—5. 4. 9. turmarum hostilium. Cf. 25. 1. 3: hostiles turmae; 29. 1. 3; and with Variatio 31. 13. 5: confertas hostium turmas; and ad 14. 5. 3 (p. 10. 16). Cf. et. 15. 5. 8: hostili tumore and ad 14. 1. 1 (p. 1. 10).

p. 46. 5. 4. 9. conspiratis mentibus = unanimous. Conspiratus = (here) conspirans. Cf. 29. 4. 5: idque quod acciderat (suspicati Cl. suspenti V) suspecti (= suspicientes, suspicantes); Vitae Patrum: Ita et monachus debet semper suspectus esse et animam suam obiurgare (Salonius p. 253). For this mingling of the genera verbi cf. Rönsch It. p. 339 sq.; Salonius Vitae Patrum p. 252 sq.; Hofmann-Leumann p. 547 sq. (deponentia); Ljungvik op. cit. p. 102 (note); Hazidakis, Einleitung in die neugriech. Gramm. (1892) p. 197 sq.

p. 46. 6. 4. 10. aerumnae. Cf. Fesser p. 49: „Aer. ist archaisch-dichterisch. Von Quint. 8. 3. 26 wird es neben anderen archaischen Wörtern abgelehnt. Cic. verwendet es mehrmals bewußt archaisierend (cf. de fin. 2. 118), besonders in der spezifisch arch. Verbindung aerumnae Herculis. Das Wort wird häufiger in der Prosa vom 2. Jahrh. p. Chr. ab. Amm. verwendet es (neben aerumnosus) 43 Mal, ohne natürlich für die Höhenlage dieses Wortes ein Gefühl zu haben.” „Natürlich” at least according to Fesser. Cf. et. Thes. s.v.; Krebs Antib. p. 117 sq. Preferably used in speeches by historians.

4. 10. cum plerosque recentis aerumnae documenta terrent, p. 46. 6—7. <et Cl.> intuta fore residua credens haereret Arbetio. Wagner explains: residuis militibus haud satis tuto confidens. For residuus cf. 25. 6. 13: ut his magnitudine fluentorum abreptis, residuorum pertinacia frangeretur; 29. 5. 22: Sagittariorum vero primoribus manus incidit, residuos supplicio capitali multavit; 16. 2. 13: captis non nullis, aliis in ipso proelii fervore truncatis, residui discessere, celeritatis praesidio tecti; etc. In the last places = reliqui, the ordinary word in class. Lat. Residua = reliqua, cetera, very unusual and rare. In jur. Lat. residua = residuae pecuniae = withheld, embezzled money.

4. 10. verum cum plerosque recentis aerumnae documenta p. 46. 6—7. terrent, intuta fore residua credens haereret Arbetio, tres simul exiluire tribuni, . . intota V, et intuta Val. Cl., et totam B, in tuto G. For a similar asyndeton cf. Blomgren p. 45 and ad 15.2.7 p. 40. 16—20.

4. 10. tribuni, Arintheus agens vicem armaturarum rectoris. p. 46. 8. For tribuni cf. ad 15. 3. 10 (p. 43. 17—18). Arintheus is a vicarius tribuni. Cf. Grosse Rangordn. p. 151: „vicarius tribuni, der Stellvertreter des Kommandeurs (Oberst-Oberstleutnant), bei den Scholae und bei sonstigen Truppenteilen. Der Tribun eines Regiments konnte zugleich Vicar eines anderen sein, auch konnten zwei Regimenter unter einem solchen Chef stehen, beides Maßnahmen, die wohl nur provisorischen Charakter trugen.” (with lit. cited). For armatura cf. ad 14. 6. 17 a. (p. 16. 4) and ad 14. 7. 9 (p. 20. 13—14: scholae).

Arintheus. Cf. 24. 1. 2: cornu vero laevum cum equitum copiis Arintheo tradidit et Ormisdae (under Julianus 363); 25. 5. 2; 25. 7. 7: contra hos (sc. Persas) cum Salutio praefecto mittitur Arintheus (sc. legati Romanorum; under Jovianus 363); 26. 5. 2: (the division of the military commands by Valens and Valentinianus 364) in orientem vero secuturus Valentem ordinatus est Victor, ipse quoque iudicio principis ante dicti provectus, cui iunctus est Arintheus; 26. 8. 4: Unde cum Ancyram Valens citis itineribus revertisset, comperissetque Lupicinum (mag. equitum per Orientem) ab oriente cum catervis adventare . . . Arintheum, lectissimum ducem, occurrurum hostibus (sc. Procopianis 365/366) misit; 27. 5. 4: ne igitur aestate omni consumpta sine ullo remearet effectus (sc. Valens, a^o 367), Arintheo magistro peditum misso cum praedatoriis globis (sc. contra Gothos); 27. 5. 9: missique vicissim

Victor et Arintheus, qui tunc equestrem <curabant militiam et pedestrem; v. app. crit. edit. Cl. >, cum propositis condicionibus adsentiri Gothos docuissent . . ; 27. 12. 15: Hac clade late diffusa Armenia omnis perisset inpropugnata, ni Arinthei adventu territi Persae, eam incursare denuo distulissent . . (370); etc.

Arintheus under Julianus magister equitum, under Jovianus mag. peditum praesentalis, since the division of the commands under Valens and Valentinianus (364) mag. peditum praesentalis in the Eastern part of the empire. In the year 370 he had to protect Armenia, in 372 he was consul. Together with Victor (mag. equitum praesentalis) in 378 he acted for Trajanus, who had to answer to Valens for a defeat he had suffered in 377. His successor was Trajanus, just mentioned. Cf. et. Seeck, R. E. II p. 831; v. Nischer Hermes op. cit. p. 436 sq.; Enßlin, Heermeisteramt op. cit. p. 119 sq. The year of his death is not definitely known. For mag. peditum and equitum cf. ad 14. 9. 1 (p. 25. 26)β.

p. 46. 8—9.

4. 10. Seniauchus qui equestrem turmam comitum tuebatur. „Turma ist bei Amm. ein allgemeiner Ausdruck für jeden Kavalleriekörper (16. 12. 7: equestres . . turmae; 18. 6. 16: equestri . . turma; 18. 9. 4: equestres . . turmae; 21. 6. 6: turmarum equestrium; 31. 16. 6: orientalis turma, in 31. 16. 5 called: Saracenorum cuneus; etc. In the last place we miss equester. As the turma consists of Saraceni, it will most probably have been a mounted unit.). Mehrfach erwähnt er ausdrücklich daß eine solche von einem tribunen kommandiert war (16. 11. 6; 16. 12. 39; 21. 11. 2; 24. 3. 1), einmal sind 2 Turmen zusammen etwa 700 Mann stark. (18. 8. 2) Eine Verordnung vom Jahre 380 zeigt, daß dieser Ausdruck auch der offiziellen Sprache nicht fremd war (Cod. Theod. 7. 13. 8).“ (Grosse Mil. p. 48).

Comitum. Cf. Amm. 18. 9. 4: aderat comitum quoque sagittariorum pars maior, equestres videlicet turmae ita cognominatae, ubi merent omnes ingenui barbari, armorum viriumque firmitudine inter alios eminentes; Vales. ad 15. 4. 10: „Hi comites diversis cognominibus appellati, inter vexillationes militabant sub Magistris militum. Alii enim Comites seniores, alii iuniores, alii Comites Clibanarii, alii Sagittarii, alii aliter dicebantur“ (vexillationes = cavalry regiments; cf. ad 14. 7. 9: scholae). According to Grosse Mil. p. 49 comites is an „Ehrentitel“ („Gefolgsleute“), which I dare say will be correct. They are mentioned in several places in the N. D. e. g. N. D. Occ. 6: Comites Seniores, Comites Alani, both belonging to the vexillationes palatinae (cf. ad 14. 11. 15, p. 33. 26) and Comites Iuniores, belonging to the vexillationes

comitatenses (cf. ad 14. 11. 15, p. 33. 26), which comites are all: sub dispositione viri illustris comitis et magistri equitum praesentalis (cf. ad 14. 9. 1, p. 25. 26). These comites should not be confused with the comites of the high government circles (cf. ad 14. 5. 1, p. 10. 11).

Seniauchus. Cf. Amm. 25. 10. 6: Deinde Tarso profectus (sc. Jovianus Imp. June 27. 363—Febr. 16. 364; this date lies between Nov. 12 and 27. 363) extensis itineribus venit oppidum Cappadociae Tyana, ubi ei reversi Procopius notarius et Memoridus tribunus occurrunt [cf. 25. 8. 8: hinc Procopius alter, notarius, et Memoridus, militaris tribunus, ad tractus Illyricos mittuntur et Galliarum, nuntiaturi Juliani mortem (June 26. 363) et Iovianum post eius obitum ad culmen augustum evectum; hinc = from Ur ± July 363], gestorumque aperiant textum, hinc (ut ordo poscebat) exorsi quod Lucillianus (father-in-law of emperor Iovianus and magister equitum per Illyricum; cf. Enßlin Heermeisteramt op. cit. p. 106, 107 note 3, p. 120) Mediolanum ingressus, cum Seniaucho et Valentiniano (the later emperor, 364—375), quos duxerat secum, cognito quod Malarichus (cf. ad 15. 5. 6, p. 48. 8) recusavit suscipere magisterium (sc. per Gallias, viz. instead of Iovinus), effuso cursu petierat Remos. 7: et tanquam in alto gentis silentio, extra calcem (ut dicitur) procurrebat et intempestive — parum etiam tum firmatis omnibus . . . ex actuario ratiociniis scrutandis (cf. ad 15. 5. 3, p. 47. 7) incubuit [= intra fines iustos se non continuit rationesque exegit cupidius: Wagner], qui fraudum conscius et noxarum, ad militaria signa confugit, finxitque Iuliano (sc. imperatore Nov. 3. 361—June 26. 363) superstite in res novas quendam medium (= quendam e medio populo) surrexisse, cuius fallaciis turbo militaris acerrime concitus, Lucillianum et Seniauchum occidit (so this last case must have occurred between ± July 363 and the end of October 363 at the utmost). Valentinianum enim paulo postea principem, trepidum et quo confugeret ambigentem, Primitius hospes tutius amendarat. Cf. et. Seeck, R. E., II A, 1461, with wrong dating.

4. 10. Bappo ducens Promotos. For tribunus cf. ad 15. 3. 10. The p. 46. 9—10.
promoti are horsemen serving in the cavalry-regiments, which are called vexillationes (according to Lyd. de mag. 1. 46 at the strength of 500 men). Grosse considers it probable, that the Promoti originated from „aus ihrem Verbands losgelösten Legionskavallerie“ by Gallienus (253—268). The name must mean those, who have been promoted to a higher rank. Origin and function of these promoti are, however, not clear, as is the case with more military establishments of those times, Cf. Wagner ed. Amm. M. 2. p. 122 sq.; Böcking N. D. 1. p. 185 sq. (with

lit.); Grosse Mil. p. 16 sq.; 49 sq.; 52 sq.; Gothofr. ad Cod. Theod. 9. 21. 2 (where the difference is explained between *promoti* et *beneficiarii*): „... ex his colligimus *promotos* esse et in officiali et in armata militia ad gradum aliquem *promotos*: *munificibus* (cf. ad 15. 1. 2, p. 39. 2) *contrarios*. Quibus *munificibus*, ut *promoti* opponuntur, ita et iisdem *beneficiarii* opponuntur, qui *muneris beneficio* vacabant... *beneficiarii* quidem *promoti*; at non *promoti* omnes *beneficiarii*. *Promoti* sc. alii gradu et ordine militiae gradatim emenso, alii *beneficio*: utrique *promoti*; sed *beneficiarii* ex *beneficio* et per saltum; *promoti*, specialiter dicti, qui gradu”; and *ibid.* ad 8. 5. 2; 9. 26. 2.

Bappo. In the Cod. Theod. 6. 4. 21 there is mentioned a *praefectus urbi Bappo*, to which this *lex* 21 is directed, *Modesto et Arintho* *coss.* (a^o. 372). It is probable that this is the same person. Cf. Seeck, R. E. II p. 2850: „Wahrscheinlich ist er identisch mit jenem *Trevirer*, der nach *Auson.* *Mosella* 409 die zweite Stelle in Rom, d. h. das *Vicariat* der Stadt bekleidet hatte, für den man aber um das J. 370 die *Praefectura* erwartete”; *Symmachus* ed. Seeck CXXI not. 716; *Auson.* ed. Schenkl. p. 95.

p. 46. 13. 4. 11. *universos in fugam coegere foedissimam*. Cf. 27. 5. 6: *Athanicum*... *extremorum metu* coegit in fugam; 15. 1. 2: *equorum permutatione veloci*, ut *nimietate cogendi quosdam* *extingueret*; 16. 12. 31; 21. 13. 3; 20. 11. 7: et *nequid omitteret*, quod ante *fervorem certaminum* erat *necessario praestruendum*, *viris prudentibus missis*, *condicione posita dupla*, cogebat (*imperf. de conatu!*) *moenium defensores redire ad suos*, *alienis sine cruore concessis*, aut in *dicionem* venire *Romanam dignitatibus augendos et praemiis* (V, Cl., Schneider; rogabat Btl.; urgebat C. F. W. Müller; adiebat Kiessl.; iubebat Nov.).

p. 46. 14—15. 4. 11. *corpora nudantes intacta*. Cf. 19. 11. 15: *lateraque nudantes intacta*; Sall. Hist. IV 62; in | *nuda*, in | *tecta corpora* (*Maurenbrecher*, *Keil*) or: in | *nuda*, *intacta corpora* (*Dietsch*; *intacta* = part. perf. pass. of *intego* × *nuda*) or: in | *nuda intacta corpora* (*Fesser*; *intectus* = uncovered). Cf. (*intectum corpus*): Sall. Hist. III 104; Senec. Dial. 1. 4. 15; Tac. Hist. IV 46; Aur. Victor Caes. 21. 3; Apul. Met. 10. 31: *nudum et intectum corpus*; 9. 30: *nudis et intectis pedibus*; 3. 20: *intecti atque nudati*; Ambros. ep. 49. 4: *nuda et intacta sunt omnia*. „Das *Asyndeton* bleibt anstößig, wird aber eher zu ertragen sein als die *Vorschläge* von *Dietsch* und *Maurenbrecher*.” (*Fesser* p. 14). For the *asyndeton* in the above place of *Sallustius* cf. *Blomgren* p. 11 sq.; *Hofm.-Leum.* p. 638.

4. 12. *dorsis videbantur innexi*. Poetical expression, elsewhere p. 46. 16. unknown to me in this combination. Verg. Ovid. Stat. Sil. Tac.

4. 12. *cadaverum strues*. Cf. 17. 4. 2: *ambitiosa moenium strue* p. 46. 19. (from Egypt. Thebe; Wagner: „*amplis et sumptuosus moenium molibus*”). Cf. Tac. Hist. 2. 70: *aggerem armorum, strues corporum intueri mirari*; 3. 83: *simul cruor et strues corporum*. Also class.

4. 12. *perfusi sanie peremptorum*. Cf. 19. 9. 9: *corpora*... *sanie* p. 46. 19—20. *perfusa*; 21. 16. 15: *sanie perfusus horrenda* (*Constantius* sc.).

4. 13. *imperator Mediolanum ad hiberna ovans revertit et laetus*. This unusual connection seems to occur in *Amm.* only. Cf. 23. 3. 7: *exultans pernoctavit et laetus*; 28. 2. 5: <his> ac *talibus laetus exul<tans>que*; *Hagend.* abund. p. 179.

5. 1. *rebus afflictis* = in or at this distress. p. 46. 22.

5. 1. *fortuna moderatrix humanorum casuum*. In *Amm.* *casus* p. 46. 23—p. 47. 1. often means: accident, occurrence, but various times the word is found to be used in such a way, that it may be conceived as *vicissitudes* subject to fortune, fate etc. *Fortuna* is about synonymous with *fatum* here. *Amm.* is a determinist, at the same time under the influence of *New-Platonism* and full of admiration for all that is old-roman. Therefore in such words as *fortuna*, *casus*, *fatum*, *oraculum* etc. attention should be paid to the context; for it will often appear that the meaning of these conceptions is different from what would be supposed on superficial reading. Of course literary reminiscences also play their parts (cf. 25. 4. 14: *Felicitas ita eminuit*, ut *ipsis quodam modo cervicibus Fortunae aliquamdiu bonae gubernatricis evectus* etc; 27. 11. 2: *hunc quasi gemina quaedam (ut fingunt poetae) fortuna vehens praepetibus pinnis* etc.). For his deterministic belief cf. 25. 3. 17: *civilia moderatius regens et examinatis rationibus bella inferens* <et> *repellens*, tametsi *prosperitas simul utilitasque consultorum non ubique concordent*, quoniam *coeptorum eventus superae sibi vindicant potestates*; 25. 3. 19: *nec fateri pudebit interitum me ferro dudum didici fide fatidica praecinente* (both places from the speech of dying *Julianus*). Seemingly in contrast with this determinism e. g. 21. 5. 2: *iam dudum tacita deliberatione vos aestimo*, *magni commilitones*, *gestorum excitos amplitudine*, *hoc operiri consilium*, *ut eventus qui sperantur perpendi possint et praecaveri* (*Julianus' speech*); and 24. 3. 6: *haec vobis cuncta poterunt abundare si inperterriti, deo*

meque (quantum humana ratio patitur) caute ductante mitius egeritis (Julianus' speech), where the „natural“ practical point of view is pronounced. Cf. 14. 11. 25 (Adrastia-Nemesis); Mau, Rel. Jul. passim; Enßlin p. 69 sq. (Ammian. und die Schicksalsmacht); Wissowa, Rel. u. Kultus der Römer² p. 377 sq.; H. Posnanski, Nemesis und Adrasteia (Bresl. phil. Abh. V 2, 1890).

p. 47. 1—2. 5. 1. motum eventu celeri consummavit, impendio formidatum.

Tross-Bücheler: „(wenn nicht die Glücksgöttin) den sehr bedenklichen Aufstand zu einem raschen Ende geführt habe.“ For *impedio* cf. ad 14. 1. 9 (p. 3. 14) and Fesser p. 46; *consummare*: to lead to the highest summit, to perfect etc. since Liv., not in class. prose. The meaning here very unusual and rare, and properly speaking opposite to the basic meaning of the word: = to finish, finem facere alicui rei; herewith *eventu celeri* abl. modi. (For *consummare* cf. Krebs Antib. with lit.). *formidatum*. Poetical like *formidabilis* (cf. Hagendahl St. Ammianea p. 43) = *terribilis*, *formidolosus*.

p. 47. 2—3. 5. 2. caedes acerbis rapinasque et incendia. Cf. 15. 3. 11: residui

ducti Mediolanum excruciatique tormentis et confes<si> inter epulas petulanter se quaedam locutos; 20. 7. 1: tres legiones . . secunda Flavia secundaque Armeniaca et Parthica itidem secunda. Variation of que . . et; cf. Blomgren p. 27 and for the variation of the particulae in general ibid. p. 26 sq.

p. 47. 3. 5. 2. barbaris licenter grassantibus. Cf. 23. 6. 7: licenter gras-

santium (ducum); 29. 5. 8: iniquitate grassante licentius; 26. 3. 4: usque eo grassante licentia (Tac. Hist. 1. 37: minore avaritia ac licentia grassatus esset T. Vinus); 24. 2. 4: omni saevitia . . grassatus; Sall. Jug. 64. 5: cupidine atque ira grassari; Horat. Sat. 2. 5. 93: obsequio grassare; Liv. 3. 44. 8: se jure grassari, non vi; Tac. Hist. 3. 39: placuit veneno grassari; Just., Apul.; Fesser p. 36 (with lit.).

p. 47. 4. 5. 2. Silvanus pedestris militiae rector. Cf. Enßlin, Zum Heer-

meisteramt op. cit. p. 107: „Nach der Beseitigung des Usurpators Magnentius (353 definitely; cf. Komm. I. p. 41) scheint Constantius eine teilweise Neubesetzung der Heermeisterstellen vorgenommen zu haben. Magister peditum praesentalis (cf. ad 14. 9. 1, p. 25. 26) war jetzt Silvanus, magister equitum Arbitio (cf. ad 14. 11. 2, p. 31. 12). Silvanus, ein Franke, war in der Schlacht bei Mursa (351) von Magnentius zu Constantius übergegangen und hatte sich damit, wie Aurelius Victor sagt

(42. 15: in Gallia ortus barbaris parentibus ordine militiae, simul a Magnentio ad Constantium transgressu pedestre ad magisterium adolescentior meruerat), das magisterium pedestre verdient. Da wir aber in Cod. Theod. 7. 1. 2 vom 27. Mai 352 ihn als mag. eq. et peditum angeredet sehen, möchte ich glauben, daß Silvanus nach der Befreiung von Illyricum durch die genannte Schlacht zuerst den Rang eines Sprengelgenerals von Illyricum erhalten habe; denn die Stelle des mag. ped. scheint doch nicht unmittelbar nach der Schlacht frei gewesen zu sein. Immerhin muß er bald danach mag. peditum geworden sein. Als solcher wurde er im Anfang 355 mit einem Sonderauftrag gegen Germanenschen, die in Gallien eingefallen waren geschickt und hatte Erfolge. Als er vernahm, er sei bei Constantius verdächtigt, nach dem Kaiserpurpur zu streben, ließ er sich von seinen Truppen in Köln zum Kaiser ausrufen, wurde aber kurz darauf durch Ursicinus beseitigt.“ Cf. et. von Nischer op. cit. p. 430 sq.; Seock, R. E. III A 125, 4; Stein Spätr. Gesch. I. p. 221.

5. 2. efficax ad haec corrigenda. Cf. Krebs Antib. I p. 491: „Efficax p. 47. 4.

gehört zu den vulgären Adjektiven auf -ax, welche von der klass. Sprache verschmäht wurden, aber mit Livius und den nachklass. Autoren in die Litterarsprache eindringen.“ (with lit.) and earlier: „Gut, wirksam sein für etwas, für jemand, wird mit ad oder in c. accus. oder auch mit dem Dativ, wirksam sein gegen etwas durch adversus oder contra c. accus., in etwas, bei etwas wirksam sein ist effic. esse in aliqua re, z. B. in veteribus malis und efficacissimum est mit folgendem Infin. als Subjekt.“ For the adj. in -ax cf. Paucker Vorarbeiten p. 45 (with a list of them) and eiusd. de latinitate B. Hieronymi p. 53. Cf. 16. 4. 4: efficacissimus Caesar. Meaning: strenuus, idoneus (Wagner).

5. 2. perrexit. Here: broke up (camp). Whence? Cf. 15. 4. 2 s.v. p. 47. 5. Silvanus.

5. 2. Arbetione id maturari modis quibus poterat adigente. p. 47. 5—6.

For Arbetio cf. ad 14. 11. 2, p. 31. 12. For adigo c. inf. (since Verg.) cf. Thes. I 678, 60 sq. and Hofmann-Leum. p. 580.

5. 3. Dynamius quidam actuarius sarcinalium principis p. 47. 7.

iumentorum. Cf. Grosse Mil. p. 192 sq.: „Der actuarius war in älterer Zeit ein Soldat, gewählt meistens aus den principales (Domaszewski, Rangordnung p. 268; pr. = ± officer). In unserem Zeitalter nimmt er aber eine eigentümliche Mittelstellung zwischen Militär und Zivil

ein, er war *militaris*, Militärbeamter, nicht *miles*. Das zeigt sich darin, daß die ihn betreffenden Erlasse teils an den *praefectus praetorio* (cf. ad 14. 7. 9, p. 20. 14—15), teils an den *magister militum* gerichtet sind (cf. ad 14. 9. 1, p. 25. 26). Die Stellung der *actuarii* hat sich mit der Zeit verschlechtert. Nach einem Gesetz vom Jahre 333 waren sie frei von der *capitatio* („poll-tax“). nach einem anderen vom Jahre 365 bezogen die *actuarii* der palatinischen und *comitatensischen* Truppenteile (cf. ad 14. 11. 15, p. 33. 26) sechs, die der *pseudocomitatensischen* (*comitatenses* of lower rank) vier *Proviand-* und *Futtermationen*; ferner erhielten sie nach zehnjähriger tadelloser Amtsführung den *Perfektissimat* (cf. ad 14. 10. 8, p. 29. 14) und die Anwartschaft auf noch höhere Würden. Ja, nach Amm. (20. 5. 9) wurden sie sogar zu Provinzialstatthaltern befördert . . . Ihre unmittelbaren Vorgesetzten waren zu allen Zeiten die *magistri militum*, die ihre Amtstätigkeit durch *Scriniarii* (*financial officials*) revidieren ließen. Bei jedem Truppenteil war ein *actuarius*; seine Aufgabe war, den notwendigen *Proviand* zu berechnen, den er täglich von dem *Steuereinnehmer* (*susceptor*) gegen persönliche Quittung (*pittacium authenticum*) in Empfang nahm und dann verteilte. Unter Anastasius (491—518) bekamen die *actuarii* auch die Geldauszahlung, wofür sie eine bestimmte *Sportel* („present“) erheben durften. Damit erschöpft sich aber ihre Tätigkeit nicht: sie sind beteiligt bei der Ausfertigung der Urkunde, die der Frau eines *scholaris* (cf. ad 14. 7. 9, p. 20. 13—14) den Tod ihres Mannes bescheinigt, haben also noch andere *Bureautätigkeit* ausgeübt. In der Überlieferung zeigen sie ein doppeltes Gesicht. Einerseits waren sie bei den Truppen außerordentlich beliebt. Die Soldaten bitten für ihre Beförderung (Amm. 20. 5. 9) und nehmen sogar in aufrührerischer Weise für sie Partei (Amm. 25. 10. 7), andererseits hören wir die bittersten Klagen über ihre Veruntreuungen und eine ganze lange Reihe von Gesetzen bemüht sich, ihrem Unwesen zu steuern.“ In Greek the act. is called *ὑπομνηματοφύλαξ*. The same office, but with other army-units, is indicated by the names *optio* and *chartularius*, (cf. Grosse *ibid.* p. 194).

sarcinalium principis iumentorum. Cf. Vales. ad h. l.: „Haec autem iumenta Principis sarcinalia ad Bastagam („Bastaga est onus transvehendarum rerum fiscalium atque publicarum seu privatarum principis,“ Böcking) referre soleo, ita ut *Actuarius sarcinalium iumentorum* nihil aliud sit quam *Actuarius Bastagae* seu *largitionalis* (sc. sub dispositione v. ill. comitis sacrarum largitionum; cf. ad 14. 7. 9, p. 20. 14), seu *privatae* (sc. sub dispos. v. ill. com. rerum privatarum; cf. ad 15. 5. 4, p. 47. 15—16) . . .“ For *bastaga* cf. N. D. Occ. 10 and 11

and N. D. Or. 12 and 13 (c. comm. Böcking). For *actuarius* cf. et. Cod. Theod. 8. 7. 21; and 8. 1.: de *numerariis, actuariis, scriniariis et exceptoribus*, Gothofr. *paratitlon* II and comm. eiusd. ad l. 3.

Dynamius. Cf. Jul. Ep. ad Ath. 273 D: Ἰστε δὴ ποῦθεν ἀκοῇ τὸν Ἀφρικανὸν καὶ τὸν Μαρῖνον. οὐκ οὐκ ὑμᾶς οὐδὲ ὁ Φῆλιξ ἔλαθεν οὐδὲ ὅσα ἐπράχθη περὶ τοὺς ἀνθρώπους. ἀλλ' ὥς τοῦτο αὐτῷ κατεμνήσθη τὸ πρᾶγμα, καὶ Δυναμῖος ἐξαίφνης, ἄλλος συνοφάντης, ἐκ Κελτῶν ἡγγεῖλεν ὅσον οὕτω τὸν Σιλουανὸν αὐτῷ πολέμιον ἀναφανείσθαι, δείσας παντάπασι καὶ φοβηθεὶς αὐτίκα ἐπ' ἐμὲ πέμπει κ.τ.λ.

(For *Marinus* and *Africanus* cf. 15. 3. 7 and 15. 3. 10; for *Felix* cf. Seeck, B. L. Z. G. p. 155. He was *denunciator* in the process against *Marinus* and *Africanus*). Also mentioned *Zos.* 2. 55. But, as *Vales*. already rightly observes, *Zosimus* is mistaken, when he throws *sy-cophancy* against *Caesar Gallus* into *Dynamius'* face. Cf. et. Seeck, R. E. 5. 1880.

5. 3. *commendaticias* . . *litteras*. Cf. Cic. ad fam. 5. 5. 1: *litteras* p. 47. 8. *commendaticias*; in *Verrem* 4. 66 (148): *tabellas commendaticias*; ad *Corinthios* Vulg. 2. 3. 1: *commendatitiis epistolis*; Aug. in *Macro.* 2. 4. 15: „accipe“ inquit „*commendaticias*, quia illic neminem nosti“; *Thes.* sub. v. Late-lat. is *commendatorius* (cf. *Sid. Apoll.* 9. 10. 2: *quem litteris istis non commendatoriis minus quam refutoriis iam placatus insinuo*).

5. 3. *ut quasi*. Cf. *Plautus Asin.* 838: *putem ego, quem videam aequē esse maestum ut quasi dies si dicta sit?* Cf. *Löffstedt Syntactica* II p. 225: „Mit dieser Verbindung (sc. *ut quasi*), die im Scholiastenlatein wieder auftaucht, läßt sich das bei *Rufin* begegnende *ut sicut* vergleichen, ferner *quasi velut* (*Apul. Rufin.*) und *quasi sicut* (*Mart. v. Bracara*) . . ebenso, wie es scheint, das viel besprochene *quasi ut iuris studiosum* im *Muratorischen* Fragment Z. 4. . . Hinzufügen läßt sich noch das von *Souter* nachgewiesene *ut quomodo*“ (with notes and lit.); and for a similar pleonasm *Salonius Vitae Patrum* p. 347 sq., who quotes: *Vitae Patr.* 6. 4. 36: *Aliquando enim quidam frater seductus est in huius-cemodi re et apparuit ei quasi quod frater quidam cum muliere peccaret*; *Bonnet, Greg. Turon.* 669, h. Fr. 5, 32 p. 224, 17: *asserentibus multis quasi quod . . cum alio misceretur*. Also under the influence of Gr. *ὡς ἂν* et in Amm.?

p. 47. 11. 5. 4. memorato . . duce. Cf. ad 14. 3. 4 (p. 8. 25) and 14. 6. 8 (p. 13. 23).

p. 47. 11. 5. 4. ex re publica. Cf. 19. 3. 2: ex re publica. According to Blomgren p. 152 never e re publica. So also 14. 10. 10: eamque (pacem) ex re fore; 27. 12. 18: quae ex re sua struxere Romani. Thus generally before res: ex (cf. 14. 11. 32: ex rerum gestarum amplitudine; 30. 5. 7: ex rebus minimis). This is of importance for textual criticism e. g. 26. 1. 5: Valentini-
anus . . electus est . . et quia nullo renitente hoc re publica videbatur (thús V; EBG, Cl. <e> re publica; Blomgren, in my opinion, better: ex). To this corresponds the contrary peculiarity, that is never found in Amm.: ex quibus, but according to Blomgren 20 times: e quibus. Hence in my opinion, correct version 23. 6. 66 (V: incolunt autem . . quibus . . aquilonibus obiecti sunt) Gelen. Blomgr.: e (Cl.: ex). Blomgren counted how often Amm. used e and ex before consonants (not taking into account ex before official titles, for they are official and fixed and with conjectures and uncertain places). In doing so he found 108 times e and 197 times ex. Cf. Hofm.-Leum. p. 528: „e ist zu allen Zeiten nur der Kunstsprache eigen (oft z. B. Tac.), in der Volkssprache herrscht lautstärkeres ex, so z. B. allein bei Pollio, in Petrons Freigelassenengesprächen, in den Tab. def.; bei anderen wie Tert. Firm. Greg. Tur. hält sich e nur in festen Verbindungen wie e contra, contrario . . .”

47. 13. 5. 4. inquietius. For the comp. cf. ad 14. 6. 12, p. 14. 20.

p. 47. 14. 5. 4. subornatore. Cf. Hist. Aug. Commod. 19: servorum subornatores; Paul. Sent. 5. 14. 15 (Huschke Jurisprud. Antejust. p. 431): Servi fiscales qui causam domino prodere ac nuntiare contendunt deferre non videntur. Subornati sane reum prodere coguntur, ne qui, quod per se non potest, per alium deferat. Perinde autem subornatores ac delatores puniuntur. Meaning: instigator. Rare word, later Latinism.

p. 47. 15. 5. 4. Lampadio praefecto praetorio. For praef. praetorio cf. ad 14. 7. 9, p. 20. 14—15. Lampadius. Praefectus praetorio 355. In 364 praefecti urbi are: L. Turcius Rufius Apronianus Asterius (still in office Feb. 26) and then L. Aurelius Avianius Symmachus Phosphorius (already in office May 24). At any rate the latter is in office till March 9. 365. He is succeeded as praef. urbi by: C. Caeionius Rufius Volusianus Lampadius, at any rate from April 4 till Sept. 17. 365. (for praef. urbi cf. ad 14. 6. 1, p. 12. 8). He could get on particularly badly with the lawless

town people, also owing to his own fault. He was very vain. During his administration many riots took place. Cf. 27. 3. 5—11. There his characteristic: Advenit post hunc urbis moderator Lampadius, ex praefecto praetorio, homo indignanter admodum sustinens, si (etiam cum spueret) non laudaretur, ut id quoque praeter alios faciens, sed non numquam severus et frugi . . . vanitatis autem eius exemplum, ne latius evagemur, hoc unum sufficere poni, leve quidem, sed cavendum iudiciis (= high authorities). Per omnia enim civitatis membra quae diversorum principum exornarunt impensae, nomen proprium inscribebat, non ut veterum instaurator, sed conditor. (civitatis membra = urbis regiones). His son († 371) is mentioned 28. 1. 26: Circa hos dies Lollianus, primae lanuginis adulescens, Lampadi filius ex praefecto . . convictus codicem noxiarum artium (= magicum libellum) nondum per aetatem firmati consilio, descripsisse, exulque mittendus (ut sperabatur), patris impulsu, provocavit ad principem et iussus ad eius comitatum <ad> duci cecidit funesti carnificis manu. Lamp. had married Caecina Lolliana (cf. Stemma Albinorum et Volusianorum in Q. Aur. Symm. Opera ed. Seeck p. CLXXV, M. G. H. A. A. VI, 1). He is mentioned C. I. L. VI 3866 and C. I. L. VI 1170. Cf. Seeck ibid p. CLXXVIII; Hermes 18 p. 294. Cf. et. Cod. Theod. 11. 34. 2; Zos. 2. 55: ἐκοινῶναι δὲ αὐτοῖς τῆς πράξεως καὶ Λαμπάδιος ὁ τῆς αὐλῆς ὑπαρχος, ἀνὴρ δύνασθαι παρὰ τῷ βασιλεῖ πάντων ἀεὶ πλέον ἐπιθυμῶν.

Another son of his is Publilius Caeionius Caecina Albinus, consularis Numidia ± A. D. 365, mentioned in Macrobi. Saturn. 1. 2. 15; Hieron. ep. 107. 1 (ad Laetam de institutione filiae): tu es nata de impari matrimonio: de te et Toxotio meo Paula generata est. quis hoc crederet, ut Albini pontificis neptis de repromissione matris nasceretur, ut praesente et gaudente avo parvulae adhuc lingua balbutiens alleluia resonaret et virginem Christi in suo gremio nutriret et senex?; C. I. L. VIII 2388; 2242; 4767; 6975; 7975; Seeck ibid. p. CLXXVIII sq.; Seeck R. E. XII 577.

5. 4. Eusebio ex comite rei privatae, cui cognomentum erat inditum Mattyocopi. Eusebius comes rerum privatarum under Constans (337—350) in the year 342 (Cod. Theod. 10. 10. 6). In the year 355 he was at court at Milan as an influential private person and was collaborator in the intrigues aimed at Silvanus' downfall. When these machinations were discovered he got involved in a lawsuit, but was acquitted in spite of his confession. (Amm. 15. 5. 13—14). Cf. Seeck, B. L. Z. G. p. 139.

ex comite rei privatae. The manager of the aerarium privatum

(cf. ad 14. 7. 9, p. 20. 14) was called at first *vir perfectissimus rationalis* or *magister summae rei privatae*, later *v. illustris comes rerum privatarum*. There is a department (*officium*) at Rome under his command, divided into various bureaux (*scrinia*): *beneficiorum* (privileges), *securitatum* (*apochas* [= receipts] *solutarum praestationum*, quae rei privatae principis debitae fuerant, tractabat hoc *scrinium* eiusque *primicerius*. Böcking); *canonum* (Böcking: *canon est sollennis praestatio seu illatio aut pensatio vel ordinarium tributum*; a *singulis provinciis quotannis in arcas sacrarum largitionum sive rerum privatarum inferendus fuit*. In hoc itaque *scrinio* . . . *rationum earum praestationum tractantur*); *largitionum privatarum*; *officiales palatini privatiarii*. All under a *primicerius totius officii* and in the various provinces „inspectores“ (*rationales rerum privatarum*), „assistant-inspectores“ (*procuratores* or *praepositi rei privatae*); and further „inspectores for special missions“ (*praepositi bastagae rei privatae*; cf. ad 15. 5. 3, p. 47. 7; *praep. gregum et stabulorum*; *sc. equorum*; cf. Böcking N. D. I p. 260; *Cod. Theod.* 6. 1. and 15. 10. c. comm. Gothofr.; *praepositi saltuum*; cf. *Cod. Theod.* 10. 3. 2 c. comm. Gothofr.). The *aer. priv. (privatae larg.)* receives:

1^o. The revenues of the *fundi rei privatae*, cultivated by tenants, who are called *emphyteutae* or *perpetuarii* (both a kind of long leaseholders) or by *coloni* (farmers tied to the ground) and those of the *saltus*, managed by the *procuratores saltuum*.

2^o. The revenues of taxation-objects, specially allotted to the imperial house and the crown-demesne: *praedia rei dominicae*, *domus Augusta*, *palatia et domus dominicae*, *greges dominicae* under the *praepositi gregum et stabulorum*.

3^o. The revenues of the hereditary imperial property: *fundi patrimoniales*. They were separated from the *sacrae larg.* by Anastasius (491—518) and placed under a *v. ill. comes sacri patrimonii*.

4^o. The *bona proscriptorum seu damnatorum* and all the *bona caduca* or *vacantia* (roughly: all that reverts to the exchequer, because there is no legal possessor, the law of succession is not applicable, etc.).

The collection of this money occurs at fixed times by the *officiales* of the *comes rerum privatarum* or of those of the governors of the provinces. Its transport occurs by the personnel of the *bastaga privata* under the direction of the *praepositi bastagae rei privatae*. The emperor avails himself of the revenues of the *res privata* for expenditure for state services and personal rewards, presents etc. (*privatae largitiones* or *remuneraciones*). Cf. Willems, *Dr. publ. rom.*⁶ p. 602 sq. with lit.; Böcking N. D. II p. 374 sq. with lit.; *Cod. Theod.* 6. 9. and 11. 1 c. comm. Gothofr.

Mattyocopi. Word of unknown meaning. Some take it as: *epicure*, others as: *miser, skinflint*. At any rate the word is of Greek origin. Cf. Vales. in edit. Wagner II p. 128; Petavius ad Themist. orat. 4 (ed. A. D. 1684 p. 523 sq., most excellent and elaborate); Aristoph. *Nubes* 451 c. annot. v. Leeuwen.

cognomentum. Cf. Fesser p. 50 sq.: „Von Sen. suas. 2. 17 als archaisch charakterisiert. Es steht bei Plaut., wird von Sall. u. Tac. gegenüber klassischem *cognomen* bevorzugt, steht häufig von Apuleius ab. Amm. gebraucht es ausschließlich (here Fesser is mistaken; cf. 29. 1. 39: *Protea cognomine*). Dies mag zusammenhängen einmal mit dem in Spätlatein oft erkennbaren Streben, die kürzere Form durch die längere zu ersetzen, andererseits eignet sich die volle Form gut für die Klausel bei Amm.“ Cf. 14. 8. 5; 14. 11. 32; 15. 3. 4; 15. 7. 4; 15. 12. 5; 17. 13. 33 etc.; Thes. 3. p. 1494.

5. 4. *Aedesio ex magistro memoriae.*

p. 47. 16—17.

magister memoriae. Under the supervision of the *v. ill. etc. magister officiorum* (very hard to define: $\pm$ head and judge of the court personnel, home- and foreign minister, frontier defence minister, commander of the palace order service and after Rufinus' downfall (396) minister of armaments and state postal service) was, among other things, the imperial chancery consisting of 4 *scrinia* (bureaux), viz. the *scrinium memoriae* under the *magister memoriae*, the *scrinium epistolarum* under the *magister epistolarum et consultationum*, the *scrinium libellorum* under the *magister libellorum et sacrarum cognitionum* and the *scrinium dispositionum* under the *magister provisionum ac dispositionum* (cf. N. D. Or. 17; Occid. 16; c. annot. Böcking; Willems *Dr. publ. rom.*⁶ p. 558 sq. with lit.). In the N. D. Or. 17 we read: *Magister Memoriae. Adnotationes omnes dictat, et emittit, et Precibus respondet*. This is interpreted by Boak-Dunlap op. cit. p. 84 as follows: „... he saw to the putting into proper form the verbal comments of the Emperor, which he despatched without the imperial signature. He also answered requests, preces, from individuals, and himself prepared these answers for the imperial approval, until Justinian (Novellae Just. 114, 1) put an end to his independent action in judicial questions and placed him in this respect under the Quaestor's supervision. In view of the lack of an exact modern equipment for the title *magister memoriae*, on the basis of function and relation to the other Secretaries, we may venture to translate it as *First Secretary*.“ (for quaestor cf. ad 14. 7. 12. p. 21). Clearer and more technical is the explanation in the *Status Aulicus* etc. edit. Wagner III

p. 463: „Magister memoriae non ideo sic dictus, quod eos, qui praeclare se gessissent, imperatoribus in memoriam revocaret, sed quod acta et decreta memoriae ac futurae observantiae causa asservaret (Canzley-director, geheimer Archivarius). Praeterea, ut est in Not. Dign. Or. 17:

Adnotationes omnes, i. e. breves continentes quae Principis nomine statuebantur aut confirmabantur, dictabat et mittebat Principis vel Quaestoris vel sua manu subscriptos, et precibus responde(ba)t eorum qui vel indulgentiam patrati criminis, vel probatorias a principe flagitabant. (The appointment and promotion of every officialis = official, required an imperial resolution approving of this: probatoria). For the part the scrinium mem. plays in appointment etc. cf. Cod. Just. 1. 30. 1: Imp. Theodosius A. Sallustio quaestori. Totius minoris laterculi curam scias ad tuae sublimitatis sollicitudinem pertinere, ita ut tuo arbitratu ex scrinio memoriae totius minoris laterculi dignitates, hoc est praepositurae omnes, tribunatus et praefecturae castrorum iuxta consuetudinem priscam clementiae meae auctoritate deinceps mittantur (A. D. 442) [= Cod. Theod. 1, 8, 2, who reads: emittantur and praefecturae, without castrorum; cf. comm. Gothfr. ad h. l.]. To this emittantur Böcking, in my opinion far-fetchedly, refers emittentur from N. D. Or. 17: „Emittere h. l. aperte de emittendis annotationibus accipi non debet; sed locum de emittendis minoris laterculi dignitatibus intelligendum esse Th. C. de off. Quaestoris I 8 docet, ex quo L. 2 subiungimus.” Further Böcking explains dictat as iura dictat and quotes Gothfr. ad Cod. Theod. 4. 17. 2: „Iura dictare non est iudicium exercere, verum Principis iure leges et constitutiones promulgare vel Rescripto edere.” (For laterculum minus and maius cf. 14. 7. 12, p. 21. 1. and 14. 5. 6, p. 11. 5).

Aedesio. Cf. Seeck R. E. I p. 941: „Sextilius Agesilaus Aedesius, Advocat, mag. libellorum, epistularum, memoriae (vor 355), vicarius Hispaniarum, Mitglied zahlreicher Priestertümer. (C. I. L. VI 510). Lebte noch 376.”

. 47. 17—18. 5. 4. quos ad consulatum ut amicos iunctissimos idem curarat rogari praefectus. Cf. Vales. annot. ad h. l. (= edit. Wagner II p. 126): „... moris fuisse ut consules designati amicos suos ad officium consulare quod erat Kalendis Ian. evocarent: quod dicebant rogare ad consulatum. (Hist. Aug. Gall. 16: matronas ad consulatum suum rogavit iisdemque manum sibi osculantibus quaternos aureos sui nominis dedit; where some editors put a different word instead of consulatum; Symm. 6. 10: [A. D. 398 Symmachus Nicomachis filiis. Consuls are Imp. Flavius

Honorius Aug. and Flavius Eutychianus] Rogatos esse nos audio ad officium consulare. Mihi quiescere et domi manere sententia est post anni superioris laborem; ipse quid statuas, altius cogita et sapienter expende. Praesumo autem eos, qui dicuntur acciti, auctoritate praecelsi viri edecumatos esse et his unanimitem tuam consulto esse sociatam, ut ad agendas gratias sub occasione officii consularis excurras. Verendum autem est, ne si excusandum putaveris, proximi rescripti impetratione videaris offensus; etc.; ibid. 37 [A. D. 398]: Cum mihi sacrae litterae redderentur, quibus ad officium praecelsi viri consulis evocamur, vidi alias aequae ad tuum nomen emissas, quibus te honorificentia imperialis accivit. Consulis quoque scripta idem agens in rebus [cf. ad ad 14. 11. 19, p. 34. 18] exhibuit. Suadeo igitur, ut mature iter instruas. . . Nolo igitur ambigas, cum scias, auctoritate praecelsi viri electas amicorum esse personas tibi haec prima post dubia fortunae divini principis adloquia deferri etc. Both letters may serve as commentary). Atque interdum Consules designati non suis dumtaxat litteris amicos evocabant, sed etiam Principis ipsius litteris per agentem in rebus eos ad Consulatum suum rogari curabant: quem honorem sibi primo delatum esse scribit Libanius in oratione de vita sua (= edit. Foerster I, 1 p. 180): καὶ μέλλων τελεῖν εἰς τὸν τῶν ὑπάτων χορὸν διπλοῖς με ἐκάλει γράμμασι, τοῖς μὲν αὐτοῦ, τὸ τῶν ἄλλων ποιῶν, τοῖς δὲ τοῦ βασιλέως, ὃ οὐκ ἔστιν ἐγγεῖναι id est: Et cum Consulatum esset initurus, duplicibus me litteris evocavit; cum suis, in quo consuetudinem aliorum secutus est: tum Augusti, quod quidem nemini antea contigerat. . . Sub ea autem tempora id frequentissime usurpatum esse docent Symm. Epist. libr. 5 et 6. Eiusdem generis est Epist. 20 Juliani Augusti ad Eustochium (= Bidez 41) in qua haec leguntur inter cetera: Ὡς τοίνυν μεθέξων τῆς ὑπατείας αὐτός (Bidez: Viens donc prendre part en personne aux fêtes consulaires) id est: Venito igitur, ut sportulam Consularem ipse accipias. Ait Marcellinus Lamp. praef. praet. curasse, ut Eusebius et Aidesius sibi amicissimi ad officium consulare. . . evocarentur (either of Fl. Arbitio, or of Q. Flavius Maecius Egnatius Lollianus, who were consuls in this year, 355).” Cf. et. (ὑπατεία) Socrates Hist. eccl. 2. 29. 4; 6. 2. 11; Ducange s.v. (ὑπατεύω); Daremb.-Saglio I, 1472, n. 418.

5. 4. peniculo. Meaning: brush, sponge. Cf. 19. 8. 8: aquasque hauriens p. 47. 18. ad peniculi modum facile sitim qua urgebamur exstinxit. Plaut. Terent. Rare. Similar in meaning to and often confused with penicillus (-um). Cf. Dig. 33. 7 (De instructo vel instrumento legato; instructum = in-

strumentum = tools, etc.) 17: Item pictoris instrumento legato cerae colores similiaque horum legato cedunt, item peniculi et cauteria et conchae; Paul. sent. 3. 6. 63: Instrumento pictoris legato, colores, penicilli, cauteria et temperandorum colorum vasa debebuntur.

p. 47. 20. 5. 4. verbis obliquis. = obscurioribus, ambiguus (Wagner). Cf. 29. 1. 35: litterae suae per ambagis obliquas ad Hilarium scriptae. For this meaning, not in class. prose, cf. et. Suet. Domit. 2. 3: defunctumque nullo, praeterquam consecrationis, honore dignatus, saepe etiam carpsit obliquis orationibus et edictis; Tac. Ann. 14. 11: temporum quoque Claudianorum obliqua insectatione cuncta eius dominationis flagitia in matrem transtulit.

p. 47. 21—22. 5. 4. Tuscus Albinus. Probably T. Alb. belongs to the powerful family of the Caecionii. Cf. Seeck, R. E. III 1858 sq.

p. 47. 22. 5. 4. altiora coeptantem. Cf. ad 14. 10. 5 (p. 28. 20).

p. 47. 22—
p. 48. 1. 5. 4. et prope diem loci principalis aditum . . . V sine lac.
For versions of the mscr. and conjectures cf. edit. Clark p. 48. Vales.'s conjecture: adiuvarent (haplogy) seems the best to me.

p. 48. 1. 5. 5. fascem = bunch, parcel. Cf. 21. 16. 11: epistularum fascem. Justin. 12. 5. 7: fasces epistularum. The word then develops into the meaning of assessment-list; cf. Cod. Theod. 7. 13. 6: publicis fascibus, c. annot. Gothofr.: „Fasces publici sunt libri publici censuales et civitatum provinciarumque encauteria (assessment-lists), quibus capitacionis modus insertus erat.”

p. 48. 1—5. 5. 5. hunc fascem . . . custodem . . . This place is very corrupt and many conjectures are uncertain. Yet it is possible to reconstruct the correct contents with great probability. I shall do so in a more or less „free” translation: (text Clark): This sheaf of letters, composed according to the arbitrariness of forgery, with the purpose to ruin the life of an innocent man, the praefectus (meant is Lampadius pr. praet.), after receiving it from Dynamius, privately offered to the emperor, who by nature was accustomed to investigate these and similar affairs, [after having been admitted alone to the private rooms, hoping next that herewith he might prove in due course, that he had been an always watchful guard of his safety;] and the patched-up material having been cunningly read aloud in the consistorium, the order was given (viz.

by the emperor) to take the tribuni into custody and to seize individuals, whose names were mentioned in the letters, from the provinces. [] is most spoilt. Harper-Clark read: soli (sc. imperatori), I: solus. In my opinion the author wants to say, that Lampadius first asked for an interview alone, then explains in tendentious words the contents of the letters, which are next, more officially, read in the presence of others. The reaction to this Lamp. could expect beforehand and so he could hope that both the consistoriani (among whom there were often flatterers) and the emperor would above all consider him as the saviour of the country, for of this the emperor is the personification in his own eyes and in those of others.

figmentum. Cf. 14. 6. 8: quasi plus praemii de figmentis aereis sensu carentibus adepturi; 17. 4. 6: inter delubra ingentia, diversasque moles, figmenta Aegyptiorum numinum exprimentes; 19. 1. 3: aureum capitis arietini figmentum, interstinctum lapillis, pro diademate gestans (sc. Sapor, 359 p. Chr. n.); 19. 1. 10: circaque eum (sc. filium mortuum regis Grumbatis) lectuli decem sternuntur, figmenta vehentes hominum mortuorum. Gell. Apul. Hist. Aug. Lact. Paneg. Cf. et. Cod. Just. 4. 38. 7: Si ancillam ex emptione sibi quaesitam mater tua donatione a secundo marito postea se simulavit accepisse, tituli falsi figmentum dominium ei duplicare vel auferre non potuit.

susceptum. Suscipere = accipere is late-Lat. Cf. Krebs Antib. II p. 633; Arch. L. L. G. 13 p. 174.

tribuni. Most probably those tribuni are meant, who belong to the „amicos (sc. Silvani) agentes intra palatium” (5. 4., p. 47. 21), among whom also Malarichus and Mallobaudes.

5. 5. vitam pulsaturum insontis. Cf. Vales. annot. ad h. 1. (Edit. p. 48. 2. Wagner II p. 127 sq.): „Multis de causis displicet haec lectio. Primo enim parum Latina huiusmodi locutio est; deinde non solius Silvani vita calumniis appetebatur, sed eorum quoque omnium ad quos scriptae erant epistolae. Quare potior videtur Regii codicis scriptura ac Rom. Editionis. Sic Marcellinus noster infra c. 6. § 2. de Proculo Silvani domestico: Memor enim somnii quo vetitus erat per quietem (ut ipse firmavit) pulsare quendam insontem. Et in lib. 29 c. 2. § 8 de Heliodoro: Et quoniam longum est <narrare omnia?> quae cruciarius ille conflavit, hoc unum edisseram, quam praecipiti confidentia, patriciatus columina ipsa pulsavit” The objections against the „Latinitas” can be easily rebutted in this late author. That we may also say: pulsare vitam etc., so not relating to persons, appears e. g. from the place quoted by Wagner (18. 4. 4): qui ut coluber . . . mittebat cubicularios . . . ut . . . existimatio-

nem viri fortis invidia gravi pulsarent. I cannot share the objection against singular insontis: Silvanus is the principal person, of whom Amm. thinks in the first place. So that in my opinion Vales.' conjecture: multos pulsaturum insontis should be rejected. Cf. et. Cod. Just. 9. 18. 7: . . . tamen quoniam qui in comitatu nostro sunt ipsam pulsant propemodum maiestatem (= to assail, attack); 3. 26. 11: Hac lege sancimus, ut, sive agat domorum nostrarum colonus aut inquilinus aut servus seu pulsetur ab aliquo super criminali vel civili negotio etc. (= to take legal proceedings against a person = to accuse); Kalb, Roms Juristen p. 128; Krebs Antib. II p. 426.

p. 48. 5. 5. 5. consistorio. Cf. ad 14. 7. 11, p. 20. 22.

p. 48. 5. 5. 5. astu callido. Cf. 16. 10. 16: astu gentili; 17. 13. 27: astu et ludificandi varietate (= 31. 12. 9); 31. 10. 21: adroganti astu; 24. 1. 13: astus gentis et ludificandi varietas; Fesser p. 50: „Das Altlat. (Plaut. Ter. Pac. Acc.) kennt nur astu in fast adverbiieller Funktion. Das Wort fehlt bei Cic. und Caes., lebt wieder auf bei Dichtern und Prosaikern der silbernen Latinität. Es erscheint nun auch in anderen Kasus als im Abl. und auch in Verbindung mit Adjektiven." Cf. et. Hofmann-Leum. p. 431; Thes. II 983; Krebs Antib. I p. 212.

p. 48. 5. 5. 5. astu callido. Cf. Gellius N. Att. 12. 12. 1: callide et cum astu and Hertz Aul. Gell., especially p. 292, observation 31. Hagendahl abund. p. 205 holds it: „parum probabiliter Hertz putat Amm. hunc locum imitatum esse. Ita enim alii quoque loquuntur, velut Solin. 27, 24 feminis ingenua est callidior astutia (similiter 36. 26 astu fraudulento; 32. 30 astu doloso); Aug. civ. 21. 6 astutissima calliditate" and earlier: „Sed in his ac similibus abundantia posterioribus usitata est, velut substantiva calliditas et astus (sive astutia) a Sil. Arnob. Eugraph. Mar. Victor. copulantur. Gen. identitatis exhibent Cypr. unit. eccl. 23 aliqua fallentis astutiae calliditate decepti, qui locus tautologia notabili laborat, Ennod. op. 3 (p. 348, 22 H.) solitae calliditatis astutia; Lex Visig. 5, 4, 17 notandae calliditatis astutiam."

p. 48. 6. 5. 5. consarcinata materia. For cons. cf. ad 14. 5. 12, p. 50. 2. Materia in the well-known meaning, as it is often found in e.g. Cicero and Seneca. The same thing is meant here by it as: fascem ad arbitrium figmenti compositum.

5. 6. Malarichus, Gentilium rector. Further mentioned again in p. 48. 8. this chapter §§ 9, 10, 11. The Franconian Silvanus was his country fellowman (popularis). Iovianus, at the beginning of his reign, wants to appoint him magister armorum (cf. ad 15. 5. 36): 25. 8. 11: prudentique consilio Malarichum, ex familiaribus negotiis agentem etiam tum in Italia, missis insignibus, Iovino iussit succedere, armorum magistro per Gallias gemina utilitate praespeculata, ut et dux meriti celsioris ideoque suspectus abiret e medio et homo inferioris spei ad sublimiora provectus, auctoris sui nutantem adhuc statum studio fundaret ingenti (A. D. 363). In December 363, when he is staying at Tyana in Cappadocia, Iovianus is informed, that: Malarichus recusavit suscipere magisterium (25. 10. 6). Schönfeld equalizes this name with Malorix (Tac. Ann. 13. 54) and Malaricus (*Malarix) p. 159.

Gentiles. The word gentiles has various meanings, which should be well kept apart. 1^o. foreigners (= ± barbari), who do not belong to the empire. Cf. Amm. 25. 8. 13: hos tabellarios (couriers) fama praegrediens, index tristiorum casuum velocissima, per provincias volitabat et gentes (= ± home- and foreign countries). This meaning very often occurs, but should not be confused with: 2^o. barbarians, having no civil rights, living within or at the frontiers of the Empire. Cf. Willems⁶ p. 626: „Mais on rencontre, pendant cette période, une nouvelle classe d'habitants libres, non-citoyens, les barbari ou gentiles. Les empereurs chrétiens accueillirent et établirent dans l'Empire des peuplades barbares, de deux manières: 1^o. En les distribuant après leur soumission (deditio), comme coloni parmi les possesseurs. 2^o. En leur assignant, à la suite d'une alliance (foederati, ξύμμαχοι) des terres à l'intérieur de l'Empire ou aux frontières (barbari, gentiles, laeti). Ces peuplades, en retour, sont obligées au service militaire; elles fournissent des contingents qui forment des corps spéciaux sous leurs propres praefecti." (with lit.) Their marrying the provinciales was strictly forbidden. Cf. Cod. Theod. 3. 14: nulli provincialium, cuiuscumque ordinis aut loci fuerit, cum barbara sit uxor coniugium: nec ulli Gentilium provincialis foemina copuletur. Quod si quae inter provinciales atque Gentiles affinitates ex huiusmodi nuptiis exstiterint . . . capitaliter expietur (A. D. 370), c. comm. Gothofr. 3^o. = heathen. Very general meaning (= paganus; ethnicus especially Eccl.). Cf. Cod. Theod. 16. 5. 46: ne Donatistae, vel ceterorum vanitas haereticorum, aliorumque error, quibus Catholicae communionis cultus non potest persuaderi, Iudaei adque Gentiles (quas vulgo Paganos appellant) arbitrentur etc.; ibid. 16. 5. 63: superstitionesque gentilium. Thus gentilicius is used for

heathenish. (cf. Cod. Theod. 16. 10. 12 and 16. 10. 20: *professio, superstitio gentilicia*). 4^o. *scholae gentilium*; cf. ad 14. 7. 9, p. 20. 13—14. So the 2nd and 4th categories, which are both often mentioned in the Not. Dignit. should be well distinguished.

Amm. here avoids again the techn. expression. The commanders of 2^o are called: *praefecti*, e.g. *praefectus Sarmatarum Gentilium Bononiae in Aemilia* (N. D. Occid. Böcking 40, p. 121), of 4^o (the *scholae*): *tribuni*. In connection with his friendship with Mallobaudes, who belongs to the *scholae* and his influential position, by *rector* is meant here: *tribunus* (for *rector* cf. ad 14. 10. 8, p. 29. 14).

Observation. For *laeti* cf. ad 16. 11. 4.

p. 48. 8—9. 5. 6. *strepebat immaniter*. Cf. Gellius 1. 26. 8: *immaniter clamare*; 9. 11: *immaniter arrogantem*. Very rare, arch.-poetical. Also in August. More usual, but equally arch.-poetical. *immane*, of which the comp. Amm. 18. 7. 5: *immanius efferascunt*.

p. 48. 10—11. 5. 6. *relictis obsidum loco necessitudinibus suis* = *coniuge et liberis*. Cf. 17. 1. 6; 21. 16. 20; 24. 5. 3; 31. 5. 5. This meaning (relations) very much occurring, late-Latin. The pl. also occurs in class. prose, but not in this meaning. (Cf. Cic. Sest. 39: *omnes amicitiae necessitudines*). Cf. Krebs *Antib.* 2 p. 137.

p. 48. 11. 5. 6. *Mallobaude armaturarum tribuno*. For *tribunus* cf. ad 14. 5. 8, p. 11. 22; for *armaturae* ad 14. 6. 17, p. 16. 4 and Grosse *Mil.* p. 95 sq.: „Die *armaturae* waren . . wohl besonders gut einexerzierte Truppen. Sie zeichneten sich durch glänzende Rüstung aus und bezogen höheren Sold als die übrigen Truppen. Dementsprechend war auch die Stellung ihrer Offiziere ungemein hoch. Ihre Unteroffiziere, die *ducenarii*, erhielten senatorischen Rang, ihre *Tribunen*, die Führer der einzelnen Abteilungen, wurden oft zu *comites primi ordinis* ernannt (cf. for com. ad 14. 5. 1, p. 10. 11 and ad 14. 11. 19, p. 34. 17). In späterer Zeit war Kommandeur der ganzen Truppe ein *δομέστικος τῶν σχολῶν* der unter den höchsten Militär- und Zivilbehörden der ganzen Monarchie den fünften Rang einnahm und dem ein ebenfalls sehr hoch gestellter *τοποτηρητής* zur Seite stand. Häufig wurden sie mit dem Kommando anderer Truppenteile betraut, so daß sie, wie die Protektoren, eine Pflanzschule für das Offizierkorps bildeten (for *protectores* cf. ad 14. 11. 19, p. 34. 17).“ The *armaturae* belonged to the *scholae* (Cf. ad 14. 7. 9, p. 20. 13—14).

Mallobaudes. M. cooperates in the investigation against Gallus at Pola as *armaturarum tribunus* (A. D. 354; 14. 11. 21) with Eusebius *cubiculi praepositus* and Pentadius *notarius*. He should not be confused with Mallobaudes, Comes domesticorum et rex Francorum, mentioned: 30. 3. 7 and 31. 10. 6, 7. The spelling Mellobaudes, which is frequently found in the mss., has been rejected, as incorrect, by Schönfeld (p. 159 sq.). M. was a Franconian.

5. 6. *vel contra se paria promittente, Mallobaudem orabat* p. 48. 13—15. *properare permitti, haec quae ipse pollicitus est impleturum*. A splendid specimen of late-lat. construction in Amm. style = *vel contra paria promittens* (sc. Malarichus) *orabat* (sc. imperatorem) *ut Mallobaudi permetteret* (ad Silvanum) *ut properaret*, qui haec quae ipse pollicitus esset (esset orat. obliqua!) *impleturus esset*.

5. 7. *testabatur enim id se procul dubio scire, quod siqui* p. 48. 15—17. *mitteretur externus, suopte ingenio Silvanus etiam nulla re perterrente timidior, composita forte turbabit. V turbavit Val. turbabit G. turbaret. Val.'s version is the correct one. We should expect turbaret. For quod cf. ad 14. 10. 14 (p. 30. 15—16) and for the variatio modorum and the use of the fut. cf. ad 14. 11. 11 (p. 33. 4—6).*

5. 7. *externus*. Here is meant: non-countryman, no popularis Silvani. p. 48. 16. *Externus* as a substantive = foreigner, stranger, though not in purely classical prose, very common. Cf. Dig. 28. 1. 13: *Marcianus libro quarto institutionum . . . Item qui apud externos legatione funguntur, possunt facere testamentum*.

5. 7. *suopte ingenio*. Cf. ad 14. 11. 3, p. 31. 22—23. p. 48. 16.

5. 7. *composita forte turbabit*: „*seditionem excitabit, de qua antea* p. 48. 17. *ne cogitaverit quidem*.“ (Wagner).

5. 8. *utilia*. Cf. ad 14. 1. 8 (p. 3. 7). p. 48. 18.

5. 8. *incassum*. Cf. ad 14. 2. 9, p. 6. 5. p. 48. 19.

5. 8. *Arbetione*. Cf. ad 14. 11. 2, p. 31. 12. p. 48. 19.

5. 8. *Apodemius*. Cf. ad 14. 11. 19, p. 34. 18. p. 48. 19.

5. 8. *qui incidentis . . . cum venisset in Gallias*. The lacuna is supplied by Valesius as follows: *incidentia <parvi ducens>*, a conjecture, which is otherwise entirely uncertain.

p. 49. 2-3. 5. *S. nec viso Silvano nec oblatis scriptis ut veniret admonito, . . . remansit.* V: *admonit* (sine lac.); AG, Clark: *admonito*; Admonuit EB. The last version seems the best to me. *Viso Silvano* and *oblatis scriptis* are contrasted, the negative of *nec . . . nec* belongs properly speaking to *admonuit*, as it is often found, also in class. lat. A lacuna before *remansit* seems probable to me. There need not be any objection against asyndeton in itself.

remansit: remained on the spot, where he had arrived; Tross-Büchle: „hielt sich . . . zurück.”

Obs. *Nec* has gradually ousted *neque*, unless a somewhat more tenacious life was allotted to the latter in the combinations *neque-neque*, *neque enim*, etc. This does not only hold good for the popular language, but also for prose and poetry. Cf. Löfstedt, *Syntactica* I p. 259 sq. and Kalb (quoted by L.), *Arch. L. L. G.* I 88 (on Gaius): „Wenigstens bestätigen 95 von 100 Beispielen die Regel, daß in Doppelgliedern ausschließlich *neque . . . neque* gebraucht ist, dagegen *nec* ohne *Responsion* steht. Daß für den ersten Fall *neque . . . neque* sich mehr empfiehlt, liegt auf der Hand, weil in der volleren Form, die ausserdem an die Gliederung *que . . . que* erinnert, der Parallelismus der Satztheile am deutlichsten hervortritt.”

p. 49. 3. 5. 8. *rationali.* Cf. ad 14. 7. 9, p. 20. 14; 15. 5. 4, p. 47. 15-16; annot. Vales. ad h. l. (= edit. Wagner II p. 128 sq.) Whether this *rationalis* is subject to the *comes sacr. larg.* or the *comes rerum privatarum*, cannot be seen from the context. It is their task to allot to the *exchequer* the *bona caduca et vacantia* (so also the forfeited goods of condemned criminals).

p. 49. 4. 5. 8. *iamque necandi magistri.* As often in *Amm.* the *gerundivum* is here entirely equal to a part. fut. pass. Cf. Hofmann-Leumann p. 447, 557, 597; Odelstierna, *de vi futurali gerundii et gerundivi lat. observ.*, Upsala 1926; *Amm.* 22. 15. 3 (in abl. abs.): *Pauca . . . super . . . Nilo . . . praestringi conveniet, mox ostendendis aliis quae sunt in his regionibus admiranda*; 25. 4. 25 (in abl. abs.): *at in Galliis barbarico tumore gliscente, diffusis per nostra Germanis, iamque Alpius ad vastandam Italiam perumpendis, nihil . . . praeter lacrimas supererat . . .*; 16. 7. 4: *res monuit . . . pauca subserere forsitan non credenda*; 26. 9. 5: *orabat ut se . . . magis sequerentur . . . quam . . . nebuloni destituendo iam et casuro.*

p. 49. 5. 5. 9. *dum praesentia Silvani speratur.* The *Nom. c. Inf. Pass.* in the *verba sentiendi et declarandi* expands enormously in late-Lat,

This construction is generally post-class. with *sperare* (cf. Hofm.-Leum. p. 589). The same holds good for the passive personal construction of this verb.; cf. Krebs *Antib.* II p. 596. *Sperare* also seems here to have more the meaning of: *expectare*. The whole sentence could be represented in class.-Lat. by: *dum expectant Silvanum or: dum sperant fore ut Silvanus (praesens) adesset.* For *praesentia* (= presence) cf. Krebs *Antib.* II p. 363.

5. 9. *quieta perturbat.* Cf. Sall. *Cat.* 21. 1: *quieta movere*; Tac. p. 49. 6. *Ann.* 1. 58: *quieta turbidis antehabeo.*

5. 9. *tribunum fabricae Cremonensis.* Cf. 14. 7. 18: *tribunos p. 49. 8-9. fabricarum*, sc. *Antiochiae*; 14. 9. 4: *fabricarum tribunos* (the same as in 14. 7. 18); 29. 3. 4: *praepositum fabricae*; 31. 6. 2: *imam plebem omnem cum fabricensibus*; Cod. Theod. 10. 22 (c. comm. Gothofr.); Cod. Just. 11. 10 (c. comm. Cuiacii); Not. Dign. Occ. 8. 1: (*fabrica*) *Cremonensis Scutaria*; N. D. Or. 10. 2; N. D. Böcking comm. II p. 309 sq.; Boak-Dunlap op. cit. p. 86 sq. (with lit.); cf. et. Cass. Var. 7. 18, 19.

Probably since Constantine the Great the arsenals are under the direction of the *magister officiorum*. The labourers etc. in these factories, the *fabricenses*, who form a hereditary compulsory guild, are even under his jurisdiction. From all kinds of laws etc. it appears, that an exact control on production, transport of arms, delivery etc. was considered necessary, which is not to be wondered at. „To assist him in the supervision of the arsenals and armorers the Master had in his officium officials called *subadiuvae fabricarum*. Of these there were three in the East (N. D. Or. 11. 34.), and in the West an indefinite number (N. D. Occ. 9. 43), in the early part of the fifth century. In the East, under Leo, these *subadiuvae* constituted a separate bureau, or *scrinium*, within the officium, to which there were annually admitted for one year's service four *Agentes* of the rank of princeps. This is evidently the same as the *scrinium fabricensium* which appears under Justinian.” (Boak-Dunlap p. 88). At the head of the various *fabricae* there were *praepositi* or *tribuni*, under the mag. off.; but the exact relation between the two offices is not known. (for *tribunus* cf. 14. 5. 8, p. 11. 22). According to Cod. Just. 1. 30. 1 their names are on the *laterculum minus*, which is supervised by the *Quaestor*.

5. 9. *parare prope<re> cuncta.* Cf. Sall. *Jug.* 23. 1: *cuncta parare*; p. 49. 10. 66. 1: *parare omnia . . . cuncta agitare*; 73. 1: *cuncta parat*. By the side

of it paratis omnibus (21. 15. 1; 24. 5. 8; 27. 6. 5; 29. 1. 14), and with Variatio: 15. 8. 18: paratisque universis; 16. 2. 2: omnibus comparatis; 17. 13. 28: cunctisque paratis. Cf. Sall. Jug. 94. 1: paratis compositisque omnibus; Liv. 1. 28. 2: paratis omnibus; Fesser p. 10 sq.

p. 49. 10—11. 5. 10. haerens et ambigens diu, quidnam id esset . . Cf. 28. 1. 52: haerens et ambigens quemnam potissimum executorem atrocis rei fidum inveniret <et?> efficacem; Hagend. abund. p. 184. This comb. only in Amm.

p. 49. 12. 5. 10. super negotio ullo interiore. For this meaning (= secret, unknown, deep, trustworthy) cf. Cic. Nat. Deor. 3. 16; ad Fam. 3. 10. 9; 7. 33. 2; Nepos Hann. 2; Cic. Div. 2. 60. (124); Liv. 42. 17; Tac. Hist. 1. 2.

p. 49. 13. 5. 10. baiulum. Cf. ad 14. 7. 17, p. 21. 24.

p. 49. 14. 5. 10. perplexe. Cf. ad 15. 1. 1, p. 38. 2.

p. 49. 15. 5. 10. subagrestem. Cf. Cic. Brutus 74: subagreste quiddam planeque subrusticum; for other adjectives composed with sub in Amm. cf. Liesenberg 1889, p. 18; Paucker, de latinitate B. Hieronymi, p. 77; Hofm.-Leum. p. 253 (in general).

p. 49. 16—17. 5. 11. squalens et maestus. Unusual combination. Only in Amm.? Cf. 14. 5. 9: in squalorem deiectos atque maestitiam (Tac. Hist. 1. 54. 2); 21. 3. 1: ad tristitiam versus est et maerorem; Hagend. abund. p. 180.

p. 49. 18. 5. 11. Francis. On the position of the barbarians in the empire in general cf. 21. 10. 8: Tunc et memoriam Constantini, ut novatoris turbatorisque priscarum legum et moris antiquitus recepti, vexavit (sc. Julianus), eum aperte incusans, quod barbaros omnium primus ad usque fasces auxerat et trabeas consulares, insulse nimirum et leviter, qui cum vitare deberet id quod infestius obiurgavit, brevi postea Mamertino in consulatu iunxit Nevittam (N. was Francus) etc.; Stein Spätr. Gesch. I p. 299 sq. The Franci, a group of Germanic tribes, occur in history in the middle of the 3rd century. Numerous wars were waged against them. Many of them served in the Roman armies, often in high ranks. Some lived in the borderdistricts as laeti (dediticii, who did forced agriculture on estates they did not possess, and who were compelled to do military service, i. e. frontier defence). They are often mentioned in Amm. e. g. 17. 8. 3; 17. 2. 4; 20. 10. 2 etc. Also often in the N. Dign., e. g.: N. D.

Or. 28: Ala prima Francorum contra-Apollonos (sub dispos. v. spect. ducis Thebaidos); ibid. 31: Praefectus legionis tertiae Gallicae Danaba (sub disp. v. spect. ducis Foenices); Salii, mentioned N. D. Or. 4 under the auxilia palatina; N. D. Occid. 40: Praefectus Laetorum Francorum Redonas Lugdunensis tertiae. The abode of the Franci was originally between Gelders Yssel and Lahn. It is not certain what tribes exactly belonged to this alliance. Probably they agree with that group of peoples formerly called Istaevones. Cf. Byvanck, the Netherlands in Roman times II, esp. p. 570 sq.; p. 606 sq.; A. Grenier, Manuel d'archéologie Gallo-romaine (passim); C. Jullian, Histoire de la Gaule (passim); L. Schmidt, Gesch. der deutschen Stämme (passim); N. D. Occ. Böcking p. 1098 sq.; ibid. Or. p. 332.

5. 11. erectius . . . loquebatur. Cf. 26. 6. 16: multitudine stipatus armorum, signisque sublati, erectius ire pergebat; 30. 7. 5: et Gallias petit, Alamannicis patentis excursibus, reviviscentibus erectius cognito principis Iuliani interitu; Gellius 7. 3. 55: commodius autem erectiusque de his meis verbis . . existimabit iudiciumque faciet; probably also erectius should be read 28. 1. 22 (Clark: tectius imperatoris praesidium appellavit; cf. app. crit. edit. Cl.). The adv. is very rare and seems to occur in the comp. only. Meaning: courageously, frankly.

5. 11. tumultua<ndo> <pate> factis insidiis, rese <rata>que iam fallacia. Cf. app. crit. edit. Cl. The above version is based on Valesius' and Kiessling's conjectures. Why Cl. writes erectius iam loquebatur etc. is not clear to me. Either we read, in my opinion, erectius iam loquebatur tumultuando (= bawling, making a noise; in this meaning of orators in Quint.), so that tumultuando belongs to the preceding, the following abl. abs. representing the reason of erectius-tumultuando; or another version should be proposed, in which tumultuando fits in better with the following words behind the colon than now. When the place is read attentively, this would be expected: erectius iam loquebatur tumultuando: patefactas insidias reseratamque iam fallaciam (sc. esse), per quam etc. For the time being the versions do not satisfy me.

5. 11. tumultu<ando pate> factis insidiis rese<rata>que iam fallacia. If the text has been supplemented correctly in this way by Vales. Kiessl., fine instance of abundantia. Cf. 14. 11. 28: decente filo corporis membrorumque recta compage; 22. 16. 9: montium nullas speculas et collium signa cernentes; 22. 4. 18: aequis manibus et pari

fortuna discedunt; 14. 4. 3: nec idem perferunt diutius caelum aut tractus unius sol illis umquam placet; 31. 2. 10: nemo apud eos arat nec stivam aliquando contingit; Hagend. abund. p. 186 sq. See above.

p. 49. 22. 5. 12. *cumque iudices resedissent*. V: festidissent; B, G: fastidissent; Nov. resedissent; Madv. assedissent. Why not fastidissent? When the judges had got more than enough of the affair, Florentius found the solution to everybody's relief.

p. 49. 22—23. 5. 12. *Florentius Nigriniani filius agens tunc pro magistro officiorum*. Cf. Seeck B. L. Z. G. p. 157: „Antiochener, Sohn des Nigrinianus (Amm. 15. 5. 12; 22. 3. 6.), der 350 Consul war. Dieser Abstammung entspricht es, daß ihm eine vornehme Herkunft und großer Reichtum nachgerühmt wird. Im J. 355 ist er agens pro magistro officiorum (Amm. 15. 5. 12); er befindet sich also in einer ähnlichen Stellung zu den Magistri officiorum Palladius und Musonius, wie der Vicar zum Praefecten. Als mag. officiorum erscheint er zuerst im Winter 359/60 (Amm. 20. 2. 2.). Doch dürfte er dies Amt schon im Sommer 359 angetreten haben, da ep. I 47 (59)—50(62) darauf hindeuten, daß die bestechlichen früheren Inhaber desselben kürzlich zurückgetreten und er an ihre Stelle gesetzt ist. Mit dem Vetter des Libanius, dem Notar Spectatus, war er eng befreundet. Trotzdem hatte Libanius ihn in Antiochia nur sehr wenig gesehen und knüpfte ein näheres Verhältnis zu ihm erst durch den Brief VI 17 (424) im J. 356 an, welcher der erste der an ihn Gerichteten ist. Ihm folgten . . . Sie brechen mit dem Tode des Constantius im Jahre 361 ab, weil Florentius durch Julian seines Amtes entsetzt und auf die Insel Boae verbannt wurde: Amm. 22. 3. 6. Falls er nach dem Tode Julians begnadigt und nach Antiochia zurückgekehrt ist, was ich für wahrscheinlich halte, kann die Erwähnung aus dem Jahre 364 add. 51 (1172) sich auf ihn beziehen; doch ist dies zweifelhaft.“

Magister officiorum. Sub dispositione v. ill. mag. officiorum there are:

a. *scholares*; cf. ad 14. 7. 9, p. 20. 13—14.

b. *schola of the agentes in rebus*; cf. ad 14. 11. 19, p. 34. 18.

c. The *mensores* or *metatores* „maréchaux de logis, chargés de préparer les logements pendant les voyages de l'empereur“ (Willems); the *stratores*, under a *tribunus stabuli* (cf. ad 14. 10. 8, p. 29. 13) „écuyers de l'empereur, chargés en outre d'examiner et d'approuver les chevaux queles sujets sont tenus de fournir“; the *lampadarii*, the lampbearers; the *decani*, charged on behalf of the emperor to execute seizures and arrests.

d. *officium admissionum*. „Les audiences impériales sont accordées par l'intermédiaire du magister off., tandis que le cérémonial de l'introduction se fait par l'officium admissionum, subordonné au mag. off. et qui se compose d'un magister admissionum ou maître de cérémonies et d'admissionales invitatores (huissiers introducteurs).“ (Willems).

e. *cancellarii*, chancellery officials, assisting in the administration of justice.

f. The *scrinia* of the imperial chancellery, as far as they do not resort under the *tribuni et notarii* (cf. ad 14. 5. 6, p. 11. 5). For these *scrinia* cf. ad 15. 5. 4, p. 47. 16—17. „Le mag. off. veille au maintien de l'ordre dans le palais (palatii disciplina) et il est le juge civil et criminel de tous les officiales et scholares, subordonnés à lui ou au praepositus sacri cubiculi (= grand chambellan). Il annonce à l'empereur les ambassadeurs étrangers et c'est par son intermédiaire que les audiences impériales sont accordées. Il a, en outre, l'inspection des frontières de l'Empire et la juridiction sur les duces limitanei et ceux qui leur sont subordonnés. Après la chute de Rufinus, préfet du prétoire (396) le maître des offices fut chargé de plusieurs attributions qui avaient appartenu antérieurement aux pr. du pr., à savoir, de la haute direction des postes (cursus publicus), et de celles des fabriques d'armes, très nombreuses dans l'Empire; car la fabrication et le commerce des armes étaient un monopole de l'Etat (cf. ad 15. 5. 9, p. 49. 8—9).“ (Willems). Cf. Boak-Dunlap op. cit. p. 1—160 (with lit.) and Willems⁶ p. 556 sq. (with lit.).

5. 12. *apicumque pristinorum*. = *litterarum pristinorum*. Apex, p. 49. 24. which as a gramm. term. techn. frequently occurs in gramm. Quint. with the meaning of length-mark on a vowel, develops via the meaning: way of writing, handwriting into the meaning: script, writing. Cf. Gellius: 13. 30. 10: vix ipsos litterarum apices potui comprehendere; 17. 9. 12: membraque earum (sc. litterarum) et apices in partes diversissimas spargebat; apices augusti, sacri, caelestes, divini = imperial letter: Cod. Just. 2. 7. 25, 4; 8. 48. 5; 11. 43. 5; Symm. Epist. 4, 64: pervector tuorum apicum; Cod. Theod. 16. 2. 7: lectores divinorum apicum; Ronsch It. p. 328; Krebs. Antib. I p. 183.

5. 12. *ex libidine consarcinatae falsitatis adscripta*. For con- p. 50. 2. sarcinare cf. ad 14. 5. 6. Guenther op. cit. p. 16 has objections against consarcinatae f. ads. and wants to read: ex libidine consarcinata falsitatis ads.; in my opinion the version is correct: a common example of hypallage, quite defensible in a writer like Amm. Cf. Hofm.-Leum. p. 460 (with lit. quoted there); R. Volkmann op. cit. p. 423 sq. (very insufficient).

- p. 50. 2—3. 5. 13. *fallaciarum nube discussa*. Nubes = multitudo occurs more, e.g. in Liv., Verg., Plin. N. H., Val. Fl., Sil. The combination *fall. nube* will probably be a creation of Amm.
- p. 50. 3. 5. 13. *imperator doctus gesta relatione fideli*. Relatio in the meaning: item of news, story, is post-class. and late-Lat.; class. it is only sparsely used, e.g. *relatio criminum*; further proposal, nomination, magistrate's report. Now in late-lat. two technical meanings should be well kept apart: 1^o. *relatio* is official intelligence from a lower to a higher instance, especially to the emperor. Cf. Symm. *Relationes* (= Epist. X, edit. (Seeck p. 279 sq.)); also among Cassiodorus' *Variae* several letters are found, which may be considered *relationes*. 2^o. = *consultatio*. Cf. Willems⁶ p. 611: „Dans des cas difficiles, le fonctionnaire-juge, après avoir terminé l'instruction, peut, et parfois il doit s'adresser pour la décision à l'empereur lui-même. Il lui envoie par un de ses officiales les actes de la procédure avec son projet de sentence, et les écrits réfutatoires (*preces refutatoriae*) des parties. L'empereur y répond par un rescrit impérial, rédigé par le quaestor sacri palatii (cf. ad 14. 7. 12, p. 21. 1) assisté du magister epistolarum (head of the *scrinium epistolarum*). Ces consultations furent interdites plus tard par Justinien.”
- p. 50. 3—4. 5. 13. *abrogata potestate*. The combination of the „old-fashioned” expression: *abrogare potestatem* and the words: *statui-praecepit*, is conspicuous. Otherwise *abrogare* remains in use in the meaning of: to abrogate, repeal (laws, offices, etc.). The expression *abr. pot.* is also found in Cic. leg. 3. X 24: *Quid enim illum aliud perculit nisi quod potestatem intercedendi collegae abrogavit?*
- p. 50. 4. 5. 13. *statui sub quaestione praecepit*. Cf. Dig. 47. 10. 15. § 41: „*Quaestionem*” *intelligere debemus tormenta et corporis dolorem ad eruendam veritatem. Nuda erga interrogatio vel levis territio non pertinet ad hoc edictum. Quaestionis verbo etiam ea, quam malam mansionem (= bad quarter = rack) dicunt, continebitur. Cum igitur per vim et tormenta habita quaestio est, tunc quaestio intelligitur (Ulp.).*
- p. 50. 5. 5. 13. *enixa conspiratione* = by strenuous cooperation. The adj. *enixus* is rare. Liv. Sen. Frontinus. Plin. Hilar.-Arel. (with comp.: Seneca Plin. and superl.: Hilar.-Arel.). The adverb too occurs little (comp.: Liv. Amm.; superl.: Suet.). Further Eccles. Cf. 15. 7. 3: *rogabatur enixius*; 30. 1. 6: *enixius obsecrabat*.

5. 13. *suspensus*, sc. in *eculeo*. Cf. 14. 9. 5. In this combination p. 50. 5. unknown to me in other authors. Not in jur. lit.
5. 14. *abiit innoxius*. Cf. 15. 10. 5: *ducat innoxium* and ad 14. 7. 8 p. 50. 7. (p. 20. 7). For the *variatio* cf. 16. 2. 6: *innocuos abire perpessus est*; 17. 8. 5: *abire interim permisit innocuos*; 29. 1. 36: *abscessit innocuus*; 29. 2. 17: *abire iussit inlaesum*; 20. 9. 8: *revertit incolumis*.
5. 14. *omnes sunt absoluti, quos exhiberi delatio compulsi* p. 50. 8—9. *criminosa*. Cf. 17. 13. 26: *Hortatur recordatio rerum gloriose gestarum . . ea ad modum verecundiae replicare, quae*; 17. 13. 29: *alios periculi declinatio adegit suffugia petere latebrarum palustrium*; 16. 12. 12: *ergo quoniam negotiis difficillimis quoque saepe dispositio tempestiva prospexit*; etc. For the personification (*nomen actionis* as a subject) cf. Blomgren p. 89 sq.
5. 14. *omnes sunt absoluti, quos exhiberi delatio compulsi* p. 50. 8—9. *criminosa*. For the *verba compellendi* construed c. acc. c. infin. pass. cf. Kallenberg p. 27—29; ad 14. 7. 2 (p. 18. 18), 14. 5. 7 (p. 11. 16) and 14. 9. 7 (p. 27. 19—20); Thes. 3 p. 2035 (*compello*); Blomgren p. 138 sq. This construction sometimes not understood, e.g. 18. 7. 3: *extemplo igitur equites citi mittuntur ad Cassianum, Mesopotamiae ducem, rectoremque provinciae tunc Eufonium, compulsi agrestes cum familiis et pecoribus universis ad tutiora transire compelli et agiler deserere Carras, oppidum invalidis circumdatum muris; super his campos omnes incendi, ne pabulorum suppeteret copia.* (V.EBG, Benth.: *compelli*; Petsch. *confestim*, Gardth. Cl. exclude it from the text). Blomgren rightly translates: „um zu erzwingen, daß die Landleute genötigt würden, mit ihren Familien und Herden nach sicheren Plätzen überzusiedeln.” Cf. et. 15. 5. 2; 21. 16. 10; 27. 10. 7 (*adigere*); 14. 9. 7 (*perurgeo*); 26. 2. 3. and 27. 3. 6 (*urgere*).
5. 14. *Dynamius vero . . cum correctoris dignitate regere iussus* p. 50. 9—10. *est Tuscos . . .* For *Dynamius* cf. ad 15. 5. 3, p. 47. 7. For *corrector* cf. ad 14. 10. 8, p. 29. 14 and Willems⁶ Dr. publ. rom. p. 580: „Le nom générique des gouverneurs de province est celui de *rector*. Presque tous ont le rang de *clarissimi*. Dans certaines provinces ils s'appellent *consulares* et ont six faisceaux; dans quelques-unes, ils se nomment *correctores* et ont cinq faisceaux; dans d'autres enfin, ils portent le seul nom de *praesides*.” Seeck reads: *Tuscos* <et *Umbros*>. Not im-

probable. The provincia Tuscia et Umbria belongs to the provinciae suburbicarum of the dioecesis Italica, which is a part of the praefectura praetoria Illyrici Italiae et Africae. In the N. D. Occid. the governor of Tuscia et Umbria is called consularis!

p. 50. 9. 5. 14. *inlustratus*. In the meaning: to glorify often in Cic., Plin. N. H. and others. Amm. has a very good knowledge of both authors.

p. 50. 11—15. 5. 15. *Agens inter haec apud Agrippinam Silvanus assiduisque suorum conperiens nuntiis, quae Apodemius in labem suarum ageret fortunarum, et sciens animarum tenerum versabili principis (lac. 15 litt.) aretur absens† et (fuit e) indamnatus, in difficultate positus maxima barbaricae se fidei committere cogitabat. (V). animum. . versabilis EBG; principis in dicta causa timens ne absens et indemnatus perageretur reus B.G.; <trucid> aretur Gronovius; <proscrib> eretur, <dam> naretur Vales.; inauditus Vales.; timens ne damnaretur absens, et (= etiam) indemnatus in difficultate positus maxima Langen Emend. Amm. p. 14 sq.; <timens ne trucid> aretur absens et indamnatus Gardth. Cf. Blomgren p. 163 annot. 1: „Clark lectionibus Gelenii, Gronovii, Valesii conflatis hoc modo textum constituit: . . . Silvanus . . sciens animum tenerum versabilis principis, <timensque ne trucid> aretur / absens et inauditus etc. In qua scriptura ut cetera quoque incerta sint, interim illud reprehendo, quod Valesium secutus inauditus pro indamnatus substituit, quod est in cod. Fuld. Fugit eum Val. ideo mutasse, ut <damn> aretur textui inserere posset. Certe cum BG indemnatus legendum esse locis simillimis quos supra attuli, in comparationem vocatis (15. 2. 5: id sederat, ut nocte ventura procul a conspectu militarium raptus Ursicinus indemnatus occideretur; 26. 6. 3: veritus (sc. Procopius) ne hac ex causa indemnatus occideretur, e medio se conspectu discrevit) satis effici credo.” Instead of timens veritus may be taken (cf. 26. 6. 3) and, as Blomgren rightly observes, occideretur is a good conjecture, because exchange of a and e in cod. V occurs oftener (indamnatus and indemnatus!).*

p. 50. 11. 5. 15. *Agrippinam*. Cf. 15. 8. 19: Indicabat (sc. nuntius) autem Coloniam Agrippinam, ampli nominis urbem in secunda Germania, pertinaci barbarorum obsidione reseratam magnis viribus et deletam (just when the Caesar Julianus, on his journey to Gallia in 355, had reached Turin); 16. 3. 1: Nullo itaque post haec repugnante, ad recuperandam ire placuit Agrippinam, ante Caesaris in Gallias adventum excisam,

per quos tractus nec civitas ulla visitur nec castellum, nisi quod apud Confluentes (Coblenz), locum ita cognominatum, ubi amnis Mosella confunditur Rheno, Rigomagum (Remagen) oppidum estet una prope ipsam Coloniam turris. 2. igitur Agrippinam ingressus non ante motus est exinde quam Francorum regibus furore mitiscente perterritis, pacem firmaret, rei publicae interim profuturam, et urbem reciperet munitissimam (sc. Julianus Caesar 356). Since ± 400 definitely in possession of the Franconians. See of a bishop. It lies in Germania II (belonging to the dioec. Galliarum of the praefectura praetoria Galliarum). Cf. Ptolem. 2. 9. 8. (edit. Müller 1. 1. p. 227 c. annot.); Zos. 1. 38. 2; N. D. Occ. Böcking p. 472, 592 sq, 960; Wesseling Itin. 370, 373, 376; Piepers Tab. 13; Byvanck, The Netherlands in roman times, passim; Thes. sub voce; Klinkenberg, Kunstdenkm. der Stadt Köln, hgb. von Clemen (1906); Keussen, Topogr. der Stadt Köln im Mittelalter (1910).

5. 15. *in labem suarum ageret fortunarum*. 1. in fig. and lit. p. 50. 12. meaning favourite word of Cicero. In the meaning of: contagious disease 19. 4. 6: cum tales inceserit labes (here: pestilence). Cf. Sil. Pun. 14. 596: tum serpere labes // Tartarea, atque haustis populari castra manipulis; Gratt. Cynege. 468.

5. 16. *Laniogaiso—retulimus*. Franconian. According to Holder s.v. p. 50. 15—16. the name is Celtic. Cf. Schönfeld p. 152. When on January 18th 350 the emperor Constans (337—350; Stamm. V) was hunting in the neighbourhood of Autun, the comes Magnus Magnentius, a heathen officer of barbaric origin, had himself proclaimed emperor in this town, by conspirators, at the head of which stood the comes rerum privatarum Marcellinus. Army, officials and the population in Gallia joined the usurper. Constans wanted to escape to Spain, but was overtaken at Elne (Pyrenees), dragged out of a church, where he had hidden himself, and was killed. Cf. Stein, Spätr. Gesch. I. p. 215 (with lit.). So Amm. here rectifies Zosimus, who says 2. 41. 5: τούτων ὁ Κώνστας αἰσθόμενος ἀποδρᾶναι πρὸς τινα πολίχνην ὠρμήθη τοῦ Πυρηναίου πλησίον ψικισμένην. Ἑλένη δὲ τοῦνομα τῷ πολυχνίῳ. καταληφθεὶς δὲ ὑπὸ Γαῖσωνος, εἰς τοῦτο μετὰ τινων ἐπιλέκτων σταλέντος, ἀνιρέθη, πάσης αὐτὸν βοήθειας ἀπολιπούσης. (Amm.: solum adfuisse morituro Constanti).

supra retulimus. In a lost book.

tunc tribuno. Cf. ad 14. 5. 8, p. 11. 22.

p. 50. 16. **5. 16. candidatus.** The candidati form a guardscorps at the side of the scholae. They are not mentioned in the Not. Dign. According to Grosse their name in the Not. Dign. was concealed under another name, as there is a strong connection between scholae and candidati. „In der Tat deuten alle Zeugnisse auf den völlig gleichartigen Charakter beider Truppen hin. Auch unter den Candidaten dienten geborene Reichsbürger, Kaiser Justinian hat unter ihnen seine Laufbahn begonnen. In der Mehrzahl waren es aber Barbaren, und zwar Germanen, weshalb im Kriege des Kaisers Valens gegen die Goten eine Anzahl von ihnen eine hochverräterische Rolle spielte. Auch sie unterstanden dem magister officiorum. Nicht nur in der Residenz, sondern auch im Felde befanden sie sich in der nächsten Umgebung des Kaisers, dem sie in manchen Fällen die Treue bis zum Tode wahrten. Infolgedessen gebrauchte sie der Kaiser gern zu besonderen Missionen und beförderte sie oft zu Offizieren. Die C. haben sich bis tief in das byzantinische Mittelalter hinein erhalten . . ." (Grosse Mil. p. 96 sq.). [for scholae cf. ad 14. 7. 9, p. 20. 13—14; for magister officiorum cf. ad 15. 5. 12, p. 49. 22—23]. They are mentioned in Amm.: 25. 3. 6; 31. 13. 14 and 16; 31. 15. 8. For other places cf. Grosse ibid; cf. et. Boak-Dunlap pp. 95, 97, 99.

p. 50. 17—18. **5. 16. Francos . . interfecturos eum aut accepto praemio prodituros.** Cf. Hist. Aug. (Vopiscus) v. Proculi 13. 4: hunc (sc. Proculum) tamen Probus (276—282) fugatum usque ad ultimas terras et cupientem in Francorum auxilium venire, a quibus originem se trahere ipse dicebat, ipsis prodentibus Francis, quibus familiare est ridendo fidem frangere, vicit et interemit; annot. Vales. ad h. l. = edit. Wagner 2. p. 131.

p. 50. 18. **5. 16. nihil tutum ex praesentibus ratus.** Cf. 26. 7. 1: omnia tutiora praesentibus rati; 16. 12. 21: ratione tuta; 25. 4. 11: tutis rationibus; Tac. Hist. 3. 69: quod tutissimum e praesentibus; Tac. Ann. 2. 80: omisit tutissima e praesentibus; 12. 17: ceteris . . nihil tutum ratis; Liv. 35. 30. 11: tutum rati; Sall. Jug. 102. 6: tutius . . rati; Fesser p. 15.

p. 50. 18. **5. 16. ratus.** Cf. 15. 5. 16; 19. 11. 13; 20. 8. 9; 20. 8. 10; 21. 10. 1; 23. 5. 15; 24. 6. 17; 26. 4. 3; 26. 6. 12; 26. 7. 1; 28. 2. 5; 30. 10. 3. „Das im Altlat. sehr häufige Vb. verschwindet, abgesehen von der Form ratus, schon zur Zeit Ciceros (der es in den Reden vermeidet), aus der gewählten Sprache." (Heinze ad Hor. Sat. 1. 9. 49). Cicero De orat. 3. 38 calls it a verbum priscum. The verbum finitum is found in Amm. 17. 12. 4; 19. 11. 7; 20. 11. 24; 21. 7. 1; 22. 12. 3; 23. 5. 19; 24. 5. 6; 25. 3. 20;

27. 10. 1; 31. 3. 6; but only in the traditional forms (ut) rebatur, rebantur, (ut) reor. Cf. et. Fesser p. 41 (with lit.): „In Spätlat. findet sich ratus durchweg vereinzelt, nur ganz selten häufiger bei demselben Schriftsteller."

5. 16. in consilia agitabatur extrema. E Eyss. Cl.; cogebatur: BG; p. 50. 18—19. concitabatur: Corn.; V: cogitabatur. The last version is the correct one. Similarly 23. 6. 82: nam quod supersidere corio damnati ob iniquitatem iudicis, iudex alius cogitabatur etc. (EBG Cl.: cogebatur); Blomgren p. 172; Thes. 3 p. 1475 (with ex. from other authors; so no ἀπ.λεγ., as Hagend. Arnob. p. 168 adnot. 1 maintains); ad 13. 3. (p. 70. 1). Neither in 15. 5. 16, nor in 23. 6. 82 is the clausula objectionable.

5. 16. et sensim cum principiorum verticibus erectius conlocutus. p. 50. 19.

a. Cf. Grosse Mil. p. 112: „Die Unteroffiziere heißen bei Amm. im Gegensatz zu den Offizieren ((domestici) protectores; praepositi, tribuni, praefecti; cf. ad 14. 11. 19, p. 34. 17 and ad 14. 5. 8, p. 11. 22) principia, primi ordines, vielleicht auch primores (cf. 22. 3. 2: praesentibus Iovianorum Herculianorumque principiis et tribunis; 25. 8. 16: cum tribunis principiisque militum; 22. 3. 9: aliis specie tenus cum principiis legionum praesentibus; 25. 5. 1: advocatisque legionum principiis et turmarum; 28. 6. 17: numerorum principiis; Grosse draws the attention to the fact, that in the last 3 ex. princ. probably indicates „die Gesamtheit der Offiziere" and quotes here Veget. r. mil. 2. 7. X 3. 4: principiorum nomina X tribunis vicariis (sc. tribuni) principiisque; 19. 6. 3: tribunis primisque ordinibus; 16. 12. 20: antepilanis hastatisque et ordinum primis; 29. 5. 22: Sagittariorum vero primoribus manus incidit). Ob mit diesen Ausdrücken nun die Gesamtheit der Unteroffiziere gemeint ist oder nur bestimmte Chargen unter ihnen, worauf der Ausdruck primi ordines hinzudeuten scheint, ist nicht festzustellen. Prokop. nennt sie nie; auf Papyri finden sich für sie die Bezeichnungen $\pi\rho\lambda\omicron\pi\epsilon\sigma$, $\pi\rho\omega\tau\omicron\iota$, $\pi\rho\omega\tau\epsilon\upsilon\omicron\nu\tau\epsilon\sigma$ und — wahrscheinlich nur für die oberen Rangklassen unter ihnen — $\delta\rho\delta\iota\nu\acute{\alpha}\rho\iota\omicron\iota$ (cf. Maspéro op. cit. p. 104, 106).“ It is curious, that Grosse does not quote this place.

For vertex cf. ad 14. 7. 2 (p. 18. 16—17) and 19. 1. 3: multiplici vertice dignitatum et gentium diversarum comitatu sublimis (Wagner: varii generis optimatibus). It seems probable to me, that princ. vert. is similar here to 22. 3. 9, 25. 5. 1, 28. 6. 17, since in the first place Silvanus will no doubt have sought contact for the plot with his principal officers (in general sense). The annot. Val. ad h. l. is not quite correct.

Obs. For the „Rangklassen der Unteroftiziere“ cf. Hieronym. contra Iohannem Hierosol. c. 19: Finge aliquem tribuniciae potestatis suo vitio regradatum per singula militiae equestris officia ad tironis vocabulum devolutum: numquid ex tribuno statim fit tiro? non sed ante primicerius, deinde senator, ducenarius, centenarius, biarchus, circitor, eques (the tiro pictured is called eques or pedes), dein tiro; et quamquam tribunus quondam miles gregarius sit, tamen ex tribuno non tiro, sed primicerius factus est and Cod. Just. 1. 27. 2. 22. sq.: adessori, primicerio, numerario, ducenariis, centenariis, biarchis, circitoribus, semissalibus (and similarly further; of the officiales of the duces of Africa and Sardinia).

b. For the use of abstracta pro concretis, in which Amm. equals, if not surpasses, the poets, cf. ad 14. 8. 13 (p. 25. 5); Hagendahl zu A. M. p. 82; Blomgren p. 84 sq.

As supplement a few instances of this: 17. 7. 12: Neptunum umentis substantiae potestatem (= dominum); 30. 4. 13: laborant ut omnis quies litibus implicetur (= quietis quisque amans et ab omni lite abhorrens); 31. 8. 8: adulta virginitas castitasque nuptarum (= adultae virgines castaeque nuptae); 17. 7. 4: inter quae clamoribus variis celsa culmina resultabant, quaeritantium coniugium (= coniuges) liberosque; 22. 8. 41; 22. 2. 3: utque solet fama novitates augere; 23. 5. 19: abolenda nobis natio molestissima, cuius in gladiis nondum nostrae propinquitatis exaruit cruor (= propinquorum); 24. 3. 5; 21. 13. 12: quod . . . adiumenta caelestia coercebunt (= caelestes adiuvantes).

p. 50. 19—20. 5. 16. isdemque . . . accensis. Cf. ad 5. 19, 20, p. 51. 16—19.

p. 50. 20—21. 5. 16. cultu purpureo a draconum et vexillorum insignibus ad tempus abstracto. Cf. Vales. annot. ad h. l. (= edit. Wagner II p. 132):

A. „Cum imperii παράσημον esset purpura, quam conficere sub poena capitis interdictum erat; qui tyrannidem arripiebant, purpuram de signis aut vexillis ac statuīs detrahēre necesse habebant; donec imperio confirmato confici sibi purpuream vestem iuberent. De vexillis testatur Capitolinus in Gordianis (Hist. Aug. Gord. 8. 3): sublata de vexillis purpura imperatores eos dicemus adhibitisque insignibus Romano iure firmabimus. De statuīs auctor est Vopiscus in Saturnino (Hist. Aug. Saturn. 9. 3): ibi tamen cum cogitare coepisset tutum sibi non esse, si privatus viveret, deposita purpura ex simulacro Veneris cyclade uxoriam militibus circumstantibus amictus et adoratus est. Et Pollio in Celso tyranno (Hist. Aug. Cels. trig. tyr. 29): Celsum imperatorem appellaverunt

peplo deae Caelestis ornatum. Libanius quoque in Antiochensi (Or. 11. 159: Foerster I. 2. p. 489) de Eugenio quodam tribuno, qui Diocletiani temporibus tyrannidem arripuit: . . . τυραννίδος ἐρᾷ. καὶ οὐκ ἐμελλε καί, ἣν γὰρ ἀλουργία ἀγάλματι περικειμένη, ταύτην ἐνδύσας ἔργου εἶχετο.

Interdum etiam ex gynaeceo (spinning-mill, weaving-mill) segmentum aliquod rapiebant purpurae. Sic Procopius (A. D. 365) a Faustina (cf. Stammtafel VI a) Constantii quondam uxore purpuram accepisse dicitur (26. 7. 10) [This last case is not expressly mentioned] . . .” Cf. et. ad 15. 9. 7, p. 27. 17—18 (on the manufacture of purple etc.).

B. draconum. Cf. Amm. 16. 10. 7: eumque post antegressos multiplices alios, purpureis subtegminibus texti, circumdedere dracones, hastarum aureis gemmatisque summitatibus inligati, hiatu vasto perflabiles, et ideo velut ira perciti sibilantes, caudarumque volumina relinquentes in ventum;

Claud. de III cons. Honor. 138 sq.:

Hi volucres tollunt aquilas, hi picta draconum
Colla levans, multusque tumet per nubila serpens
Iratus stimulante Noto, vivitque receptis
Flatibus et vario mentitur sibila tractu.

Nemes. Cyneg. 87 sq.:

Aurea purpureo longe radiantia velo
Signa micant, sinuatque truces levis aura dracones.

Amm. 16. 12. 39: quo (sc. Caesare) agnito per purpureum signum draconis, summitati hastae longioris aptatum, velut senectutis pandentis exuvias, stetit unius turmae tribunus, et pallore timoreque percussus, ad aciem integrandam recurrit. Cf. et. Grosse Mil. p. 230: „ . . . daß wir unter den bei Amm. vorkommenden Legionen vorwiegend Detachements, in einzelnen Fällen aber auch Vollegionen zu verstehen haben. Von vornherein ist anzunehmen, daß der Adler (= aquila) das Feldzeichen der letzteren geblieben ist; andererseits ist es aber sehr unwahrscheinlich, daß die Detachements ihn erhalten haben. Ein Hauptquartier ist ja wohl in jedem Falle geblieben, da wird das altheilige Symbol aufbewahrt worden sein, ohne jemals praktisch in die Erscheinung zu treten. Die taktische Bedeutung des Adlers bestand darin, daß man an ihm die Anwesenheit des Legionskommandeurs erkennen konnte; sobald eine zersplitterte Legion kein Gesamtkommando, keinen praefectus mehr hatte, war die Feldherrnfahne überflüssig. Damit stimmt der Befund bei Amm. überein . . .” (p. 231) . . . „Welches war das Feldzeichen des Legionsdetachements? Als solches haben wir die Drachenfahne anzusehen, welche seit dem 2. Jahrhundert in der

römischen Armee auftaucht. Der draco ist ein uraltes . . . Feldzeichen von echt barbarischem Charakter, wahrscheinlich in Trajans Dakerkriegen übernommen. Seine allgemeine Einführung im 4. Jahrhundert ist eins von den vielen Symptomen fortschreitender Barbarisierung der römischen Armee. Zweifellos fand er sich zuerst bei den numeri, bzw. den nachdiocletianischen Auxilien; Amm. erwähnt 20. 4. 18 einen draconarius der Petulanten (cf. N. D. Or. 9. 26; Occ. 5. 160). Bei Vegetius gehören die dracones zu den regelmäßigen Feldzeichen; sie sind bei ihm die Cohortenfähnen der Vollegion . . . Die Neulegion war nun auf keinen Fall in Cohorten gegliedert, sondern entsprach höchstens der cohors miliaria der Vollegion; wo für diese der draco bezeugt ist, so liegt der Schluß sehr nahe, daß er auch das Feldzeichen des Detachements geblieben ist . . ." (with lit.). Now the difficulty in Amm. is, that he often expresses himself conventionally and inexactly, when technical as well as military terms are concerned, although he has of course a perfect knowledge of them. So that no conclusions should be drawn from the fact that he mentions the aquila 8 times and the draco 3 times; and so that it is very well possible, that by the term signum a draco is sometimes meant. Vegetius ($\pm$ 430) no longer seems to know any signa. For vexillum cf. Grosse ibid. p. 233 sq.: „Der Gebrauch des vexillum dagegen scheint sich gleich geblieben zu sein. Es ist vor allem die Reiterfahne; wenn die seit Konstantin von der Infanterie abgetrennten Detachments der Legionsreiterei vexillationes hießen, so ist dieser Name selbstverständlich von dem Feldzeichen abgeleitet. Damit scheint im Widerspruch zu stehen, daß nach Amm. jede turma ein vexillum führte (for t. cf. ad 15. 4. 10, p. 46. 8—9) . . . Da Amm. die vexillationes nur einmal nennt (25. 1. 9), so wird sich seiner altertümelnden Liebhaberei entsprechend unter turma vielfach diese moderne Truppe verbergen." Vexillum may further mean: signal, (flag); cf. Amm. 24. 6. 5: sublato vexillo, ut iussum est, evolant e conspectu quinque subito naves; 27. 10. 9: stetit regibilis miles, vexillum operiens extollendum; quod erat oportune subeundae indicium pugnae.

Obs. According to v. Domaszewski, Die Fahnen im römischen Heere, (Abh. des Archäol. Epig. Seminars der Univ. Wien, 1885) p. 24, in former times the legionsdetachments, which then had only a temporary existence, had a vexillum (D. treats the time of the republic and the first empire).

C. cultu purpureo = purple stuff. This faded meaning of cultus is not known to me from other authors etc.

5. 17. *insperabilis nuntius*. Extremely rare adj. In Gellius 4. 18. 3 p. 50. 24. assumed as a conjecture by Hertz. According to the dict. of Benoist-Goelzer still in Dict. and Iren. (Interpr.).

5. 17. *sollicitato exercitu ad augustum culmen evectum*. Cf. p. 51. 1—2 Tac. Dial. 13. 2: licet illos certamina et pericula sua ad consulatus eveerint (et annot. Gudem. ad h. l. p. 273). Horat. Verg. Sil. Liv. Tac. Curt. Vell. Paterc. etc. Especially frequent in the last author. The whole expression is poetical and artificial. Culmen = acme, apex = fastigium non-class. (In Liv. 45. 9. 7: summum culmen fortunae). Cf. Lucan. 8. 8:

quamvis summo de culmine lapsus (sc. Pompeius),
nondum vile sui pretium scit sanguinis esse;

Lucan. 8. 702:

Hac fortuna fide Magni tam prospera fata
Pertulit; hac illum summo de culmine rerum
Morte petit;

Claud. de VI cons. Honor:

Publicus hinc ardescit amor, cum moribus aequis
Inclinat populo regale modestia culmen.

Krebs? Antib. 1. p. 379; for comparison Vell. 2. 56: in summum evecti fastigium. Cf. et. 29. 2. 9: hoc unum edisseram, quam praecipiti confidentia, patriciatus columina ipsa pulsavit.

5. 18. *primates consilio secunda vigilia convocato*. According p. 51. 3. to Seeck Regesten p. 201 Silvanus assumes purple Aug. 11 355 and is murdered Sept. 7 of the same year. As the report is brought towards sunset, the secunda vigilia must be about midnight, also in connection with the time of year. For primates cf. ad 14. 7. 1, p. 18. 16 and: 14. 7. 1: nec honoratis parcens nec urbium primatibus nec plebeis; 24. 7. 1: Digesto itaque consilio cum primatibus (= ducibus militaribus) super Ctesifontis obsidio; 28. 6. 4: trahentes captivum Siluam quoque, casu cum caritatibus in agro inventum, ordinis sui primatem (i. e. primatem Curiae Leptitanae) [cf. et. 14. 7. 2: Antiochensis ordinis vertices; et annot. ad h. l. p. 18. 16—17]; Cod. Just. 1. 4. 6: primates officii; Cod. Just. 12. 19. 7: quindecim primatum eiusdem scrinii testimonio. Here primates = consistoriani and consilio = consistorio (cf. ad 14. 7. 11, p. 20. 22).

5. 18. *summissis verbis perstringebatur Ursicini mentio*. p. 51. 5—6. „Leviter et timidiuscule iniecta est" (Wagner). For Ursicinus cf. ad 14. 9. 1, p. 25. 26.

p. 51. 7—8. 5. 18. *admissionum magistrum—qui mos est honoratio — accito eodem*. Cf. Boak-Dunlap p. 66: „The *admissionales* or *officium admissionum* are placed at the Master's disposal in the *Notitia Dignitatum* (N. D. Or. 11. 17; Occ. 9. 14). They were a corps of court ushers, which had developed under the Principate and had been carried over into the Empire, where its importance was enhanced owing to the increased attention paid to the details of court ceremonial. Its immediate chief was at first the *magister admissionum*, who by the sixth century had acquired the title of *comes admissionum*. This *officium* assisted the master of the Offices in the Direction of the receptions and audiences and must have been subject to his jurisdiction as well as to his orders in general.” p. 92.: „The M. of the Offices arranged all the imperial audiences, both of private persons, of officials, and of ambassadors from foreign states, which were usually held in the *consistorium*. In this he was assisted by the *officium admissionum*, the corps of court ushers (*admissionales*) with the *mag. admissionum* at their head, who were subject to his orders”

„Persons to be presented might be actually introduced by an ordinary *admissionalis* or by the *magister admissionum*. In the case of men of eminence, such as senators, the master himself might stand before the curtain (*velum*) of the council chamber and usher in the favored individuals. In this latter fashion the Bishop Athanasius seems to have been brought before the Emperor Constans in 346 (Ath. Apol. ad Const. 3) and the monk Constantius before Theod. II in 449 (Mansi 6 p. 821).” Cf. et. Böcking N. D. I p. 237 (with lit.); Cassiodorus *Variae* 6. 6: *Per eum* (sc. *mag. off.*) *senator veniens nostris praesentatur obtutibus; admonet trepidum, componit loquentem, sua quinetiam verba solet inserere, ut nos decenter omnia debeamus audire. Aspectus regi haud irritus, promissor collocationis nostrae, gloriosus donator aulici consistorii, quasi quidam lucifer; nam sicut ille venturum diem promittit, sic iste desiderantibus vultus nostrae serenitatis attribuit*”; Const. Porph., de caerim. 1. 87; Amm. 22. 7. 2.: *dein Mamertino ludos edente circenses* (Mamertinus cs. A. D. 362; the consuls used to emancipate publicly a few slaves on taking office), *manu mittendis ex more inductis* (sc. *servis*), *per admissionum proximum ipse lege agi ductus dixerat* (ut solebat). . [for the explanation cf. annot. Vales. ad h. l. Wagner II p. 444 sq.], where by *proximus adm.* is meant: the „assistant master of ceremonies.” „Unde intelligitur, quare honoratus fuisse dicat Marcellinus, per Magistrum accersiri” (Vales.); in my opinion this observation is correct in so far, that one could also be introduced by an ordinary *admissionalis*.

5. 18. *ingresso consistorium offertur purpura*. Cf. Vales. ad h. l. p. 51. 8. Wagner II p. 132: „Id est, adorandae sacrae purpurae copia datur. Solebant enim Imperatores ultro ipsi venientibus *chlamydis laciniam* porrigere, quo maiore animo accederent. (cf. 21. 9. 8: *verum cum primitus visus, adorandae purpurae datam sibi copiam advertisset, recreatus tandem suique securus „incaute” inquit „imperator et temere cum paucis alienis partibus te commisisti”*. Cui amarum Iulianus subridens „haec verba prudentia serva” inquit „Constantio. Maiestatis enim insigne non ut consiliario tibi, sed ut desinas pavere porrexisti.” The comes Lucillianus, who wanted to resist Julian A. D. 361, was taken by surprise by Dagalaifus and brought before the emperor). Adorandae autem purpurae ritus erat eiusmodi, ut Patricii quidem ad dextram Principis papillam adorarent, Princepsque eorum caput deoscularetur (Patricii form the highest class; cf. Willems⁶ p. 546), Senatores vero ac ceteri genu dextro ante Principem flexo abscederent, quemadmodum scribit Procopius in *Anecdosis* sub finem; quem habitum exprimit Marcellinus paullo post (15. 5. 27) cum de Ursicino haec dicit: *Susceptus tamen idem dux* (sc. Ursic.) *leniter adactusque, inclinante negotio ipso cervices, adorare sollemniter anhelantem celsius purpuratum* (sc. Silvanum), *ut spectabilis colebatur et intimus etc.*”

5. 18. <Diocletianus enim Augustus> *omnium primus, externo et regio <mo>re instituit adorari*. The first conj. of Vales. - Gardth. most probably agrees with the original text. For the introduction of court-ceremonies by Diocl. cf. Stein Spätr. Gesch. p. 101—102 (with lit.). The construction of the sentence is Greek: *instituit externo et regio more adorari*. (τὸ προκυλινθεῖσθαι); the wordorder is caused by the rhythm of the sentence. [It is also possible that Amm. means: he began to have himself worshipped etc. (dynamical medium). Cf. et. Hofm.-Leum. p. 588 sq.].

5. 18. *omnium primus*. Cf. ad 14. 6. 17 (p. 16. 13) and 14. 11. 11 p. 51. 9. (p. 33. 3).

5. 18. *iudicum*. Cf. Heumann-Seckel⁹ p. 292 sq.: „In der Spätzeit p. 51. 10. bedeutet iudex: a. kaiserlicher Beamter, der mit der Zivil- oder Militärverwaltung betraut ist; da Justiz und Verwaltung nach wie vor nicht getrennt sind, kommt dem Staatsbeamten als Beamtenrichter Gerichtsbarkeit in Privat- und Strafsachen (*iurisdictio* einschließlich der Judikation, *imperium mixtum und merum*) zu; *iudex ordinarius* bezeichnet

den Provinzialstatthalter (auf der dritten Rangstufe) als den ordentlichen Richter unterster Instanz, in Gegensatz zu den höheren Richtern (Präfecten, Vikarien, Prokonsuln) und zu den Militär- und Fiskalbeamten mit Sondergerichtsbarkeit: *iudices dioeceseos tam civiles quam militares* (Cod. J. 1. 27. 1. 19); *de officio civilium iudicum* (Cod. J. 1. 45); *de officio iudicum militarium* (Cod. J. 1. 46); *iudex major, minor* (Cod. J. 3. 1. 14. 1) ...; häufig steht *iudex* in Sätzen der Digesten, die erst von den Kompilatoren herrühren, in denen also *iudex* schon im Sinn der wahren Verfasser den Byzantinischen Richter bedeutet. b. Unterrichter, *iudex pedaneus* (Cod. J. 2. 3. 29. 2 etc.), auch *iudex datus, delegatus, specialis* (Cod. J. 3. 1. 16, 18), der von der Gerichtsobrigkeit bei Geschäftsüberhäufung oder für Bagatellstreitigkeiten mit einer einzelnen Entscheidung in Zivilsachen beauftragt ist (Cf. R. Sohm¹⁶, Institutionen p. 362 sq.). c. Schiedsrichter: *iudex privatus* (Cod. Theod. 15. 14. 9); *iudex compromissarius* (Cod. J. 2. 3. 29. 2 etc.)." Here is meant a. *Iudicum* is practically synonymous here with: magistratum. Cf. Amm. 20. 8. 14: (from a letter from Julianus to Constantius, A. D. 360): *praefectos praetorio, aequitate et meritis notos, tua nobis dabit clementia, residuos ordinarios iudices, militiaeque moderatores, promovendos arbitrio meo concedi est consentaneum, itidemque stipatores*; 20. 9. 1: *nec minore studio secuti legati (sc. Juliani), haec secum ferentes quae praediximus, intentique ad viandum, cum venirent ad iudices celsiores, oblique tenebantur.*

p. 51. 12. 5. 19. *orientis vorago*. Cf. 14. 11. 2: *huic sententiae (sc. Constantii) ... id occurrebat, Caesare (sc. Gallo) discedente, Ursicinum in oriente perniciose relinquendum, si nullus esset qui prohibebit, altiora meditaturum*; 15. 2. 1: *iamque post miserandam deleti Caesaris cladem, sonante periculis iudicialium tuba, in crimen laesae maiestatis arcescebatur Ursicinus, adulescente magis magisque contra eius salutem livore, omnibus bonis infesto*. For the metaphor cf. 14. 6. 16; *mensarum ... voragines* (= the carousal at table); Ovid. Met. 8. 843: *ventris*; Cic. Sext. 52: *vorago patrimonii*; Cic. Pis. 18: *vos geminae voragines scopulique rei publicae*; Cic. Verr. 3. 9: *immensa vorago ac gurgis vitiorum*; Val. Max. 9. 4: *avaritia, manifesta praedae avidissima vorago*; etc.

p. 51. 12—13. 5. 19. *<in>vadendaeque summae rei per filios adfectator conpellabatur*. *Affectator* post-class., Seneca. Quint. Florus. Apul. Eutr. Vulc. Cass. Spart. = qui spem affectabat summae rei per filios potiundae.

5. 19. *et Constantini magnus erat commilito*. „Id est, fuisse p. 51. 13. *praedicabatur*“ (Vales.). For *commilito* cf. Krebs⁷ Antib. I p. 302.

5. 19. *solusque ad extinguendum, probis quidem sed insidiosus rationibus petebatur*. Troß: „und wurde aus richtigen Gründen — wenn man auch die hämische Absicht dabei hatte, ihn zu verderben — als der Einzige aufgesucht, der den Aufruhr zu dämpfen im Stande sei.“

5. 19. *opera navabatur exstingui Silvanum .. Ursicinum exulceratum .. aboleri*. Cf. 31. 4. 5; *et navabatur opera diligens nequi Romanam rem eversurus relinqueretur*. The construction c. Inf. is non-class., just as in *operam dare* (cf. Krebs⁷ Antib. II p. 215), after which also *ut or* (negative) *ne* is used. The combination of „literary“ *operam navare* with „vulgar“ infinitive construction is typically Ammianic indeed. For *penitus* cf. ad 22. 8. 31.

5. 19. 20. *Ursicinum .. eundem ducem* (5. 27: *idem dux*). Cf. p. 51. 16—19. Blomgren p. 159: „Neminem .. Amm ... legentem ea res effugere potest, quotiens homines vel res intervallis longioribus brevioribusve interiectis iterum ab eo inducantur, perquam saepe id fieri addito pronomine *idem*“; 14. 5. 8: *Paulus .. eundem .. Paulum*; 16. 7. 3: *Eutherius .. (4) hoc eodem Eutherio*; 18. 3. 4: *Barbatio .. (6) idem Barbatio*; 21. 16. 20: *Iovianus .. (21) eidem Ioviano*; 28. 6. 5: *Romani comitis .. (6) idem .. comes (idem VGA, Petsch. Cl.; inde edit. vulgo)*; 14. 8. 14: *Cyprum .. eadem Cyprus*; etc. (cf. Blomgren *ibid.*) This use is of importance for textual criticism; cf. 23. 6. 64: *ultra haec utriusque Scythiae loca contra orientalem plagam in orbis speciem consertae celsorum aggerum summitates ambiunt Seras, ubertate regionum et amplitudine circumspectos, a septentrione et orientali <ni>vosae solitudini cohaerentes: qua meridiem spectant, ad usque Indiam porrectos et Gangen, appellantur autem idem montes Anniba et Nazauicium et Asmira et Emodon et Opurocorra (idem V, iidem BG, <ib> idem Mannert, Gardth., Cl.). Idem montes and celsorum aggerum summitates are the same, as Blomgren rightly observes, with reference to Ptolem. Geogr. 6. 16. 2. Cf. et. 31. 6. 6: *quibus (sc. Gothi ad suos redeuntibus) accessere sequendarum auri venarum periti non pauci .. susceptique libenter consensione cunctorum magno usui idem fuere ignota peragrantibus loca ..* (Heraeus, Cl. *idem*, but *periti* = *idem*). For this use of *idem* (= modo dictus) cf. S. Benedicti Regula 22: *Si potest fieri, omnes in uno loco dormiant; sin autem multitudo non sinit, deni aut viceni cum senioribus, qui super**

eos solliciti sint, pausent. Candela iugiter in eadem cella ardeat usque mane; and 39: Panis libra una propensa sufficiat in die, sive una sit refectio sive prandii et cenae. Quod si cenaturi sunt, de eadem libra tertia pars a cellarario servetur reddenda cenandis. The meaning of idem here approaches that of is, as in late-Latin, e. g. in Firm. math., Filastr., Chiron, Orosius, Vitae patr. (cf. Hofm.-Leum. p. 479). Herewith should be compared the use of αὐτός in late-Greek, where it re-assumes a substant. etc., put at the head with more or less stress, in the same peculiar every-day speech way. Cf. Ljungvik op. cit. p. 6 sq.: (BGU II 523, 21 sq.): τὰς οὖν δραχμὰς ἐξήκοντα δὸς αὐτὰ Ἥλιτι τῷ ἐμῷ; (P. Lond. II 243, 8 sq.): τοὺς περὶ Ἀπολλωνίων ἡξίωσα αὐτοὺς καὶ ἡνάγκασα αὐτούς; (P. Fay. 127 (II—III p.), 5 sq.): καλῶς ποιήσας τῷ ἐπιβάλλον ὑμῖν τοῦ καρποῦ τοῦ ἀμπελῶνος δοῦναι αὐτὸ τῇ ἀδελφῇ σου. (Similar phenomena in Gr. comedy and in Herodotus). And also the use of αὐτός for οὗτος (ὁ αὐτός = idem!): (BGU VII 1655 (169 p.), 41 sq.): ἵνα μὴ τοῖς ἀδελφοῖς ἐαυτῶν . . . λόγους παρέξονται ὑπὲρ αὐτοῦ τοῦ πράγματος (= οὗτου τοῦ πράγματος); (Mart. Matth. 258, 10 sq.): καὶ ἔσονται αὐτὰ τὰ ὀνόματα ὑμῶν γεγραμμένα ἐν τοῖς οὐρανοῖς (= ista nomina vestra); (Malalas 276, 19 sq.): καὶ ὅτε ἤρξατο παρέχειν τὸ δημόσιον (= public bath) εἴ τις ἔαν ἐλούετο εἰς αὐτὸ τὸ δημόσιον, ἐσκοτοῦτο καὶ ἐπιπτε. Cf. et. Ljungvik ibid. p. 8 sq.; Psaltes, Gramm. der byz. Chroniken p. 194 sq.; Hatzidakis, Einl. in die neugr. Gramm. p. 208.

p. 51. 16. 5. 19. perduellem. Cf. ad 14. 2. 1, p. 4. 7.

p. 51. 16. 5. 19. Ursicinum exulceratum. Exulcerare = to make a. p. swear; to grieve deeply; worsen, embitter. The last meaning seems to me the most probable here. Cf. Liv. 9. 14: cum . . . nec virtus modo insita sed ira etiam exulceratos ignominia stimulet animos, castra invasere . . .; Cic. pro Deiot. 3: fore putabant, ut in exulcerato animo facile fictum crimen insideret; etc. The explanation of Wagner.-Ernest. II p. 134: „calumniis iam adpetitum et oppressum”, seems wrong to me.

p. 51. 17. 5. 19. inpendio. Cf. ad 14. 1. 9, p. 3. 14 et ad 14. 5. 4, p. 10. 22—23.

p. 51. 17—18. 5. 20. cum de profectione celeranda disponeretur. Cf. 14. 7. 5: non . . . disponi quicquam statuit; 16. 10. 1: haec dum . . . disponuntur; 16. 12. 23: hoc itaque disposito; 16. 5. 3 (Constantius sc.) praelicenter disponens, quid in convivio Caesaris (sc. Juliani) impendi deberet;

16. 12. 27: unde dispositum erat ut abditis repente exorti cuncta turbarent; 24. 1. 2: excursatores quidem quingentos et mille sensim praeire disposuit; 25. 6. 14: Persarumque conculcatis pluribus et truncatis, quos loca servare dispositos, securitas placido vinxerat somno; 28. 1. 12: utque congeminata potestas erectaque sublatius altiores consarcinaret aerumnas, Maximino Romae agere disposito pro praefectis sociavit ad haec cognoscenda . . . Leonem; 17. 2. 2: hac Iulianus rei novitate percussus . . . retento milite circumvallare disposuit; 23. 5. 16: „Contemplans maximis viribus et alacritate vos vigere, fortissimi milites, contionari disposui.” Meanings and constructions: de + gerund. = to take measures (here); c. acc.: to arrange, to take measures; with indirect question, c. ut c. conj., c. acc. c. inf., c. inf.: to arrange, to determine, to destine; c. inf.: to decide, to intend. Often too in jurid. lit. and other late-Lat. authors.

5. 20. propulsationem obiectorum criminum. Cf. Cic. p. Sull. p. 51. 18. § 2: cum huius periculi propulsatione coniungam defensionem officii mei; Gellius 6. 3. 15: propulsationem translationemve criminis. Cf. ad 15. 5. 5 (p. 48. 5).

5. 20. praegressus = praeveniens. Cf. 21. 5. 13: Iulianus . . . expertus p. 51. 19. quid in rebus tumultuosis anteverio valeat et praegressus (subst. cf. Cic. de off. 1. 11).

5. 20. controversa defensio causae. Controversus only occurs in p. 51. 20. class. lat. in the meaning: what is struggled about, contrary, still subjected to a discussion pro or contra. Cf. Cic. de leg. I 52(20): Ad finem bonorum, quo referuntur et cuius apiscendi causa sunt facienda omnia, controversam rem et plenam dissensionis inter doctissimos, sed aliquando tamen iudicandam; Cic. de divinat. II 50 (104): tantum sat est intellegi, id sumere istos pro certo, quod dubium controversumque sit; (actively: fond of disputing) Cic. Brut. 12: Itaque ait Aristoteles, cum sublati in Sicilia tyrannis, res privatae longo intervallo iudiciis repeterentur, tum primum, quod esset acuta illa gens et controversa natura, artem et praecepta Siculo Coracem et Tisiam conscripsisse; cf. et. Dig. 12. 2. 9: aut, si controversia erit, id est si ambigitur. Here too, in my opinion, contr. has the first meaning: controversa defensio causae = controversae defensio causae (For the interchange of the parts of speech cf. Blomgren p. 146 with numerous instances and lit.; it is especially misjudged in Amm., which leads to unsuccessful conjectures). In this meaning controversus does not seem to occur in jurid. lit.

Obs. The remaining meanings of *controv.* in *Amm.* are:

1. lying opposite; cf. 14. 2. 3: *litoribus Cypriis . . . quae Isauriae scopulis sunt controversa*; 22. 8. 2: *Athos in Macedonia mons . . et Cafereus Euboicus scopulus . . . licet longo spatio controversi*; 27. 8. 6: *cum (dux sc.) venisset ad Bononiae (= Boulogne) litus quod a spatio controverso terrarum angustis reciproci distinguitur maris (viz. the Channel)*; 18. 9. 2: (*Amida*) *spiranti Zephyro controversa Gumathenam contingit*; Cato 43. 1. Rare, non-class. 2. moving into opposite direction. Cf. 22. 15. 7: *opinio est celebrior alia quod spirantibus prodromis per que dies quadraginta et quinque etesiarum continuis flatibus repellentibus eius meatum velocitate cohibita superfusus fluctibus intumescit (sc. Nilus): et reluctante spiritu controverso adolescens in maius etc.*; Solinus 32. 10: *et quo inpensius controversi spiritus repugnaverint*. This meaning also very rare, non-class. 3. (actively): hostile. Cf. Macrob. Somn. Scip. 1. 6. 24. *Amm.* passim. Non-class. and very rare.

p. 51. 21. 5. 20. *partes* = „litigantes, Ursicinum et accusatores eius.” (Wagner). Very usual in *jur. lat.*; in this meaning generally post-class.

p. 51. 22—
p. 52. 1. 5. 21. *habita . . . deliberatione . . tractabatur*. In spite of the objections, which Hofm.-Leum. p. 607 have against this explanation, yet it is evident here that *habita deliberatione* is in the same tense as *tractabatur*. So *habita* is a *part. praes. pass.* The *ablat. abs.* represents the circumstance of *tractabatur*. Therefore Tross-Bücheler rightly translates: „Die Sache wurde nun vielseitig erwogen und vornehmlich die Frage verhandelt etc.”

p. 52. 1—2. 5. 21. <id> . . *tractabatur, quo commento Silvanus . . existimaret*. Gardth.’s conjecture: *id* unnecessary in my opinion. The antecedent of the *relativum* is oftener left out. Added to this is, *ea*, *id* die out in late-lat. prose (cf. Hofm.-Leum. p. 478); in *Amm.* *id* is rather frequently found, however, owing to his literary erudition. Cf. et. Bourciez (op. cit. II) p. 101.

p. 52. 5—6. 5. 22. *tribunis et protectoribus domesticis decem . . ad iuvandas necessitates publicas ei coniunctis*. For *tribunis* cf. ad 14. 5. 8, p. 11. 22 and for *protect. dom.* ad 14. 11. 19, p. 23. 17. Troß: „und es wurden ihm auf seinen Wunsch Tribune und zehn Leibtrabanten als Gehilfen für dringende Fälle bei dieser Staatsangelegenheit beigegeben.”

5. 22. *inter quos ego quoque eram cum Veriniano collega*. p. 52. 7. Cf. 18. 8. 11: (The episode takes place in the war against Sapor, A. D. 359, after a preceding defeat and flight) *Mihi (sc. Ammiano) dum avius ab itinere comitum quid agerem circumspicio, Verennianus domesticus protector occurrit, femur sagitta confixus, quam dum avellere obtestante collega, conarer, cinctus undique antecedentibus (= praecursatoribus) Persis, civitatem (sc. Amidam) petebam etc.* Further not mentioned. The Verennianus of 18. 8. 11, who is a protector domesticus, must surely be the same as Verinianus collega, i. e. colleague of Ammianus, who was a protector domesticus. Cf. et. Klio, N. F. III Beiheft, 1923, p. 3 (Enßlin).

5. 22. *residui omni . . . iamque etc. Castellus; Vales.: residui* p. 52. 7—8. *omnes propinqui et familiares. Iamque etc.* The last 3 words are mere guesswork.

5. 23. *iamque eum egressum, solum de se metu<ens> quisque*, p. 52. 8—9. *per longa spatia deducebat*. V: *se metu*. Translation: And soon, when he departed, he was accompanied for a long distance, while everybody were afraid of themselves only. The conjecture *se metu<ens>* is by Vales. It seems not impossible to me, that *Amm.* wrote *solum de se metu quisque*. For the construction *metu de* cf. Cic. Ep. ad fam. 11. 21. 3: *Quod autem scribis te, quod pro te ipso non facias, id pro me, ut de me timeas aliquid, omni te, vir optime mihi que carissime Brute, de me metu libero*. Though *quisque* causes the singularis *deducebat*, the logical subject is actually: they, i. e. the courtiers; *solum de se metu quisque* represents an attendant circumstance of this *deducebat* in a part of the sentence, which syntactically plays the part of *ablativus absolutus*. Had the author the *participium ov* in his mind? Or have we got here a kind of „*nominativus absolutus*”? Cf. Ljungvik p. 8 (with lit. quoted); Hofm.-Leum. p. 449 sq. (with lit.).

spatia. Cf. 31. 8. 6—9: *et vastabundi (sc. Gothi) omnes per latitudines Thraciae pandebantur impune . . Barbari tamen, velut diffractis caveis bestiae, per spatiorum amplitudines fusius incitati, oppidum petivere nomine Dibaltum etc.* [„*Thraciarum* Clark e coniectura Petschenigii edidit (cf. supra: *latitudines Thraciae*). Quoniam tota haec libri XXXI pars in codice V non est, confugiendum est ad libros deteriores et veteres editores; qui habent: *spatiorum FKYUQWHT*; *spatiorum CEA*, *spaciorum N*. Ac mihi quidem persuasum est lectionem *spatiorum*, quam Gardthausen edidit, Novák defendit, minime fuisse relinquentiam. Nam praeter-

quam quod nomen Thraciarum hic non desideratur scriptura, quae est spatiorum amplitudines, usu sermonis Ammianei firmatur." Blomgren p. 170]; 25. 2. 6: id (sc. ignis quidam caelestis) enim in stellae speciem figuratum, decurrit quidem, dum viribus ignium sustentatur: amplitudine vero spatiorum exinanitum, in aerium solvit corpus; 31. 4. 8: nam postquam innumerae gentium multitudines, per provincias circumfusae, pandentesque se in spatia ampla camporum, regiones omnes et cuncta opplevire montium iuga . . ; 17. 13. 22: ad castra Romana convolvit eorum pars maior, diffusa per spatia ampla camporum . . ; 31. 3. 3: ad amnem Danastium pervenerunt, inter Histrum et Borysthenem, per camporum ampla spatia diffluentem; 17. 12. 3: et per spatia discurrent amplissima; 22. 8. 12: per haec amplissima spatia, oppida sunt dispersa Graecorum . . ; 14. 6. 16: per ampla spatia urbis; 14. 7. 16: per ampla spatia civitatis; 24. 3. 12: per spatia ampla; 27. 2. 5: spatiis amplioribus occupatis. Cf. et. Hofm.-Leum. p. 371 (plur. poet.); Hagedahl St. Amm. p. 73 sq.

p. 52. 9—10. 5. 23. intractabilibus. Cf. Verg. Aen. 1. 339: genus intractabile bello (= indomitum, invictum); Verg. Georg. I. 2. 11: Usque sub extremum brumae intractabilis imbrem (= dura, aspera, indomita); Seneca Hippol. 229, 271: animus; Epist. 25: Respice aetatem eius iam duram et intractabilem. Non potest reformari. Tenera finguntur; Plin. N. H. 19. 5: Pastinacae virus intractabile; Gell. 18. 7: cui cognomentum insano factum est, quoniam erat natura intractabilior et morosior; Iust. 24. 4: Alpium invicta iuga et frigore intractabilia loca transcendit (= inhabitabilia), etc. Cf. Liesenberg (1888) p. 24 sq.; Paucker, de lat. B. Hier. p. 64 annot.

p. 52. 10. 5. 23. tristia accidentia. Cf. ad 14. 1. 1.; 14. 1. 3; 14. 2. 6; 14. 7. 21.

p. 52. 11—12. 5. 23. mirabamur illam sententiam Tullianam / ex internis veritatis ipsius promulgatam. Homoeoteleutum with similar clausula in the two cola. Cf. Blomgren p. 126; Harmon p. 176 adn. 1. (for the accentuation ipsius cf. Harmon p. 211). Cf. et. Wagner II p. 135.

p. 52. 12. 5. 23. ex internis veritatis ipsius. Cf. 31. 16. 1: occupare statuunt Perinthum, exindeque <vicinas urbes di> vitiarum refertas, docentibus omnia per fugis, etiam domorum nedum urbium interna noscentes. The adj. internus in general and special meaning nearly exclusively post-class. and late-lat., seldom in class. lat. The neutr. plur. very rare.

Cf. Plin. N. H. 2. 1.: interna mundi; Tac. Ann. 4. 32: aut si quando ad interna praevertent (home history); Veget. Mul. 1. 39: multae et obscurae valetudines in internis animalium (intestines).

5. 24. ambitiosus. Cf. Cic. ad fam. 13. 1. 5 (M. Cicero S. D. C. Memmio): p. 52. 17. Sed ne plura — dicendum enim aliquando est — Pomponium Atticum sic amo, ut alterum fratrem; nihil est illo mihi nec carius nec iucundius: is — non quo sit ex istis (sc. Epicureis); est enim omni liberali doctrina politissimus; sed valde diligit Patronem, valde Phaedrum amavit (both Epicurei) — sic a me hoc contendit, homo minime ambitiosus, minime in rogando molestus, ut nihil unquam magis, nec dubitat, quin ego a te (sc. Memmio) nutu hoc consequi possem, etiam si aedificaturus esses; (Memmius wanted to build a house on the spot of the former house of Epicurus at Athens, for which he had got permission from the Areopagus. The Epicurei, when nothing availed, applied, by means of the Epicurean Atticus, to Cicero, to intercede). In Cic. ambitiosus here means: magno studio petens, ardens etc. This meaning also in Amm. So not: ambitious.

5. 24. adlapsus . . rumore. Cf. Verg. Aen. 9. 473 sq.: p. 52. 18. Interea pavidam volitans pennata per urbem Nuntia Fama ruit, matrisque allabitur auris Euryali.

Cf. 18. 6. 3: Credimus (neque enim dubium est) per aëros tramites famam praepetem volitare, cuius indicio haec gesta pandente, consiliorum apud Persas summa proponebatur (sc. „in consistorium regis convocatis ducibus"). Rather wittily Wagner remarks: „Admodum poëtice per aëra incedit ipse historicus."

5. 24. cursim. For the many adverbs in -im cf. Liesenberg (1889) p. 52. 19. p. 14. sq.; Paucker Vorarb. p. 129 sq.

5. 24. invenimus cuncta nostris conatibus altiora. Tross correctly: p. 52. 20—21. „fanden wir Alles für unsern Plan zu weit gediehen."

5. 25. namque convena undique multitudine trepide coepta p. 52. 21—22. fundante. Translation: for while a crowd flocked together from all directions, restlessly and hurriedly tried to consolidate the new situation.

Convena: Adj. Cf. 23. 3. 8: aquis aduliscentibus undique convenis; 23. 6. 57: itidemque Ochus et Orgomanes, iuncti convenis aquis, augeat immania Oxi fluenta;

Similarly Plautus Miles 139 sq.:

Itaque ego paravi hic intus magnas machinas
Qui amantis una inter se facerem convenas.

Cf. et. Solinus 37. 1: hic receptis in se aliquot annibus convalescit et stipatus aquis luctatur cum montis Tauri obiectu; 47. 2: tunc serpentes undique gentium convenae a veno statim die illuc confluunt; Symm. orat. 2. 23: nec Rhenus ut ita dixerim, Romana pace gauderet, nisi amnem convenam (sc. Nigrum) velut obsidem tradidisset.

p. 53. 1—2. 5. 25. id aptius videbatur ut . . . verteretur. Translation: this seemed the most suitable thing, that . . . had to be pliable. Non-class. and rare construction. Cf. Hofm.-Leum. p. 764 (visum est); Krebs⁷ Antib. II p. 739; Reisig III p. 820 (et annot. 605).

p. 53. 1—2. 5. 25. ut ad imperatoris novelli . . . sensum ac voluntatem dux fle<xi>bilis verteretur. Cf. Cic. Lael. 93: qui ad alterius non modo sensum ac voluntatem sed etiam vultum atque nutum converteret; 28. 1. 43: ad nutum Maximini et voluntatem (Cic. ep. 3. 10. 10: totum me ad eius viri . . . voluntatem nutumque converterem); 28. 4. 32: longe abhorrent a studiis et voluntate veteris illius plebis (Cic. often, e.g. leg. agr. 2. 4; Verr. II. 3. 6; 5. 180; Tusc. 5. 5; Caes. B. Gall. 1. 19. 2); Hagedahl abund. p. 169.

novelli. In general this adj. is non-class., old-lat. and late-lat. Here with contemptuous meaning. Cf. Krebs⁷ Antib. II p. 167.

flexibilis. Bentley, Dederichs, Cl.; fidelis Momms. flexilis Petsch. All these conjectures superfluous in my opinion. Flebilis is not understood. This is no epitheton ornans, but it means: he Ursicinus „dux prudentissimus et Constantini magnus commilito” (15. 5. 19), had to be pliable and to bend for the time being „ad imperatoris novelli sensum ac voluntatem”, by which he became (temporarily) flebilis; as Wagner says it tersely: „misellus, cum imperatore sc. comparatus.”

p. 53. 1—2. 5. 25. imperatoris . . . per ludibriosa auspicia virium accessu firmandi. Tross: „den man unter täuschend günstigen Vorzeichen durch einen scheinbaren Zuwachs in seiner Macht befestigen mußte.” (With the explanation of Wagner II p. 133 ad h. l. I cannot entirely agree).

accessus. In the meaning increase, enlargement (= class. accessio, incrementum) already in Seneca ir. 3. 1. 5 and especially late-lat. Cf. Arch. L. L. G. 9 p. 453, 459; Thes. s.v.; 22. 2. 5: accessione opum et virium.

5. 25. ludibriosa. Cf. 17. 11. 4: nec non etiam in Pompeium obtretores iniqui, multa scrutantes, cum nihil unde vituperari deberet, inveniretur, duo haec observarunt ludibriosa et inrita (ridiculous, ludicrous); 29. 1. 3: immittebantur confestim qui . . . incantamenta quaedam anilia vel ludibriosa subderent amatoria (ridiculous); Gellius 7. 11: at postea, cum in eundem Antonium probra quaedam alia ludibriosa et turpia ingessisset (mockingly); Firm. math. 1. 7. 10: Platonem cum illis animi virtutibus, cum illa sapientiae doctrina vendidit fatum et illam divini animi disciplinam tyrannicis crudelitatibus ac ludibris Dionysii potestatibus tradidit (scoffing, defying); Hilar. (in ps. 41. 11); August. Cf. et Liesenberg (1888) p. 27 for the adj. in -osus.

5. 26. cuius rei finis arduus videbatur. Finis is here: fulfilment, as oftener in Cic. and other authors.

5. 26. erat enim cautius observandum, ut adpetitus oportunitati obtemperarent nec praecurrentes eam nec deserentes. qui<si> eluxissent intempestive, constabat nos omnes sub elogio uno morte multandos. Cf. 19. 11. 15: nostri quoque licet rari videbantur exanimes, quos impetus conculcaverat vehemens aut furori resistentes hostili . . . ordo fatalis absumpsit; 24. 4. 25: lapsura invaditur civitas et <s>ine <se>xus discrimine vel aetatis quicquid impetus repperit, potestas iratorum absumpsit. For the personification cf. Blomgren p. 91.

For adpetitus cf. 30. 5. 2: e statione proxima reprimebat bar<bar>icos adpetitus (= attack); 26. 10. 4: urbem admodum oportunam, et impedituram eius adpetitus; 24. 4. 10: imperator . . . oppidum . . . oppugnabat. sed ut erat necessarius adpetitus, ita effectu res difficillima; 27. 6. 9: ut enim mihi videri solet mores eius et adpetitus, licet nondum maturos, saepe pensanti (= inclination, tendency, desire for). Here: enterprise, plan (= molitio, ἐπιχελεῖσθαι). Thes. II p. 282, 63 sq.; Krebs Antib. I p. 187 sq.

multandos. Part. fut. pass. Cf. Hofm.-Leum. p. 594; Langen Phil. 29 p. 482 sq. (for Amm.).

5. 26. sub elogio uno. Cf. ad 14. 5. 5, p. 10. 25—11. 1; et ad 14. 7. 2, p. 53. 7. p. 18. 17.

5. 27. idem dux. Cf. ad 15. 5. 19, 20, p. 51. 16—19.

p. 53. 8.

- p. 53. 8—9. 5. 27. *adactusque . . adorare*. Since Verg. c. inf. Cf. Thes. I 1337, 37 sq. For the increase of infinitive-constructions (in general) cf. Hofm.-Leum. p. 580 sq.; (for Amm. especially) Kallenberg op. cit. passim.
- p. 53. 9. 5. 27. *anhelantem celsius purpuratum*. Cf. 26. 6. 1: Procopius. . post Constanti obitum in rerum conversione, velut imperatoris cognatus, altius anhelabat; 27. 9. 4: . . parcentem (sc. Valentinianum) potioribus, qui tanquam peccatis indulta licentia, ad labes delictorum immanium, consurgebant; qui ex eo anhelantes, ex nutu suo indistanter putant omnium pendere fortunas; 38. 1. 31: anhelans flatu superbo, Maximinus etiam tum praefectus annonae. Rare and poetical use of anhelare. Anhelare celsius = adspirare ad maiora.
- p. 53. 10. 5. 27. *spectabilis . . intimus*. Spectabilis means here: distinguished, respectable. In this meaning it is post-class. (used for persons). It cannot be here the terminus technicus, for Ursicinus (cf. ad 14. 9. 1, p. 25. 26), who was (had been) a mag. peditum (and equitum), had, in these functions the title of (clarissimus et) illustris. For *intimus* (also class.) in the meaning of: intimate friend cf. Krebs⁷ Antib. p. 776.
- p. 53. 10—11. 5. 27. *facilitate aditus honoreque mensae regalis*. Transl: because he was easily granted an audience and he was [regularly] honoured with an invitation to the royal dish. *Aditus* is the word, also used in class. lat., for: audience. This meaning is not found in jurid. lat. From the following words it appears, that Urs. is considered a member of the consistorium (cf. ad 14. 7. 11, p. 20. 22). The term for the more ceremonial visit to the emperor is *adoratio*; to a high officer of state *salutatio*. For these last conceptions cf. Willems⁶ Dr. publ. rom. p. 545. sq. Among the *comites consistoriani* (split into various categories; cf. Willems⁶ op. cit. p. 554 sq.) preferably those should be sought, who are considered worthy of the honour of taking part in the *mensa regalis*.
- p. 53. 11. 5. 27. *secretius*. *Secrete* and *secretim* (cf. 29. 5. 6: *adfirmans Fidustum . . . Pergamium, nomen imperatori post Valentem detestandis praesagiis, didicisse secretim*) late-lat. for: *secreto*. Cf. Goelzer St. Jérôme p. 195; Krebs⁷ Antib. II p. 549. For the *comparativus* cf. ad 14. 6. 12, p. 14. 20.
- p. 53. 14—17. 5. 28. *ut ipse quidem . . commisisse in maiestatem arceseretur, alter vero ab oriente raptus odiis inimicorum addiceretur*.

(*homoit.* + twice cl. III). Cf. 15. 11. 12: *secundam enim Lugdunensem Rotómagi et Turíni, Mediolanum osténdunt et Tricasíni* (*asyndeton*, *homoit.* and twice cl. III); 19. 2. 3: *tractum servabant septentríonis Albáni, occidentali portae oppositi súnť Segestáni* (twice cl. I); 19. 2. 7: *pars confixi tragulis humum corpóribus obstruébant, vulnerati alii socios fuga praecipiti repetébant* (cl. III twice); 19. 2. 9: *saucii perniciosé cadébant aut laniati volvendo stantes próxime subvertébant* (cl. I and cl. III). These are all according to Blomgren p. 120: „*eiusmodi loci, quibus homoeot. binis syllabis efficitur, e quibus prior accentum sustinet, quod quidem genus nusquam, quod viderim, plus quam bina complectitur membra*” and longer „*membra parallela*”, in which it is conspicuous that the cl. are often similar. For further instances cf. *ibid.* p. 120 sq. Cf. et. ad 15. 10. 4 (p. 64. 2) and 15. 13. 4 (p. 70. 5—6). This type is generally also found in rhythmic cola at the end, too much again than that only chance may be assumed; cf. 14. 9. 6: *et tandem nec conféssus nec confutátus cum abiecto consorte poenali est mórtē multátus* (cl. III and cl. I, which while preserving the cl. could also be read: *poenali multátus est* or *p. mórtē multatus est*); 19. 9. 9: *cum septuaginta tresque dies Amidam multitudine circumsidisset armórum, triginta milia pérdidit bellatórum* (cl. I and cl. III, which while preserving the cl. could also be read: *triginta bellatorum pérdidit milia*); 31. 7. 5: *vulgus inaestimábile barrbaórum, ad orbis rotundi figuram multitudine digésta plaustrórum* (cl. III and cl. I, which while preserving the cl. could again be read *plaustrórum digésta*); 30. 5. 16: *ruinas fortunarum indicántia celsárum arsere crinita sidera cometárum* (cl. I and cl. III; hyperbaton in the first part and artificia place of the subject in the latter part; for *synthesis* cf. Harmon p. 223); 22. 16. 19: <si> *intellegendi divini editionem multiplicem et praesensionum originem mente vegeta quisquam volúerit replicáta, per mundum omnem inveni <et mathematica> huiusmodi ab Aégypťo circumláta* (for Aégypťo cf. Harmon p. 212 sq.). Here too twice cl. III. Further instances of the latter kind Blomgren p. 122 sq.

5. 28. *et haec adsidue clam querebatur et palam*. Rhythmi p. 53. 17. *causa querebatur* has been placed between *clam* et *palam*. For the *homoeoteleutum* cf. Blomgren p. 117 sq.

5. 29. *murmura*. Pluralis poeticus. Cf. 26. 3. 6: *sub hoc tamen* p. 53. 19. Aproniano ita iugiter copia necessariorum exuberavit ut nulla saltim levia murmura super inopia victui congruentium, orerentur. Cf. Hagedahl St. Amm. p. 96 sq.: „Hanc vocem pluraliter dici grammatici negant.

Pluralis autem a poetis metri causa (plerumque in quinto pede versus) saepe adhibetur. In prosa oratione pluralem numerum rarissime inveni." (with ex. and lit.).

- p. 53. 19—20. 5. 29. *murmura causantis inopiam militis et rapida celeritate ardentis angustias Alpium perrumpere Cottiarum*. For a similar use of the participia (combined with trajectio; cf. Blomgren p. 25) cf. 22. 8. 19: (adtritis damnorum adsiduitate finitimis, Amazones veteres, quae eos cruentis populabantur incursibus altiora spirabant . . . manus Atheniensibus intulerunt, acrique concertatione effuse disiectae omnes nudatis equitatus sui lateribus conruere.) harum interitu cognito residuae ut <in> belles domi relictæ extrema perpessae vicinitatis et repensantis similia funestos impetus declinantes ad pacatiorem sedem transiere Thermodontis. Cl. puts et (et BG, vulgo eis) before vicinitatis, wrongly according to Blomgren p. 147. The given text is very well defensible (finitimi = vicinitas, adtritis sq. ∞ extrema perpessae, repensantis is used conatively.)
- p. 53. 19—20. 5. 29. *ardentis—perrumpere*. Cf. Sall. Iug. 39. 5: mederi fraternae invidiae animo ardebat. In poets since Verg. c. inf., in prosaists only again since Amm. Cf. Thes. II 486, 61 sq.; Hofm.-Leum. p. 581.
- p. 53. 20. 5. 29. *Alpium..Cottiarum*. Named after king Cottius (cf. ad 15. 10. 2, 7). A description of the Alpes Cottiae 15. 10. 2—9.
- p. 53. 21. 5. 30. *aestu mentis ancipiti*. Interchange for: aestu mentis ancipitis (sc. exercitus). [Mens = mentality] = In this impetuous and dangerous mood (of the army). The whole expression artificial and poetical.
- p. 53. 21—22. 5. 30. *ad effectum tendens consilium occulta scrutabamus indagine*. . Tross: „suchten wir in geheimen Beratungen einen Entschluß zu fassen, der zum Ziele führte." The word indago is non-classical. In the meaning: examination, search, late-lat., with the exception of, among others, Plin. nat. hist. 9. 7 and Gellius 7. 16. Cf. Amm. 29. 6. 12: barbari . . ad Aequitii vertuntur indaginem (= encirclement); 30. 3. 2. negotium scrupulosa quaesivit indagine; etc. Krebs⁷ Antib I p. 720.
- p. 53. 22—24. 5. 30. *sederatque tandem . . ut . . sollicitarentur*. Cf. Verg. Aen. 2. 660: Et sedet hoc animo, perituraeque addere Trojae // Teque tuosque iuvat . . ; ibid. 5. 418: Sed si nostra Dares haec Troius arma recusat, //

Idque pio sedet Aeneae.; 4. 15: Si mihi non animo fixum immotumque sederet, // Ne cui me vinco vellem sociare iugali; 7. 611: . . ubi certa sedet patribus sententia pugnae; Stat. Theb. 1. 324 sq.: tunc sedet . . ferre iter impavidum; ibid. 3. 459 (c. inf.); Valer. Flaccus Arg. 1. 555; ibid. 7. 427: . . occumbere tandem // possumus: idque sedet . . ; 2. 383: Si sedet Aegaei scopulos habitare profundi; Seneca Epist. 46: nunc vero parum mihi sedet iudicium, tamquam, audierim illa, non legerim; Phoen. 141: hoc animo sedet; Florus 2. 15. 9: seditque sententia; Claud. R. Pros. 1. 121: Certa requirenti tandem sententia sedit; Plin. Nat. Hist. 2. 7. 5: sedere coepit sententia haec. In Amm. the expression is probably a reminiscence of the reading of Vergil. The construction with ut is further unknown to me.

5. 30. *obstricto religionum consecratione conloquio. Religio* p. 53. 23—24. in jurid. lit. means among other things the sanctity of an action (cf. Cod. Iust. 4. 1. 2: Iurisiurandi contempta religio deum ultorem habet), further also: oath (cf. Dig. 28. 7. 8: etenim potuit is, qui voluit factum, quod religionis condicione adstringit sub condicione faciendi relinquere . .). Similarly rel. sometimes means: oath in class. and other lat., often combined with obstringere. Cf. Caes. b. c. 1. 67. 3: quod perterritus miles in civili dissensione timori magis quam religioni consulere consuevit. The whole expression artificial and poetical for: (ministris) obstrictis religioso iure iurando ne colloquium proderent.

5. 30. *Bracchiati . . atque Cornuti*. The B. and C. belong to the p. 53. 24—25. *auxilia*; they mainly consist of Teutons and Celts, at any rate of barbarians. The main sources for the knowledge of the auxilia are Ammianus and Notitia Dignitatum. They form a very important part of the army and are held in high esteem; which also appears from the rank they occupy in the N. D. The auxilia, probably at a strength of ± 500 men, are commanded by tribuni or praepositi.

15. 30. *fluxioris . . .* On the ground of 18. 2. 18: ut sunt fluxioris p. 53. 25. fidei barbari and the occurrence of this combination in Plaut. Sall. Liv. Tac. Avien. Dictys. Symm., I daresay here should also be read fluxioris fidei, though the lacuna of the Mss. is not yet filled by this (cf. Clark in his annot. crit. ad h. l.).

fluxus. This word that occurs in Plaut. Acc. Sall. Liv. Tac. and more frequently in the archaists, in Amm. 18. 7. 7: more vitae remissioris fluxus agens (= unstable, wavering, unsteady); 22. 4. 4: unde fluxioris
III.

vitae initia pullularunt; 22. 15. 5: fluxis umoribus (= cursory). Cf. et. Heraeus ad Tac. Hist. 2. 75; Fesser p. 56.

p. 53. 25—
p. 54. 1. 5. 30. ubertate mercedis ad momentum omne versabiles. Transl.: (of unstable faith and) unsteady on rich reward at any motive (or: change). For versabilis cf. ad 14. 3. 1, p. 8. 9—10.

p. 54. 1—6. 5. 31. firmato itaque negotio . . . Silvanum extractum aedícula, quo examinatus confugerat, ad conventiculum ritus Christiani tendentem, densis gladiatorum ictibus trucidarant. Guenther op. cit. p. 16 reads: tendens, for: „fieri non potest ut S. a manu illa aedícula extractus ad conventiculum ritus Christiani tetenderit, neque enim credibile est milites eum, cum semel cepissent, rursus effugere passos esse.” These objections are not valid: 1^o. tendentem belongs to the obect Silvanum, which has the stress. The part. might, however, have been in the nomin as well, if it had been combined with the suppressed subject (Silvanus) of confugerat. In both cases the meaning remains the same. Further the conative meaning (or if need be perfective) of the part. praes. should be taken into account (cf. ad 2. 7. p. 40. 16—20); 2^o. The clausula which Guenther gets: ~ ~ ~ ~, is very rare, though it occurs oftener than Clark assumes (cf. Hagendahl St. A. p. 63 sq.; Blomgren op. cit p. 93 sq.; Harmon p. 168).

trucidarant. Cf. ad 14. 7. 12 (p. 21. 1).

p. 54. 1. 5. 31. per sequestres quosdam gregarios. Cf. 14. 7. 21: et causarum legitima silente defensione, carnifex rapinarum sequester et obductio capitum . . . versabatur per orientales provincias. (According to Vales. it is probable, that Amm. is thinking here of Cic.: in Verrem II. 5. 6.: quis dubitet quin servorum animos summa formidine oppresserit, cum viderent ea facilitate praetorem, ut ab eo servorum sceleris coniurationisque damnatorum vita vel ipso carnifice internuntio redimeretur? Amm. would hide as it were the flower of speech, which occurs more.). Sequester in the meaning of intermediary, medium is found rather frequently in Cic. For gregarius, which is used adjunct. here, cf. ad 15. 1. 2, p. 39. 2. For quosdam = non nullos cf. Hofm.-Leum. p. 484 (late-lat.).

p. 54. 2. 5. 31. obscuritate ipsa = just because of their very low origin. Cf. Cic. off. 2. 13; Tac. Hist. 1. 84; Florus 3. 1. 13.

p. 54. 2—3. 5. 31. accensus. Why this version is taken by Cl. is not clear to me. The version of V is: accensos, belonging to gregarios. We find here 3

cola with approximately equal clausulae and homoeoteleutem: per sequestres quosdam gregarios, obscuritate ipsa ad id patrandum idoneos, praemiorum expectatione accensos (2 claus. II + 1 claus. I). Cf. ad 15. 5. 28, p. 53. 14—17.

5. 31. solis ortu iam rutilo. Cf. 16. 12. 7: iamque solis radii rutilantibus. Cf. Hagendahl Stud. Amm. p. 102: „Ad principium diei lucisve ortum indicandum multitudo locutionum suppeditat, quarum magna pars ampullas poetarum mirum quantum redolet.” (with ± 35 instances!) Cf. ibid. a long list of synonyms of *mori* and *interficere* among other things.

rutilare. Cf. et. 18. 6. 22: regem vestis claritudine rutilantem. Poetical word. Not in class. prose. Cf. Hagendahl Stud. Amm. p. 65 sq.

5. 31. subitus armatorum globus. A closely arrayed group of infantry is called globus in those times (Amm. 20. 5. 1; 21. 4. 8; 25. 1. 16; 31. 5. 9; 31. 7. 12) or drungus (H. Aug. v. Probi 19. 2: Triumphavit de Germanis et Blemmyis, omnium gentium drungos usque ad quinquagenos homines ante triumphum duxit; Veget. 3. 16: scire dux debet, contra quos drungos, hoc est globos, hostium quos equites oporteat poni; 3. 19: globis, quos dicunt drungos). The last word, though of course known to Ammianus, is entirely avoided by him, as it is a Germanic loanword. This does not fit in his style and in that of Theodosian renaissance.

5. 31. ut solet in dubiis rebus. Cf. 25. 1. 1: ut solet in artis rebus et dubiis; 26. 9. 9: ut in arduis necessitatibus solet; 30. 1. 5: ut in magnis solet dubiisque terroribus; 18. 8. 8: ut in rebus solet afflictis; 20. 4. 21: ut in repentino solet; 25. 2. 3: ut solebat (also: 25. 5. 6; 29. 5. 39; 30. 9. 3 etc.) Fesser p. 4 supposes influence of Sallustius (cf. Hist. I 126: ut in terrore solet; III 95: uti solet in extremis rebus; III. 84: uti solet). For res dubiae cf. 16. 12. 40: utque in rebus amat fieri dubiis (Sall. Iug. 34. 1: quae ira fieri amat); 21. 6. 8; 26. 5. 12; 28. 5. 2. Archaism. Cf. Norden Aen. p. 190, 372.

5. 31. aedícula. Tross translates here: „kleine Capelle.” This meaning aedícula often has, also in class. lat. We should imagine this aedícula as being in Silvanus' regia. It seems more probable to me, that it is here: small room; cf. Cic. pro Cael. 17 (c. annot. v. Wageningen ad h. l.); Plaut. Epid. 402.

p. 54. 5-6. 5. 31. *conventiculum ritus Christiani*. Cf. 27. 3. 13: constatque in basilica Sicinini, ubi ritus Christiani est *conventiculum* etc. *Conventiculum* = place of meeting is non-classical. Thus it is found e.g. in Tac. Arnob. Lact. Cf. et. Cod. Iust. 1. 5. 6. 2: Ita ut nemo in religionis disputatione . . . in aedibus aut villa . . . *conventiculum* clam aut aperte praebeat; ibid. 1. 5. 8. 3: Universi praeterea Apollinaristae vel Eutychnistae non ecclesias non monasteria sibi construant, parasynaxes (secret meetings) et *conventicula* tam diurna quam nocturna non contrahant etc. Amm. who was a heathen, speaks of Christianity in terms, which betray the non-Christian: ritus Christianus. Cf. Enßlin Klio Beiheft 16 (1923) p. 96 (Amm. u. das Christent.): „So wird Silvanus getötet auf der Flucht ad *conventiculum ritus Christiani* (15. 5. 31), ebenso flüchtet ein Angeklagter ad ritus Christiani *sacrarium* (26. 3. 3), oder bei einem Germanenüberfall auf Mainz wird erzählt (27. 10. 2), Christiani ritus sollemnitas celebratur; weiter wird ein gewisser Palladius auf Valentinians Befehl verhaftet und zum Hoflager transportiert. Unterwegs aber begeht er Selbstmord *custodum absentia*, qui festo die Christiani ritus in ecclesia pernoctabant (28. 6. 27). Der Römische Bischof Liberius heißt Christianae legis antistes, etc.”

p. 54. 8. 5. 32. *factione iniquorum inretitus est absens*. *Inretio* in Amm. is probably a result of the reading of Cicero, who rather often uses this otherwise rare word.

p. 54. 9. 5. 32. *ad praesidia progressus extrema* = having availed himself of the last means of protection. For the pluralis poeticus cf. ad 14. 2. 3, p. 4. 22-23.

p. 54. 10.

5. 32. *ob tempestivam illam cum armaturis prodicionem*. Cf. Iul. Orat. I in Const. 48 B: Τῶν στρατευμάτων δὲ τὴν εὐνοίαν τίς ἂν ἀξίως διηγῆσαιτο; τάξις μὲν ἱππέων πρὸ τῆς ἐν τῇ Μύρσῃ παρατάξεως μεθεισθήκει κ.τ.λ.; Orat. II in Const. 97 C: Ἰλῆ τε τῶν ἐπιλέκτων ἱππέων ξὺν τοῖς σημείοις καὶ τὸν στρατηγὸν ἄγουσα τοῦτο τοῦ κινδύνου ξυμμετέχειν μᾶλλον ἢ ἐκείνῳ τῆς εὐτυχίας ἡξίου. „Quibus in locis notandum est Iulianum eius defectionis gloriam Silvano, quippe ob perduellionis crimen occiso, adimere, et ad milites ipsos transferre”. (Vales.; which the nature of a panegyric on Const. could not help requiring). Aur. Vict. Caes. 42. 15: Is namque Silvanus in Gallia ortus barbaris parentibus, ordine militiae, simul a Magnentio ad Constantium transgressu, pedestre ad magisterium adolescentior meruerat; Zonaras: Σιλβανὸς εἰς τῶν

αὐτοῦ ταξιαρχῶν μετὰ πλῆθους ὀπλιτῶν ἐκείνον λιπὼν, Κωνσταντῷ προσῆλθε τῷ αὐτοκράτορι.

armaturis. Cf. ad 15. 5. 6, p. 48. 11.

5. 33. *Mursense proelium*. Sept. 28, 351. As through his roughness and bad conduct, Constans (337-350) had made himself hated, he was dethroned on January 18, 350 by his magister militum (cf. ad 14. 9. 1, p. 25. 26), the Franconian Magnus Magnentius and killed during his flight (cf. ad 15. 5. 16, p. 50. 15-16). M. took possession of the West and after much bloodshed beat Nepotianus, who had been proclaimed Augustus in Rome (July 350; cf. Stamm. III). In Illyricum, March 1, 350, the armies had proclaimed old Veteranio emperor (cf. ad 15. 1. 2, p. 39. 3). Since 338 A. D. Constantius had been involved in a heavy war with the Persians about Armenia and Mesopotamia. After provisionally settling the situation in the East, he moves to the West. Veteranio puts off the purple in Serdica. (Dec. 25, 350). After unsuccessful negotiations M. is defeated near Mursa in Pannonia (= Esseg). This may have been the bloodiest battle of the 4th century. Many people now left Magnentius' party, as Const. granted amnesty. From Aquileia M. tried to come to an agreement with C., which failed. In the late summer of 352 he leaves Italy. With fleets, newly built by C., Sicily, Africa and Spain are reconquered for the rightful master. By means of a kind of terrorism Magnentius stands his ground in Gallia. In the beginning of 353 C. crosses the Alps Cottiae and defeats M. near Mons Seleuci (between July 23-Aug. 10, 353). August 11 he commits suicide at Lyons, after murdering his mother and brother Desiderius.

His brother Decentius (Caesar) commits suicide at Sens on Aug. 18, 353 (for Dec. cf. ad 15. 6. 4, p. 56. 2). Cf. Stein Spät. Gesch. I p. 215 sq. (with lit.); Niese-Hohl. p. 401; Komm. I p. 41 (Kaiserbiogr.).

5. 33. *Constantium, ut dubium tamen mutabilem verebatur*, . . . p. 54. 11-12. <et> mutabilem BG Gardth. Cl. Cf. Blomgren p. 17: „Iam vero subdifficilis oritur quaestio, num Amm. aliquoties bina vocabula dissolute conexa alio quodam vocabulo interiecto alterum ab altero separaverit.” Cf. et. 20. 11. 7: ut clare nati periculisque laboribus in <durati> (<et> lab. G. Gardth. Cl.; this place is corrupt, however: so we find immediately before it: dignitatibus augendos <et> praemiis, where it has been inserted, in my opinion rightly, by Petsch, Cl. and others, on account of the clausula II); 31. 4. 2: per omne quicquid ad Pontum a Marcomannis praetenditur Quadis (<et> Quadis Lindenbr. Gardth. Cl.,

Quadis<que> Brakm.). In these 3 places there is no objection against the asyndeton on the ground of the clausula. Cf. et. 14. 7. 9: ut cum in Syriam venerit, Gallum quem crebro acciverat, ad Italiam properare blande hortaretur verecunde (<et> verecunde BG Gardth. Cl., verecunde<que> E. The clausula is then $\approx \sim \sim \sim \approx \sim$, uncommon, it is true, but it does occur in Amm.: cf. Blomgren p. 12, 17, 89 adn. 2, 93 adn. 1, 172 and Harmon p. 121, 175 sq.); 14. 6. 17 (cf. ad h. l. Komm. I): utque proeliorum periti rectores primo catervas densas opponunt et fortes, deinde leves armaturas, post iaculatores ultimasque subsidiales acies (si fors adegerit) iuvaturas, ita praepositis urbanae familiae suspense digerentibus sollicitis, quos insignes faciunt virgae dextris aptatae, velut tessera data castrensi, iuxta vehiculi frontem omne textrinum incedit etc. (suspensae d. sollicitae V; suis pensa d. s. Petsch. Cl.; sua pensa d. s. Haupt; pensa d. s. suis Heraeus; cf. 25. 2. 3: sollicitam suspensamque quietem).

Obs. Herewith Blomgren annotates p. 18: „ad part. digerentibus obiectum vix desiderari putaverim. Neque enim scio an hic quoque locus ad consuetudinem sermonis Ammiano haud insolitam pertineat. Constat enim personam vel rem, per quam vel propter quam aliquid fit, non ita raro per structuram ablativi absoluti significari, in qua verbum absolute sine obiecto sit positum, velut 29. 1. 36: abscessit innocuus, Pasifilo eximente philosopho; 31. 4. 9: quasi laevo quodam numine deligente in unum quaesiti potestatibus praeferere castrensibus homines maculosi; 21. 13. 8: nuntiatur regem cum omni manu, quam duxerat, ad propria revertisse, auspiciis dirimentibus (cf. et. 25. 4. 23; 21. 13. 13; 19. 1. 42; 25. 3. 19; 22. 9. 5; 31. 15. 7; 29. 1. 9; Horn, Zur Gesch. der absol. Partiz. Konstr. im Lat., Lund 1918, p. 36 sq.). Similiter hoc loco per abl. abs. quibus digerentibus, id est a quibus digestae servorum catervae procedant, narratur.” The „wrong” cursus Heraeus solves by: sollicitis suis, Seguire by: sollicitius, Novák by: et sollicitis, in which the asyndeton also disappears.

p. 54. 12—13. 5. 33. Boniti . . Franci. The name is Celtic. Cf. Holder Altch. Sprachsch. s.v.; Schönfeld p. 52.

p. 54. 12. 5. 33. fortia facta. Cf. 15. 9. 8; 16. 1. 2; 19. 6. 12; 20. 4. 12; 25. 7. 1; 29. 5. 4; 31. 3. 1 (everywhere fortia facta, also in casus obliqui). Corresponding to this fortiter facere (15. 5. 35); 16. 12. 29; 17. 1. 14; 17. 6. 3; 17. 10. 2; 24. 3. 4; 24. 4. 24; 24. 5. 11; 27. 1. 4; 31. 15. 14) and varying: 16. 12. 69: egisset fortiter; 23. 6. 3: fortiter gesta. Cf. et. Fesser p. 51. sq.; and ad 14. 11. 25 p. 35. 25—26.

5. 33. Licinianus Named after (Imp. Caes.) Valerius Licinianus p. 54. 14. Licinius (Aug.), born $\pm$ 248, Illyrian by origin. (cf. Komm. I Stammt. VII). He was a friend of Galerius (cf. Stammt. VIII) and had distinguished himself in the latter's Armenian war in 297. After the death of Severus (April 307) he becomes Caesar, and after Maximianus (cf. Stammt. II) has retired for the second time, Augustus (Nov. 11, 308). After the death of Galerius (May 5, 311) he leaves Maximinus Daia (cf. Stammt. VIII) in possession of the asiatic dioeceses and enters into an alliance with Constantinus I (cf. Stammt. V), whose stepsister Constantia (cf. Stammt. VII) he marries in the beginning of 313. [The edict of tolerance of March 311 had as co-signatory Licinius. In the war between Maxentius (Stammt. II) and Constantinus I, Licinius supported Const., Maximinus Daia Max.] In the beginning of 313 M. Daia crosses the Bosphorus, takes Byzantium, next Heraclea. April 30, 313 Lic. defeats M. Daia near Tzirallum. The latter flies and dies of an illness at Tarsos (Aug. 313). June 13, 313 Lic. has the edict of tolerance of Milan published at Nicomedia (on the murders on Prisca, Valeria, Candidianus and Severianus cf. Stammt. VIII). In 314 (A) the first conflict between L. and Const. breaks out. The issue of the struggle were Pannonia and Moesia, which L. possessed. C. wants a new division, in which Bassianus (cf. Stammt. VII), his brother-in-law, as Caesar, was to govern the contested territory. B. is instigated by L. and done away with by C. Then L. is defeated near Cibalae in Pannonia inferior (Oct. 8, 314). A second battle on the Campus Mardiensis in Thracia brings no decision. Then they come to an agreement. L. cedes Pann. and Moesia to C. (Autumn 314). For several years C. and L. wage a joint war against Sarmats, Goths etc. March 1, 317 C.'s sons Crispus and Constantinus (cf. Stammt. VIb) and Licinius' son Licinianus (cf. Stammt. VII) are appointed Caesars. Conflicting interests and a diverging religious policy lead to clashes (B). When C., of his own accord, drives back barbarians, who have invaded Thracia (L.'s territory), L. declares war. (after $\pm$ March 323). July 3, 324 L. is defeated near Hadrianopolis. L. withdraws to Byzantium. Constantin's fleet, under the command of Crispus, defeats L.'s fleet near Callipolis (entrance of Hellespont). L. leaves Byzantium and on Sept. 18, 324 he is defeated again by C. near Chrysopolis. After a few weeks he surrenders at Nicomedia. C. sends L. to Thessalonica, where he has him killed in 325. He pardons L.'s wife Constantia (cf. Stammt. VII). Licinianus is killed in 326. Cf. et. Niese-Hohl. p. 393 sq.; Stein Spätr. Gesch. p. 127 sq.

in bello civili: so herewith are meant the wars indicated above by A and B.

- p. 54. 13. 5. 34. **Romae**. Cf. 14. 1. 9; 14. 6. 2; 14. 6. 22; 14. 6. 26; 15. 8. 1; 16. 6. 2; 16. 10. 17; 17. 4. 1; 17. 4. 13; 17. 11. 5; 23. 1. 7; 26. 1. 5; 26. 3. 6; 27. 9. 10; 28. 1. 10; 28. 4. 21; 29. 2. 24. Amm. always uses the locativ *Romae*, like Tacitus (exception Amm. 6. 11). „Man könnte versucht sein, in diesem Falle die klassische Formgebung mit der romanischen Glorifizierung einer verblichenen Größe, wie sie bei Amm. mehrfach hervortritt. (14. 6. 3; 16. 10. 13; 26. 1. 14) in Verbindung zu bringen.“ (Fesser p. 33). Cf. ad 14. 11. 21 (p. 35. 3).
- p. 54. 15. 5. 34. **Circo maximo**. The circus max. also called 17. 4. 1: obeliscus *Romae in circo erectus est maximo* (AD. 357; sc. a Constantio). Cf. J. Jung², Grundriss der Geogr. v. Ital. u. dem orbis Romanus (1897) p. 174 sq., especially p. 177 (with lit.). The last circusgames were held by Totila A. D. 549 (Procop. bell. Goth. 3. 37).
- p. 54. 18—19. 5. 35. **inaestimabili**. Cf. 26. 8. 13: Procopius . . . *Arbitionis domum . . . iussit exinaniri mobilis census* („furniture“) *inaestimabilis plenam*; 16. 12. 63: *et alii inaestimabiles mortuorum acervi*; 29. 5. 38: *eum inaestimabilium turmarum specie dira perterrefactum*; 31. 7. 5: *vulgus inaestimabile barbarorum*. = valuable, innumerable, very large. Cf. Krebs² *Antib.* p. 705: „Dieses Adj. wurde ebenso wie *aestimabilis* von Cic. in Prosa eingeführt, vgl. Cic. fin. 3. 20: *aestimabile esse dicunt* (sic enim, ut opinor, appellemus) id, quod . . . , contraque *inaestimabile*, quod . . . Beide Wörter . . . nur hier bei Cic.; sonst ist *inaestim.* nachklassisch bei Liv., Val. Max., Seneca und spätlat. bei Amm. Lact. u. a., *aestimabilis* aber ist ἀπαξ εἰρημένον.“
- p. 54. 19. 5. 35. **insolentia coalitus et tumore**. Cl. III: ♂ — — — — ♀ — — — —. (Hagend. wrongly: — — — — / — — — —). Cf. ad 15. 2. 9 (p. 41. 3—4); Hagendahl abund. p. 172.
- p. 54. 20—22. 5. 35. **eo more . . . cupiebat**. Tross (translated freely): „tapfere Männer waren ihm immer verhaßt, wie einst dem Domitianus; übrigens suchte er sich in allen dem Heldensinn entgegengesetzten Eigenschaften hervorzutun“; Wagner (*quacunque arte contraria*): *opposite fortiter factis, ergo ignavia, desidia*.
- p. 54. 21. 5. 35. **fortiter facientes**. Cf. ad 15. 5. 33, p. 54. 12; for the alliteratio: Petschenig *Phil.* 56 p. 556 sq.; Blomgren p. 130 annot. 1; Hagendahl abund. p. 163 sq.

5. 36. **tantumque afuit laudare industrie gesta, ut etiam quaedam scriberet de Gallicanis intercepta Thesauris, quos nemo attigerat. idque scrutari iusserat artius interrogato Remigio, etiam tum rationario apparitionis armorum magistri, cui multo postea Valentiniani temporibus, laqueus vitam in causa Tripolitanae legationis eripuit.** p. 54. 22—p. 55. 1.

eripuit edit. Clark, MS. *erupit*. The latter version is preferable. Already Löfst. Beiträge p. 62 sq. has stated, that the *verba erumpere* and *eripere*, *abruptere* and *abripere*, are used almost miscellaneously. Cf. et. 16. 12. 45: *Batavi venere cum regibus, formidabilis manus, extremae necessitatis articulo circumventos . . . ereptura* (Clark). But MS. *eruptura*, which is preferable again. In 30. 5. 18: *nocteq. quam lux ereptura eum vita secuta est . . . videbat coniugem suam absentem*, Löfst. reads *eruptura*, according to Pighi St. Amm. p. 66: „*secus eruptura, quod solus exhibeat Parisinus 5819 (H), qui a Veneto Bessarionis (W) descriptus est, qui a Florentino (F), qui denique a Fuldensi*“ right in my opinion. Cf. et. 17. 5. 12: . . . *adsit (sc. pax) modo cum decore et honestate, nihil pudori nostro praereptura vel maiestati (V praereptura, EAG praereptura, P. praereptura) and Pighi ibid. p. 66: „Praereptura in Hersfeldensi an praereptura fuerit dignosci non potest; certe librarius Vaticanus 2969 (E) cum praereptura legisset, correxit; quod Gelenium quoque fecisse arbitror“* (with other inst. and lit.); and Hofm.-Leum. p. 85 (particularly ad C. E. 1007).

ut etiam quaedam scriberet de Gallicanis intercepta thesauris. Meyer Spir. and Momms.: *interceptis*. This looks simpler on the face of it. The strange wordorder, however, (*intercepta* sc. *esse*) quite normal in Amm. and also caused by the clausula I *interceptā thesauris*. The cursus planus has arisen from — — — — —. (Though in Amm. the clausula is accentuating, he appears after all to be a little more sensitive to quantity than Harmon and Meyer assumed. Their opinions should be compared with those of Hagend. Perf. formen and Blomgren op. cit. (passim). Cf. Hagend. ibid. p. 45: „Ich glaube gezeigt zu haben, daß wenigstens in der Hälfte der Satzschlüsse Ammians Accent und Quantität zusammenwirken. Nur aus diesem Verhältnis ist die Genesis des Kursus zu verstehen: bei abnehmender Empfindung für die Quantität hat man sich davor nicht gescheut, auch kurze Silben als Träger der Betonung zu verwenden. Bei Amm. liegen nur die Anfänge zum accentuierenden Satzschlusse vor . . . der Accent ist zwar ausschlaggebend geworden, die Quantität aber spielt noch dabei eine nicht unbedeutende Rolle.“ All this should also be borne in mind when Komm. 1. p. 4 (clausulae) is used. It now

seems methodically correcter to me to prefer that *clausula*, which is also right quantifying, to that, which would be as follows: $\angle - \angle \angle -$; though the *molossus* occurs rather much instead of the *creticus* (cf. Hagend. *ibid.* p. 44).

Remigio, rationario apparitionis armorum magistri. As to *magister armorum* cf. Grosse *Mil.* p. 181 sq.: „Die Heermeister gehörten von Anfang an zu derselben obersten Rangklasse wie die höchsten Verwaltungsbeamten des Reiches, nur die *praefecti urbi* und *praetorio* gehen ihnen bei Aufzählungen immer voran (cf. ad 14. 6. 1 und 14. 7. 9) . . Ihre offizielle Amtsbezeichnung blieb zu allen Zeiten *magister peditum* bzw. *equitum* oder, wenn beide Kompetenzen in einer Hand vereinigt waren, *magister equitum et peditum* oder *utriusque militiae*. Bei dem kombinierten Titel ist zu beachten, daß diese Reihenfolge der Waffengattungen ausnahmslos feststeht, obgleich das *magisterium peditum* das ranghöhere ist . . . Dem offiziellen Sprachgebrauch gehört auch an *magister militum*, griechisch *στρατηλάτης* oder *στρατηγός*, wenn auch diese Bezeichnungen wohl nicht titular im strengsten Sinne des Wortes sind. Vulgär ist dagegen der bei Ammian oft vorkommende *magister armorum* oder *rei castrensis*. In noch höherem Maße gilt dies natürlich von den Umschreibungen, wie sie dieser Schriftsteller auf Kosten der technischen Genauigkeit um der Abwechslung des Ausdrucks willen liebt: *pedestris militiae rector*, *qui equorum copias tuebatur* u. dgl.“ (cf. 15. 5. 24; 27. 10. 6; 15. 5. 2; 18. 3. 1; 28. 3. 9, and the lit. quoted there). Cf. et. ad 14. 9. 1 p. 25. 26.

On *rationarius* cf. Vales. ad h. 1. (= Edit. Wagner II p. 137): „*Officialis Magistri militum*, qui *militarium numerorum rationes tractabat* . . Hi aliter et communiori vocabulo *Numerarii* dicebantur . . Hos Graeci *ψηφιστάς* seu *διαψηφιστάς* vocant . . Eunapius *λογιστάς* eos appellat . .“ (with lit.) and Enßlin *R. E.* 17 p. 1297 sq.: „*Numerarius*, Rechenmeister findet sich seit Constantin I als Bezeichnung von Rechnungsführern, dann von Rechnungsbeamten in der Finanzverwaltung und in den Officien verschiedener ziviler und militärischer Behörden, wo sie für die Rechnungslegung der Steuerverwaltung oder für die mit dieser zusammenhängenden Einnahmen und Ausgaben zuständig waren. Zuerst erscheinen die num. qui diversis rectoribus obsequuntur im J. 334. Die num. müssen zuvor zu den *tabularii* gehört haben. So wird verständlich daß später unter Valentinian I und Valens die num. der Provinzialverwaltung wieder den Titel *tabularii* zu führen hatten . . (Im officium der mag. mil.) zuerst im amtlichen gebrauch nachweisbar in Cod. Theod. 8. 8. 4 (= Cod. Iust. 12. 59. 3) vom J. 386 als num.

comitum illustrium virorum, die Gothofr. z. St. u: Paratitlon 8. 1. unrichtig als n. des comes sacr. larg. und des comes r. privat. aufgefaßt hatte (vgl. Enßlin *Klio* 23. p. 317). Amm. M. nennt zum J. 359 zwei n. *apparitionis magistri equitum* (19. 9. 2); gemeint ist der Sprengelgeneral für den Orient (*Klio* 23, p. 319). Dagegen bezeichnet er den Inhaber einer gleichen Dienststelle in 15. 5. 36 (hier) als *rationarius* etc. und umschreibend als *sub magistro equitum rationes numerorum militarium tractans* (26. 1. 6). Je zwei num. nennt die N. D. Or. bei den beiden mag. praes., bei dem per Orientem, per Thracias, und per Illyricum, im Westen je einen n. bei den beiden mag. praesentales, doch darf man wohl daran erinnern, daß in der N. D. gelegentlich auch sonst Flüchtigkeiten vorgekommen sind . . .“ (with lit). Cf. et. 18. 5. 1: *Antonius quidam ex mercatore opulento rationarius apparitor Mesopotamiae ducis, tunc protector exercitatus et prudens* . . ; Große *Milit.* p. 129 sq. (with lit.); Böcking *N. D.* II p. 534, p. 1161 sq. . The *numerarius* has a high rank, is mostly on the second place in N. D., four times on the third place after *principes* and *commentariensis* (the highest of the office and *registrator*), only with the comes *Africae* the order is: *principes*, *cornicularius* (secretary), *adiutor*, *commentariensis*, *numerarii duo*. The mag. eq. per Gallias and a part of the comes and duces of the West receive the num. from the offices of the mag. mil. praesentales. The *numerarii* seem to have had a very bad reputation. A series of laws in the Cod. Theod. refer to their frauds.

apparitio = service of lower officials, then = *apparitores*, lower official, servants. Cf. 15. 3. 8: *Rufinum, apparitionis praefecturae praetorianae tunc principem*; 18. 6. 5: *scripta . . iubentia . . reverti Mesopotamiam sine apparitione ulla*; 15. 7. 3: *praefectus ab omni toga apparitione neque rogabatur enixius* (Tross-Büchle: seine Freunde u. die Wache; better Georges: seine Freunde u. sein Troß). Often in Corp. Iur. Also Cic. ad Q. fr. 1. 1. 4 § 12. In the christian meaning (*ἐπιφάνεια*, the apparition of Christ) not in Amm.

artius interrogato. *acrius* W. Meyer Spir., *altius* Günther. G.'s and M.'s objections are not right. *Artius* here means: *acriter*, *vehementer*. G. says, that *artus* and *altus* are interchanged more and mentions as instance 17. 12. 7: *quod est in rebus artissimis ultimum* . . Here *artus* means: *angens*. The places quoted by G. to support his conjecture (20. 5. 2: *alte contemplatur*; 26. 1. 11: *alte considerato*; Tac. Hist. 1. 7: *an ne altius scrutaretur*; Plin. ep. 5. 14. 5: *altissime inspicere*; Apul. met. 8. 18: *altius quiritare*) have no demonstrative force against the frequent use by Amm. (and others) of this word in the above meaning. From Thes.

II p. 724 follows here a systematical review of arte and artus in Amm. (cl. = clausula, c. = comp., s. = superlativus, s. cl. = superl. and in claus.).

I. arte. (= spisse, firmiter, anguste, presse): 25. 1. 18 (c); 21. 4. 5; 14. 11. 21 (s. cl.); 21. 7. 4 (s. cl.); 19. 8. 7 (c. cl.); 14. 7. 19 (s. cl.); 26. 9. 9 (c. cl.); 24. 7. 8; 20. 6. 6. (cl. s.).

II. (= breviter): 29. 1. 34: artius respondere compulsus (Cm² Val.). Other codd.: actius, coactius, altius. For this use cf. Ovid. ex Ponto 4. 12. 9 sq.:

et pudeat, si te, qua syllaba parte moratur
artius adpellem Tuticānumque vocem;
et potes in versum Tuticāni more venire,
fiat ut e longa syllaba prima brevis, etc.

Plin. nat. hist. 15. 111: naturas artius colligi (= brevius describi) par est; Terent. Maur. 2188 sq.:

vides ut icta verba raptet impetus,
brevemque crebra consequendo longula
citurum subinde volvat artius sonum, etc.

On the other hand Hieron. adv. Rufin. 2. 4: si artius (= subtilius) quid rogavero, contentiosum vocabis.

III. (= acriter, vehementer): 25. 4. 12 (s. cl.); 18. 2. 16 (c. cl.); 15. 5. 36 (here, c.).

IV. (de mensura: parce). In this meaning not in Amm.? artum. (neutr. subst.) = spatium artum: 14. 2. 6 (pluralis, cl.).

artus. (De contactu et iunctura: presse,

I. proxime adhaerens vel iunctus, non longe distans): 16. 12. 37(s.) 19. 3. 3; 20. 7. 14 (c); 17. 7. 4 (cl.); 28. 3. 6 (36. 18. 1 wrongly quoted).

II. (de dimensionibus: non magnus, non amplus, non latus): 17. 1. 6; 27. 4. 8; 21. 10. 3.

III. (de tempore: brevis). Does not occur in A?

IV. (de mensura: exiguus, parvus). Does not occur in A?

V. (translate, de animo etc.: angustus, angens): 17. 12. 7 (s. cl.); 25. 1. 1; 18. 6. 14 (c. cl.); 31. 3. 3 (= urgenti, cl.). The adverbium arte 13 times in all, 6 times in the compar. and 5 times in the superl. The superl. and compar. together 8 times in the clausula. The adj. artus 12 times in all, twice in the comp. and twice in the superl. Superl. and comp. together twice in the claus. Particularly in the first case the part of the clausula, which cooperates with the shifting of the comparison (cf. ad 14. 6. 12), is evident.

Gallicanis thesauris. Cf. 22. 3. 7: Ursulus datis litteris ad eum qui Gallicanos tuebatur thesauros, quidquid posceret Caesar, procul dubio cesserat dari; Cod. Iust. 10. 23. 1: Omnem summam auri vel argenti reliquarumque specierum (= things; fruits; corn), quae sacris largitionibus (cf. ad 14. 7. 9, p. 20. 14) ex more penduntur, statim ut exactio fuerit celebrata, ad thesauros uniuscuiusque provinciae vel ad proximos referri sub obsignatione (= sealing) tabularii (high tax-official in the provinces) ceterorumque, quos sollicitos esse debere praecedentia iussa decreverant, et thesaurorum praepositis consignari (= to consign, hand over) praecipimus, ut exinde ad sacrum comitatum (cf. ad 14. 5. 8. p. 11. 22) integer omnium titulorum (= taxes) numerus dirigatur (A. D. 383); Böcking N. D. Occ. p. 345: „Exacta ex oppidorum vectigalibus pecunia in munitum provinciae locum deferebatur, inde ad Comitatum mittenda . . . Locus ille Thesaurus vocabatur, eius custodes Thesaurenses et qui praecipuam eorum curam habebant, Thesaurorum praepositi, qui XII hic (sc. N. D. Occid. X) recitantur, quot erant Thesauri seu loca, in quibus summa pecuniae ex provincia exactae conservabatur.” These praep. Thes. should not be confused with the (diocesan) comites largitionum or (provincial) rationales summarum. (Cf. Böcking N. D. Or. p. 334 sq.; ad 14. 7. 9, p. 20. 14).

Remigius. From Moguntiacum (30. 2. 10), affinis and amicus of the Comes (cf. ad 14. 5. 1 and 14. 7. 7) Africae Romanus (27. 9. 2; 28. 6. 8; 29. 5. 2), in 355 rationarius of the mag. milit. Silvanus in Gallia (15. 5. 36, here). He was mag.¹ officiorum (cf. ad 14. 7. 9 and 14. 11. 19) to Valentinianus (Cod. Theod. 7. 8. 2; Amm. 30. 8. 12) and in this function misled the emperor since 365 with reference to the outrages of Romanus (27. 9. 2; 28. 6. 8—9; 29. 5. 2; 30. 2. 10—11). After Leo had succeeded him to his office in 373, he lived privately on his estate near Mainz (30. 2. 10). But legal proceedings were taken against him, after which R. hanged himself (30. 2. 11—12; 15. 5. 36; 28. 6. 30). Not to be confused with a homonym mentioned Cod. Theod. 1. 2. (8). 10 and 3. 1. 7, who was a praefectus Augustalis (Prefect of Egypt.).

causa Tripolitanæ legationis. This notorious history of bribery and extortion will be treated more elaborately later with the places concerned. It reminds of the Jugurtha-case. Palladius, Remigius, Romanus, and others played a part in it. The famous general Theodosius, the father of the emperor Theodosius I (379—395), who wanted to make a clean sweep and who had subdued the Maurian rebel Firmus, was calumniated with the emperor by Romanus c. suis and executed. Cf. Stein Spätrom. Gesch. I p. 275 sq.; Amm. 28. 6.

Valentiniani temporibus. Meant: Imp. Caesar Flavius Valentinianus Augustus (364-375).

p. 55. 1-2.

5. 37. Constantius ut iam caelo contiguus, casibusque imperaturus humanis. For alliteration in Amm. cf. Philol. 56 (N. F. 10), 1897, p. 556 sq. (M. Petschenig), where a long list of alliterations is found, which can be extended. In my opinion some of the ex. there are less fortunately chosen. Cf. et. Blomgren p. 130, annot. 1; Hagendahl, abundantia p. 163.

p. 55. 2-3.

5. 37. adulatorum, quos augebat . . id genus parum callentes. Cf. 26. 7. 7: cum soleant id genus homines post partas ex iniquitate divitias latebras captare secretas; Gell. 10. 22. 24: id genus homines. Cf. Fesser: „id genus als Apposition ist in seinem Ursprunge volkstümlich (cf. Hofm.-Leum. p. 385), taucht vereinzelt bei Cic. auf (bezeichnenderweise in de inv. und ep. Att.), massenhaft bei den Archaisten im Anschluß an alte Muster (cf. Kroll Rh. Mus. 52, 576; Ruckdeschel 112; Hache 30; Leky 22; Kühner-Stegm. I 306; Thes. VI 1903, 41 sq.). Daß damals die Form in der Volkssprache nicht mehr lebendig gewesen ist, bemerkt Wölfflin Arch. L. L. G. 5, 391." Callentes is used substantively. For the use of callere cf. 15. 2. 4: ad innectendas . . insidias . . . perquam callens; 21. 3. 5: ad perstringendum fallendumque miris modis . . callens; Plaut. Truc. 932: omnes homines ad suum quaestum callent et fastidiunt. Callere c. acc. also class. (but rarely). The verb often occurs in Gellius. Cf. Krebs⁷ Antib. I. p. 251.

spernendo proiciendoque. For this expression cf. Hagendahl abund. p. 185.

p. 55. 4.

5. 37. Croesum-Solonem. Cf. Herod. 1. 33; Beloch Gr. Gesch.² I. 1. p. 363 sq. (with lit.).

p. 55. 5.

5. 37. Dionysium . . Filoxeno. Meant is Philoxenos of Kythera (435-380), the well-known poet of dithyrambs. He lived at the court of Dionysius I (405-367) at Syracuse and wrote 24 dithyrambs, among which the famous *Κύκλωψ*. The fragments are to be found Bergk, Poet. lyr. gr. 3 p. 601 sq. Cf. et. Christ, Gesch. der gr. Litt. I. p. 251.

p. 55. 8.

5. 38. altrix. Cf. 23. 6. 25: His prope Chaldaeorum est regio, altrix philosophiae veteris; 20. 8. 11: sed adulatione vitiorum altrice depulsa (cf. Cic. Lael. 89: adsentatio vitiorum adiutrix). Cf. Hagendahl p. 30:

„altrix tantum de rebus incorporalibus dicitur (sc. apud Amm.) . . vocabulum in primis poetarum est (primus utitur Pacuv.), raro apud scriptores legitur." Cf. et. Thes. I 1770 sq.

5. 38. secus gestorum. Cf. 17. 11. 1; 21. 4. 3; etc.; 27. 2. 1: conrecturus p. 55. 9. sequius gesta (= 27. 8. 2); 23. 5. 22: rationem . . recte consultorum vel secus; 27. 6. 9: merita recte secusve factorum; 29. 2. 24: ratio . . . recte secusve gestorum; 30. 2. 9: scrupulosus quaesitor gestorum recte vel secus; 22. 6. 2: iure vel secus; 27. 11. 1: iuste an secus (Cf. Cicero Pis. 68: recte . . an secus; de fin. 3. 44: recte secusne); 18. 6. 6: fortuna sequior. Cf. Krebs Antib. I p. 565: „Sequior als Masc. und Fem. ist ein Wort der sinkenden Latinität . . in klass. Sprache finden wir zwar secus . . aber nicht sequius." (Cf. Florus 1. 10. 7: sed ne qui sequior sexus; Apul. met. 7. 8: in sequiorem sexum; 10. 23: si sexus sequioris edidisset foetum; Ulp. Dig. 2. 15. 8 § 11: utrum frugi vitae hi sint qui alias sufficere sibi possint, an sequioris qui de alimentis pendeant). Cf. et. Fesser p. 48 sq.

Addenda.

2. 5. For praefectibus cf. Arch. L. L. G. 3. 1886, p. 35 (Hartel); p. 40. 8-10. Roensch It. p. 262 sq.;

5. 34. Circo maximo. Cf. et. G. Lugli, Roma antica. Il centro p. 54. 15. monumentale (1946) p. 599 sq. (with lit. p. 606).